



NCIA CONTRACT GENERAL TERMS AND CONDITIONS

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GTC A.

CORE GENERAL TERMS AND CONDITIONS

GTC A.1. GENERAL CONTRACTING TERMS AND CONDITIONS

1. APPLICATION OF TERMS AND CONDITIONS [MAY 2026]

- (a) The Core General Terms and Conditions (GTCs) are applicable to the Contract and to all orders issued by the Purchaser under the Contract.
- (b) In addition to the Core GTCs, the Contract may incorporate clauses from one or more of the following GTC subsets, as appropriate to the nature and scope of the Contract:
 - (1) Services;
 - (2) Equipment;
 - (3) Commercial Off-The-Shelf (COTS) Software or Licenses;
 - (4) Software Developed for North Atlantic Treaty Organization (NATO) Purposes;
 - (5) Cloud Services; or
 - (6) Artificial Intelligence (AI) Systems or AI-Enabled Services
- (c) The selection and application of these subsets are not limited to a single requirement type and may be combined where necessary to ensure appropriate contractual coverage.
- (d) The Specifications of the Contract are set forth in the Contract Schedule of Supplies and Services and in the Statement of Work.

2. ORDER OF PRECEDENCE AND INTERPRETATION [MAY 2026]

- (a) Unless the Special Terms and Conditions state otherwise, the Contract consists of the following documents, their annexes and the documents that are included by reference in these documents, listed hereunder in descending order of precedence:
 - (1) Signature Page;
 - (2) Contract Schedule of Supplies and Services;
 - (3) Contract Special Terms and Conditions;
 - (4) Contract General Terms and Conditions;
 - (5) Statement of Work;
 - (6) Annexes to the Statement of Work.
- (b) In the event of any inconsistency in language, terms or conditions of the various parts of the Contract, precedence will be given to the higher listed document. The General Terms and Conditions for Services, Equipment, COTS Software or Licenses, NATO-developed Software, Cloud Services, and for AI Systems and AI-Enabled Services as listed in Clause GTC A.1.1(b) will be given precedence in case of any inconsistency with the Core General Terms and Conditions.
- (c) All other terms and conditions are rejected, unless expressly agreed to in writing by the Purchaser in the Special Terms and Conditions.
- (d) A reference to any statute or statutory provision shall be construed as a reference to the same as it may from time to time be amended, modified or re-enacted.
- (e) A reference to any other document referred to in the Contract is a reference to that other document as amended, varied, novated, or supplemented at any time.
- (f) The headings and sections in the General Terms and Conditions are intended solely for convenience and will be given no effect in the construction of the Agreement.
- (g) The rights and obligations conferred to the Purchaser under the Contract, including the General Terms and Conditions, will be extended to the Eligible Purchasers.

3. DEFINITIONS OF TERMS AND ACRONYMS [MAY 2026]

(a) Defined terms have the meaning set forth in this Clause when capitalized in the Contract and may be read in singular, plural or an alternative sense as the context requires:

- (1) **“Assembly”** means an item forming a portion of equipment that can be provisioned and replaced as an entity and which normally incorporates replaceable parts or groups of parts.
- (2) **“Acceptance”** means the act by which the Purchaser recognizes in writing that the delivered Supplies or Deliverables meet the Contract Specifications. Acceptance can be formulated with reservations.
- (3) **“Claim”** means a written demand or written assertion by one of the contracting Parties seeking, as a matter of right, the payment of money in a sum certain, the adjustment or interpretation of contract terms, or other relief arising under or relating to the Contract. A voucher, invoice, or other routine request for payment that is not in dispute when submitted, is not a claim. The submission may be converted to a Claim, by written notice to the contracting officer, if it is disputed either as to liability or amount or is not acted upon in a reasonable time.
- (4) **“Clause”** means a Special or General Terms and Condition of the Contract.
- (5) **“Commercial Off-the-Shelf”** or **“COTS”** means (a) any item (Supplies, Software, products, goods) that is of a type customarily used for non-governmental purposes, that has been sold, leased, or licensed to the general public, or (b) Services of a type offered and sold competitively in substantial quantities in the commercial marketplace.
- (6) **“Component”** means a part or combination of parts, having a specific function, which can be installed or replaced only as an entity.
- (7) **“Contract”** means the agreement concluded between the Purchaser and the Contractor, duly signed by both contracting Parties, and any modifications thereof. The Contract includes the documents referred to in Clause GTC A.1.2 (“Order of Precedence and Interpretation”).
- (8) **“Contracting Authority”** means the General Manager of the NATO Communications and Information Agency (NCIA). Contracting Authority is delegated from the General Manager to the Chief of Acquisition, Deputy Chief of Acquisition for Procurement and Policy, and the warranted contracting officers and assistants of the NCIA in accordance with applicable delegations of authority.
- (9) **“Contractor”** means the person or legal entity which has signed the Contract and is a Party thereto.
- (10) **“Contractor Background IPR”** means any Intellectual Property Rights (IPRs) owned by the Contractor or any Subcontractor or licensed by a third party to the Contractor or a Subcontractor which is not created in relation to or as the result of Services undertaken for any purpose contemplated by the Contract and which is needed for the performance of the Contract or for the exploitation of Foreground IPR or derivatives thereof, or needed for the legitimate use of any Deliverable by the Purchaser, the Contractor or any third party, for NATO Purposes.
- (11) **“Contract Schedule of Supplies and Services”** means an agreed document that is part of the Contract and that describes the Supplies and Services to be delivered by the Contractor under the Contract, including their monetary description. The Contract Schedule of Supplies and Services is complemented by the Statement of Work.
- (12) **“Correction”** means elimination of a Defect.
- (13) **“Damage”** means physical damage, injury, damage to property, financial damage, expenses, financial losses, administrative or penal fines, and in general any damage that is eligible for compensation under the principles of contract law, tort or any specific law, as the case may be.

- (14) **“Day”** means a calendar day, unless otherwise specified.
- (15) **“Defect”** means any condition or characteristic in any Supplies or Services furnished by the Contractor under the Contract that is not in compliance with the Specifications of the Contract, or that otherwise produces erroneous results or is unfit for the purposes stated in the Contract. A Defect may occur as a Defect in workmanship or in materials.
- (16) **“Deliverable”** means any and all goods (including movable, immovable, tangible and intangible goods) to be delivered pursuant to the terms of the Contract including, without limitation, building, raw materials, components, intermediate Assemblies, Parts, end products, equipment, documentation, data, software, infrastructure, reports, and in general the results of Services.
- (17) **“Delivered Duty Paid (DDP)”** means a delivery agreement whereby the seller assumes all responsibility for transporting the goods until they reach an agreed-upon destination. It is an incoterm (a standardized contract for international shipments).
- (18) **“Delivery Date”** means the date by which Supplies or Services are required to be delivered by the Contractor under the Contract.
- (19) **“Design Defect”** means a Defect attributable to incompatibility, unsuitability or erroneous application of theory, drawings or formula.
- (20) **“Effective Start Date of Contract”** or **“ESD”** means the date upon which the Contract is deemed to start. Unless otherwise specified, a Contract enters into force on the date of the signature of the Contract by the Purchaser, after the signature of the Contractor.
- (21) **“Eligible Purchaser”** means the entities identified in the Contract Special Terms and Conditions which may benefit of the Contract, if they express so in any subsequent agreement between them and the Contractor by acceding to the Contract or call-off under the Contract. Unless agreed otherwise in the Contract, all NATO Bodies and Governmental Agencies (including military forces) of NATO Member Nations are considered Eligible Purchasers. Any accession to or call-off under the Contract is subject to explicit approval by the Purchaser.
- (22) **“Equipment”** means the hardware components of Supplies, possibly including limited Services and Software. If any related Services or Software are substantial, the Special Terms and Conditions will specify whether any General Terms and Conditions for Services and Software will apply to these components.
- (23) **“Failed Component”** means a part or combination of parts, having a specific function, which can be installed or replaced only as an entity which ceases to perform in a manner consistent with its intended use and Specifications of the Contract.
- (24) **“Force Majeure Event”** has the meaning ascribed to it in Clause GTC A.4.12.
- (25) **“Foreground IPR”** means any Intellectual Property Rights (IPR) created by the Contractor or any Subcontractor of the Contractor in the course of or as the result of Services undertaken for any purpose contemplated by the Contract.
- (26) **“Good Industry Practice”** means the exercise of a degree of skill, diligence, prudence, foresight and care which would be expected from a professional, experienced and skilled contractor providing similar Supplies or Services, in accordance with, without limitation, recognized international standards and guidelines, legal and regulatory compliance, and best practices established by industry organizations.
- (27) **“Hardware”** is used interchangeably with “Equipment”.
- (28) **“Information and Communication Technology”** or **“ICT”** means all technical means used to handle information and aid communication. This includes both computer and network hardware, as well as their software.

- (29) **“Intellectual Property Rights”** or **“IPR”** means any intellectual property rights of any qualification irrespective of their stage of development or finalization, including but not limited to patents, trademarks (registered or not), designs and models (registered or not) and applications for the same, copyright (including on computer software), moral rights, rights in databases, domain names, business secrets, know-how, confidential information and rights in records (whether or not stored on the computer) which includes technical and other data and documents.
- (30) **“Manufacturing Defect”** means a Defect attributable to improper manufacturing processes, testing or quality control procedures.
- (31) **“Milestone Date”** means the date of completion or completion of a substantial part of a Service, marked by the delivery or Acceptance as the case may be and specified in the Contract.
- (32) **“NATO”** means the North Atlantic Treaty Organization. For the purpose of the Contract, the term NATO includes NATO Bodies, NATO Agencies, the NATO military command structure, NATO Force Structure, and NATO Member Nations.
- (33) **“NCIA”** means the NATO Communications and Information Agency. The NCIA is part of the NCIO and is one of the NATO Bodies. The NCIA General Manager is authorized to enter into contracts on behalf of NCIA.
- (34) **“NATO Body”** means any entity created by the North Atlantic Council (or Defence Planning Committee) and to which either the Agreement on the Status of the North Atlantic Treaty Organization, National Representatives and International Staff (20 September 1951) or the Protocol on the Status of International Military Headquarters set up pursuant to the North Atlantic Treaty (28 August 1952) applies.
- (35) **“NATO Communications and Information Organization (NCIO)”** means the NATO Communications and Information Organization. The NCI Organization constitutes an integral part of the North Atlantic Treaty Organization (NATO). The NCI Organization is the legal personality from whence flows the authority of its agent, the NCIA, to enter into contracts.
- (36) **“NATO Purposes”** means activities conducted by or on behalf of NATO to promote the common defense and common interests of NATO, such as, among others, NATO operations, NATO procurement, NATO training and NATO maintenance.
- (37) **“Part”** means an item of an assembly or sub-assembly, which is not normally further broken down.
- (38) **“Participating Nation”** means a nation participating in the funding of a given procurement.
- (39) **“Parties”** or **“Contracting Parties”** means the Contracting Parties to the Contract, i.e. the (Eligible) Purchaser(s) and the Contractor.
- (40) **“Personal Data”** means any information relating to an identified or identifiable person.
- (41) **“Purchaser”** means the NCIA, as represented by the General Manager. The Purchaser is the legal entity that awards and administers the Contract on behalf of NATO and stands as one of the Contracting Parties.
- (42) **“Purchaser Background IPR”** means any IPR owned or licensed from a third party by the Purchaser which has been developed by, assigned to or licensed to the Purchaser prior to the Effective Start Date of Contract or later, but not as a part of the scope of the Contract.
- (43) **“Purchaser Data”** means all Personal Data and any other data, information, files and content, owned, generated, collected, received, accessed, developed, computed, processed, stored, transferred or used by the (Eligible) Purchaser or on behalf of the (Eligible) Purchaser or any other beneficiaries under the Contract in connection with the performance of the Contract.

- (44) **“Purchaser Furnished Property”** means any item of Equipment, material, document, technical data, information and Software or any other item of property furnished by the Purchaser to the Contractor required or useful for the performance of the Contract. The Purchaser Furnished Property, if any, shall be detailed in the Contract.
- (45) **“Requirement”** means what the NCIA specifies that it wants from a Contractor in its performance of a Contract. Used interchangeably with “Specifications”.
- (46) **“Services”** means the services (performance of tasks) to be provided to Purchaser or any Eligible Purchaser pursuant to the Contract. This includes ongoing operational services as well as any work that results in a Deliverable.
- (47) **“Service Level”** means a quantified definition of the Contractor’s commitment to deliver target performance levels against performance measures, formalized as a contractual obligation, and with contractual remedies associated against this performance.
- (48) **“Software”** means a computer program (including, as the case may be as specified in the Special Terms and Conditions or in the Statement of Work, source code and object code versions) comprising a series of instructions, rules, routines regardless of the media in which it is recorded, that allows or causes a computer or other Equipment to perform a specific operation or a series of operations.
- (49) **“Software Defect”** means any condition or characteristic of Software that does not conform with the Specifications of the Contract or any technical or commercial documentation emanating from the Contractor or licensor, or that otherwise produces erroneous results.
- (50) **“Source Code”** means the human-readable programming instructions written in a programming language that can be compiled or interpreted into executable software. It includes all underlying logic, algorithms, comments, documentation, and scripts necessary to build, modify, maintain, or enhance the software.
- (51) **“Specifications”** means the required characteristics of Supplies or Services set forth by the Purchaser in the Contract and any characteristics described in statements or technical and commercial documentation emanating from the Contractor or its supplier. Specifications will include any added or modified characteristics that are agreed to between the Parties in accordance with the provisions of the Contract. Used interchangeably with “Requirements”.
- (52) **“Statement of Work”** means a document that is part of the Contract and that describes among other things (but not exclusively) the Specifications of the Contract, and that in general describes the scope, tasks, activities, Deliverables, timeline, Service Levels, governance and methodology of Services to be provided by the Contractor. For the purposes of the Contract, the term “Statement of Work” may be used generically to refer to the contractual document describing the work requirements. Depending on the nature of the requirement, this document may take the form of a Statement of Work (SOW), a Performance Work Statement (PWS), or a Statement of Objectives (SOO). The Statement of Work is complemented by the Contract Schedule of Supplies and Services.
- (53) **“Sub-Assembly”** means a portion of an Assembly consisting of two or more parts that can be provisioned and replaced as an entity. The definition purposely excludes Components or Parts.
- (54) **“Subcontract”** means any agreement made by the Contractor with any third party in order to fulfil any part of the obligations under the Contract. Subcontracts may be in any legal binding form, e.g. contract, purchase order, etc.
- (55) **“Subcontractor”** means any person or legal entity directly or indirectly under Subcontract to the Contractor in performance of the Contract.
- (56) **“Supplies”** means all items, products, Equipment, specially manufactured goods, Software, and related goods and Services, including training and documentation, which are movable at the time of identification to the Contractor for sale, other than the money in which the price is to

be paid.

- (57) **“Third Party IPR”** means any IPR owned by a third party not being the Purchaser or the Contractor or its Subcontractor, which is needed or useful for the performance of the Contract or for the exploitation of Foreground IPR or for the legitimate use of any Deliverable, Supplies or Services by the Purchaser, the Contractor or any third party, for NATO Purposes. This includes, for example, third party software, including open source software.

4. NCIA E-PROCUREMENT PLATFORM [MAY 2026]

- (a) All Contractors (potential or actual) intending to conduct business with the Purchaser are required to be registered in the NCIA eProcurement platform (Neo or its successor platform) when submitting a bid or quotation or proposal (unless stated otherwise in the solicitation) and shall continue to be registered until the time of the award, during contract performance, and through final payment of the Contract.
- (b) The Contractor needs to take into account the processing time to complete registration in the NCIA eProcurement platform. Contractors (potential or actual) who are not registered in the eProcurement platform should consider applying for registration immediately upon receipt of a solicitation. The link to the NCIA eProcurement platform is publicly accessible on NCIA's website under Business>Procurement>[Neo eProcurement](#).

5. CONTRACTUAL AUTHORITY [MAY 2026]

- (a) All binding contractual instruments and changes, including modifications, additions or deletions, as well as interpretation of and instructions issued pursuant to the Contract shall be valid only when issued in writing by the Purchaser and signed by the Contracting Authority only.
- (b) No direction which may be received from any person employed by the Purchaser or a third party shall be considered as grounds for deviation from any of the terms, conditions, specifications or requirements of the Contract except as such direction may be contained in an authorized modification to the Contract or instruction duly issued and executed by the Contracting Authority. Constructive change may not be invoked by the Contractor as a basis for Claims under the Contract.
- (c) The entire agreement between the Parties is contained in the Contract and is not affected by any oral understanding or representation whether made previously to or subsequently to the Contract.
- (d) Personal notes, signed minutes of meetings, comments to delivered documentation and letters, e-mails and informal messages from project or other Purchaser staff which may indicate the intent and willingness to make changes to the Contract, do not implement the change to the Contract and shall not be used as a basis for claiming change to the Contract by the Contractor.

6. CONTRACT SIGNATURE DATE VS. EFFECTIVE START DATE OF CONTRACT [MAY 2026]

- (a) **Contract Signature Date:** The Contract shall be considered fully executed, upon signature by the Purchaser and the Contractor. The Contract becomes legally binding on this date but is not enforceable until the Effective Start Date of Contract.
- (b) **Effective Start Date of Contract (ESD):** The effective date for the start of performance under the Contract shall be stated on the Signature Page, which, depending on the scope of the Contract, maybe the same as the Contract Signature Date or thirty (30), sixty (60), ninety (90) Days from the Contract Signature Date. The Contractor is required to commence performance of the contractual obligations on or after this ESD.
- (c) All performance metrics, deliverables, and obligations are measured from the ESD. Any goods or services provided before this date will not be considered part of the contract performance and will not be reimbursed unless otherwise agreed in writing by the Purchaser.

7. TYPE OF CONTRACT [MAY 2026]

- (a) The type of contract applicable to this Contract shall be as specified in the Contract, normally in the Special Terms and Conditions (STCs). While a Firm-Fixed-Price (FFP) contract is the type most commonly used by the Purchaser, other contract types, including cost-reimbursement contracts, may be used where appropriate to the nature, complexity and risk profile of the requirement. Where the STCs identify a contract type other than Firm Fixed Price, the terms applicable to that contract type shall be set out in the STCs and shall take precedence over this clause to the extent of any inconsistency. In the event that the Contract does not expressly identify a contract type, this Contract shall be deemed a Firm Fixed Price Contract.
- (b) Where this is an FFP, the total FFP of the Contract is as stated on the signature page of the Contract or any modifications thereto. The price includes all costs, including all costs related to identification, preservation, packaging, marking, transportation, quality assurance, testing and inspection, and remediation of Defects.
- (c) Where this is an FFP Contract, the Purchaser assumes no liability for costs incurred by the Contractor in excess of the stated Firm Fixed Price except as may be authorized under certain provisions of the Contract.
- (d) Where this is an FFP Contract, the Contractor warrants that any estimates made by the Contractor are based on careful examination of the required Supplies, Deliverables and Services, and that the Contractor will have assessed the required features to the best of its ability in order to provide a realistic estimate.
- (e) The Contractor warrants that the prices, rates, target costs or estimated costs (as applicable) reflected in the Contract are based on a careful examination of the required Supplies, Deliverables and Services, and on a realistic assessment of the effort, resources and risks involved.
- (f) Any change to the type of contract or to the parameters of the applicable variant in the STC, shall be effected only by written modification signed by the Purchaser's Contracting Authority.

8. SUBCONTRACTS [MAY 2026]

- (a) The Contractor shall place and be responsible for the administration and performance of all Subcontracts including terms and conditions which it deems necessary to meet the Requirements of the Contract in full.
- (b) Unless expressly authorized by the Purchaser, the Contractor is not authorized to place Subcontracts outside the Participating Nation(s).
- (c) Unless expressly authorized by the Purchaser, the Contractor must not subcontract for the entire duration of the Contract more than fifty percent (50%) of the staffing resources or labor hours or work required for the successful completion of the Contract. This restriction applies to the whole Contract and not to individual Task or Delivery Orders for which the stated percentage may be exceeded. This restriction does not apply to subcontracting to a consortium, entities, or divisions that are part of the same holding entity, company (e.g. local subsidiaries or local partnerships) or network of companies.
- (d) The Contractor must determine that any Subcontractor, proposed by the Contractor for the furnishing of Supplies or Services which will involve access to classified information in the Contractor's custody, has been granted all appropriate security clearances (both personal and facility) by the Subcontractor's national authorities, which are still in effect, prior to being given access to such classified information.
- (e) The Contractor shall seek the approval in writing of the Purchaser prior to the placing of any Subcontract if the Subcontract was not identified in the Contractor's bid.

- (f) The Contractor shall submit a copy of any such proposed Subcontract when seeking approval to the Purchaser's Contracting Authority, if the total value of the Subcontract exceeds twenty-five percent (25%).
- (g) The Purchaser's approval of a proposed Subcontract shall in no way relieve the Contractor of its responsibilities to fully achieve the contractual and technical requirements of the Contract.

9. PURCHASER FURNISHED PROPERTY [MAY 2026]

- (a) The Purchaser shall deliver to the Contractor, for use only in connection with the Contract, the Purchaser Furnished Property (PFP) at the times and locations stated in the Contract. In the event that the PFP is not delivered by such stated times, or if not so stated, in sufficient time to enable the Contractor to meet its delivery or performance dates, the Purchaser shall, upon timely written request made by the Contractor, and if the facts warrant such action, equitably adjust any affected provision of the Contract pursuant to Clause GTC A.4.3 ("Changes").
- (b) In the event that the PFP is received by the Contractor in a condition not suitable for its intended use, the Contractor shall immediately notify the Purchaser. The Purchaser shall within a reasonable time of receipt of such notice replace, reissue, authorize repair or otherwise issue instructions for the disposal of PFP that is agreed to be unsuitable. The Purchaser shall, upon timely written request of the Contractor, equitably adjust any affected provision of the Contract pursuant to Clause GTC A.4.3 ("Changes").
- (c) Title to the PFP will remain with the Purchaser. The Contractor shall maintain adequate property control records of the PFP in accordance with sound industrial practice and security regulations.
- (d) Unless otherwise provided in the Contract, the Contractor, upon delivery to them of any PFP, assumes the risk of, and shall be responsible for, any loss or damage thereof except for reasonable wear and tear, and except to the extent that the PFP is consumed in the performance of the Contract.
- (e) Upon completion of the Contract, or at such earlier dates as may be specified by the Purchaser, the Contractor shall submit, in a form acceptable to the Purchaser, inventory schedules covering all items of PFP.
- (f) The inventory shall note whether the PFP: (a) was consumed or incorporated in the fabrication of the final deliverable(s); (b) was otherwise destroyed; (c) remains in possession of the Contractor; or; (d) was previously returned.
- (g) The Contractor shall deliver at a destination (Delivered Duty Paid (DDP)) agreed with the Purchaser, or otherwise dispose of, the PFP as may be directed by the Purchaser. The net proceeds of any such disposal shall be credited to the Contract price or otherwise paid to the Purchaser as the Purchaser may direct.
- (h) The Contractor shall not modify any PFP unless specifically authorized by the Purchaser or directed by the terms of the Contract.
- (i) The Contractor shall indemnify and hold the Purchaser harmless against claims for injury to persons or damages to property of the Contractor or others arising from the Contractor's possession or use of the PFP. The Contractor shall indemnify the Purchaser for damages caused by the Contractor to the Purchaser, its property and staff and arising out of the Contractor's use of the PFP.

10. CONTRACT ADMINISTRATION [MAY 2026]

- (a) The Purchaser is the Point of Contact for all Contractual and Technical issues.
- (b) The Contractor shall accept Contract modifications only in writing from the Purchaser's Contracting Authority.

- (c) The Purchaser reserves the right to reassign the Contract to a representative(s) for administrative purposes, in whole or in part, provided that the Purchaser shall always be responsible for its obligations under the Contract and for actions or lack of actions of its assigned administrator. The Purchaser undertakes to advise the Contractor in writing whenever this right is to be exercised.
- (d) All notices and communications between the Contractor and the Purchaser shall be written in English and may be emailed (the primary mode), personally delivered, or mailed to the address specified in the Contract Special Terms and Conditions.
- (e) All contractual documentation (e.g. change proposals, invoices) shall be delivered electronically.
- (f) In Special Terms and Conditions (STC) A.1 is the detailed contact information of the Purchaser and Contractor.

11. PROJECT AND TECHNICAL DIRECTION [MAY 2026]

- (a) For the project and technical control of the Requirements, the Purchaser designates the Project Manager (PM) or Contracting Officer Representative (COR) specified in the Contract Special Terms and Conditions with the authority to monitor, and control Contractor's performance under the Contract.
- (b) The Purchaser may designate other staff elements in the Contract Special Terms and Conditions as technical focal points for the execution of the specific tasks.
- (c) Notwithstanding the prescriptions of this Clause, neither the Purchaser's PM or COR nor any Technical Representative has the authority to change the terms and conditions of the Contract. If the Contractor has reason to believe that the PM, COR, or Technical Representative is requesting work that is inconsistent with the scope of the Contract, the Contractor shall immediately inform the Purchaser's Contracting Authority for confirmation of the actions. Failure to obtain confirmation that the action of the PM, COR, or Technical Representative is under the authority of the Contract shall render any subsequent claim null and void.
- (d) Upon receipt of such notification above, the Purchaser's Contracting Authority will:
 - (1) Confirm the effort requested is within scope; or
 - (2) Confirm that the instructions received constitute a change and request a quotation for a modification of scope or price; or
 - (3) Rescind the instructions.
- (e) The Contractor shall keep the Purchaser informed of any developments, events or issues that will have an impact on the delivery schedule or other important elements of the Supplies or Services to be provided under the Contract. This will form part of Contractor review meetings which will take place as appropriate and as decided by the Purchaser. More urgent developments will require communication from the Contractor without undue delay.
- (f) The Contractor shall interact and coordinate with other contractors or suppliers that deliver Supplies or Services in connection with the Contract, so that the Contractor's Supplies and Services are integrated with the Purchaser's other related operations.

12. WARRANTY [MAY 2026]

- (a) The Provisions of Clauses GTC A.1.12(b) through GTC A.1.12(h) shall apply in addition to the application of the warranty provisions set forth in the respective General Terms and Conditions as applicable for:
 - (1) Services;
 - (2) Equipment;
 - (3) Commercial Off-The-Shelf (COTS) Software or Licenses;

- (4) Software Developed for NATO Purposes;
 - (5) Cloud Services;
 - (6) AI Systems and AI-Enabled Services.
- (b) The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in the Contract.
- (c) Should any warranty period or warranty conditions provided by either the Original Equipment Manufacturer (OEM) or the Subcontractor exceed those required by the Contract, then these periods or conditions may be incorporated in the Contract at the sole discretion of the Purchaser.
- (d) The Contractor shall not be responsible under this Clause for the Correction of Defects in PFP, except (a) for Defects in a Contractor-performed installation or (b) if the Contractor performs, or is obligated to perform, any modifications or integration or other work on Purchaser Furnished Property. In that event, the Contractor shall be responsible for Correction of Defects that result from the modifications or other work. Any PFP needs to be checked and approved by the Contractor. Approval is implied once the Contractor starts using the PFP.
- (e) Any Supplies or Services or parts thereof that are corrected or furnished in replacement, and any Services that are re-performed shall also be subject to the agreed warranty provisions to the same extent as the Supplies or Services initially delivered. The warranty, with respect to these Supplies or Services, or parts thereof, shall be equal in duration, and shall run from the date of delivery of the corrected or replaced Supplies or Services.
- (f) The expiry of the warranty period is suspended during negotiations between the Contracting Parties on a warranty claim submitted by the Purchaser, and the warranty period will be extended after the termination of negotiations (by an agreement or by a rejection of the claim) for a period corresponding to the duration of the negotiations.
- (g) In no event shall the Purchaser be responsible for any extension or delays in the scheduled deliveries, periods of performance or testing or Acceptance periods under the Contract as a result of the Contractor's obligations to correct Defects, nor shall there be any adjustment of the delivery schedule or period of performance as a result of the Correction of Defects unless provided by a supplemental agreement with adequate consideration.
- (h) The rights and remedies of the Purchaser provided in this Clause shall not be affected in any way by any terms or conditions of the Contract concerning the conclusiveness of inspection and Acceptance and are in addition to, and do not limit, any rights afforded to the Purchaser by any other Clause of the Contract or applicable law.

13. DELIVERY DATES AND MILESTONE DATES [MAY 2026]

- (a) The Contract provides delivery schedules or timetables in the form of Delivery Dates or Key Delivery Dates for Supplies and Milestones Dates and Key Milestone Dates for Services.
- (b) The (Key) Delivery Dates or (Key) Milestone Dates are as specified in the Contract and are fixed and binding target dates unless otherwise specified in the Contract Special Terms and Conditions.
- (c) Although Delivery Dates for Supplies are considered binding (unless otherwise specified), the impact of any delay of delivery is considered less harmful for the Purchaser than the impact of any delay relating to Key Delivery Dates.
- (d) Although Milestone Dates for Services are considered binding (unless otherwise specified), a Key Milestone Date represents a more essential due date for the completion of a substantial part of the Services or their completion. Milestone Dates are considered binding unless otherwise specified, but the impact of any delay of completion is considered less harmful for the Purchaser than the impact of any delay relating to Key Milestone Days. Milestone Dates may be defined in the Contract as a due date for completion of (part of) a Service or as a due date for successful Acceptance, as the case may be.

14. PURCHASER'S USE OF THIRD PARTIES [MAY 2026]

- (a) The Purchaser shall have the right to use third parties, including commercial entities, to assist it in the management of the Contract and the evaluation of the Contractor's performance.
- (b) The Contractor shall have the right to require third parties to sign a non-disclosure agreement that contains conditions normally considered reasonable by the Contractor's industry. Any third-party non-disclosure agreement proposed by the Contractor shall be subject to approval by the Purchaser.
- (c) The Contractor shall permit such third parties full and free access to its premises, and all data (including software), deliverable and non-deliverable, generated or used under the Contract, as and when required for the purposes of monitoring the Contract and shall ensure the same right of access to the premises of its Subcontractors, by the inclusion in any such Subcontracts of a provision substantially as set forth in this Clause. For the purposes of this Clause, data shall not include financial data unless authorized by the Contractor, with the exception of any specialized commercial audit firms engaged by the NATO Contracting Authority or National audit agencies in the application of Clause GTC A.3.8 ("Audit and Access to Records").

15. CONFLICT OF INTEREST [MAY 2026]

- (a) A conflict of interest means that because of other activities or relationships with other persons or entities, a Contractor is unable, or potentially unable, to render impartial assistance or advice to the Purchaser, or the Contractor's objectivity in performing the Contract work is, or might be otherwise impaired, or the Contractor has an unfair competitive advantage.
- (b) Conflict of interest includes situations where the capacity of a Contractor (including the Contractor's executives, directors, consultants, subsidiaries, parent companies or Subcontractors) to give impartial, technically sound advice or objective performance is or may be impaired or may otherwise result in a biased work product or performance because of any past, present or planned interest, financial or otherwise in organizations whose interest may substantially be affected or be substantially affected by the Contractor's performance under the Contract.
- (c) The Contractor is responsible for maintaining and providing up-to-date conflict of interest information to the Purchaser. If, after the award of the Contract, the Contractor discovers a conflict of interest with respect to the Contract which could not reasonably have been known prior to the award, or if any additional conflicts or potential conflicts arise after the award, the Contractor shall give written notice to the Purchaser.
- (d) If, after the award of the Contract, the Purchaser discovers a conflict of interest with respect to the Contract, which has not been disclosed by the Contractor, the Purchaser may at its sole discretion request additional information to the Contractor, impose mitigation measures or terminate the Contract for default in accordance with Clause GTC A.4.14 ("Termination for Cause – For Default").
- (e) The Contractor's notice called for in Clause GTC A.1.15(c) shall describe the actual, apparent, or potential conflict of interest, the action(s) the Contractor has taken or proposes to take to avoid or mitigate any conflict, and shall set forth any other information which the Contractor believes would be helpful to the Purchaser in analyzing the situation. Any changes to the Contractor's Conflict of Interest Mitigation Plan, if any is incorporated in the Contract, should also be detailed.
- (f) The Contractor has the responsibility of formulating and forwarding a proposed mitigation plan to the Purchaser, for review and consideration. This responsibility arises when the Contractor first learns of an actual, apparent, or potential conflict of interest.
- (g) If the Purchaser in its discretion determines that the Contractor's actual, apparent, or potential conflict of interest remains, or the measures proposed are insufficient to avoid, neutralize, or mitigate the conflict, the Purchaser will direct a course of action to the Contractor designed to avoid, neutralize, or mitigate the conflict of interest.
- (h) If the Parties fail to reach agreement on a course of action, or if having reached such agreement the

Contractor fails to strictly adhere to such agreement during the remaining period of Contract performance, the Purchaser has the discretion to terminate the Contract for default or refrain from exercising any further Option under the Contract.

- (i) The Contractor's misrepresentation of facts in connection with a conflict of interest reported or a Contractor's failure to disclose a conflict of interest as required shall be a basis for default termination of the Contract.

16. COMMUNICATION AND LANGUAGE [MAY 2026]

- (a) All written correspondence, reports, documentation and text of drawings communicated between the Parties shall be in the English language. Translated texts have no legal value.
- (b) Any communication that must be provided "in writing" according to the Contract, except where it must be provided by registered mail, can be provided by an e-mail sent to the e-mail addresses set forth in the Contract Special Terms and Conditions or any replacing e-mail address correctly communicated by the Parties.

17. INSURANCE [MAY 2026]

- (a) Where the requirements of the Contract or the Contract Special Terms and Conditions dictate for an insurance, the Contractor shall provide to the Purchaser written confirmation from its insurers that it has in force an insurance policy sufficient to provide cover as required by law or in respect of any liability which may arise in connection with the Contract including professional and civil liability and, where relevant, product liability as well as an insurance covering cyber risks. The Contract may set forth more specific requirements.
- (b) The Contractor shall, at its own expense, maintain such insurance policy in force for the term of the Contract, and shall upon request of the Purchaser provide a certificate of insurance from its insurers of such policy giving details of cover and the receipt for the current year's premium in respect of each insurance. If the Contractor at any time neglects or refuses to provide or cause to be provided the insurance required under the Contract, or should such insurance be cancelled, the Purchaser shall have the right to procure the same and the cost shall be deducted from monies then due or to become due to the Contractor.

18. SEVERABILITY [MAY 2026]

- (a) If one or more of the provisions of the Contract is declared to be invalid, illegal or unenforceable in any respect under any applicable law, the validity, legality and enforceability of the remaining provisions shall not be affected. Each of the Parties shall use its best efforts to immediately and in good faith negotiate a legally valid replacement provision.

19. SURVIVAL [MAY 2026]

- (a) Clauses that are intended by their nature to survive, shall survive the expiration or termination of the Contract.

20. INDEPENDENT CONTRACTORS [MAY 2026]

- (a) The Parties are independent contractors. The Contract does not create a partnership, franchise, joint venture, agency, or employment relationship between the Parties. The Contractor is not authorized to present itself as a representative of the Purchaser.

21. WAIVER [MAY 2026]

- (a) Failure by either Party to enforce any provision shall not be deemed a waiver of that provision.

22. CONTRACT CLOSEOUT [MAY 2026]

(a) Contract Closeout Requirements

- (1) Upon completion of the Contract, the Contractor shall comply with the following contract closeout procedures:
 - (i) **Final Invoice Submission:** The Contractor shall submit a final invoice within sixty (60) Days of contract completion unless a different number of days is inserted in the Contract Special Terms and Conditions. The invoice shall reflect all outstanding amounts due for work performed under the Contract.
 - (ii) **Release of Claims:** The Contractor shall submit a signed 'Release of Claims' (or a contract modification from the Purchaser in lieu of a 'Release of Claims') certifying that all claims, financial obligations, and liabilities under the contract have been settled, and no further claims will be made against the Purchaser (Clause GTC A.4.5 – "Release of Claims").
 - (iii) **Final Property or Inventory Report:** The Contractor shall provide a final property report, including an accounting of all PFP (Clause GTC A.1.9). The Contractor shall return or dispose of such property in accordance with the contract terms and as directed by the Purchaser.
 - (iv) **Closeout Documentation:** The Contractor shall submit all required closeout documentation, including but not limited to:
 - (A) Final technical and progress reports;
 - (B) Intellectual property reports;
 - (C) Subcontractor release forms (if applicable);
 - (D) Any other reports or documents required under the contract terms.
 - (v) **Audit and Compliance:** The Contractor shall make all records available for a final audit and compliance review if required by the Purchaser to ensure that all contractual and financial obligations have been met (Clause GTC A.3.8 – "Audit and Access to Records").
 - (vi) **Final Purchaser Review:** Upon receipt of all required closeout documentation, the Purchaser will conduct a final review to verify that all closeout activities are complete and in accordance with federal regulations.
- (2) Failure to submit the required documentation or comply with the closeout procedures within the specified timeframe may result in delays or final payments or additional actions as authorized in the Contract General Terms and Conditions.

23. BANKRUPTCY [MAY 2026]

- (a) In the event the Contractor enters into proceedings relating to bankruptcy, whether voluntary or involuntary, the Contractor agrees to furnish, by certified mail or electronic commerce method authorized by the contract, written notification of the bankruptcy to the Purchaser. This notification shall be furnished within five (5) Days of the initiation of the proceedings relating to bankruptcy filing. This notification shall include the date on which the bankruptcy petition was filed, the identity of the court in which the bankruptcy petition was filed, and a listing of the Purchaser contract numbers and against which final payment has not been made. This obligation remains in effect until final payment under this contract.

END OF G.A.1: GENERAL CONTRACTING TERMS AND CONDITIONS

GTC A.2. ACCEPTANCE AND PAYMENT TERMS AND CONDITIONS

1. ACCEPTANCE OF CONTRACT TERMS AND CONDITIONS [MAY 2026]

- (a) By signing the Contract, the Contractor certifies that they have read, understood, and unreservedly accepts the terms and conditions, Specifications, plans, drawings and other documents which form part of or are relevant to the Contract. The Contractor further agrees that the terms of the Contract take precedence over any proposals or prior commitments made by the Contractor in order to secure the Contract, unless otherwise specified in the Special Terms and Conditions.

2. OWNERSHIP AND TITLE [MAY 2026]

- (a) Except as may be otherwise stated in the Contract Special Terms and Conditions, ownership and title to all Supplies and Deliverables will pass to the Purchaser only upon Acceptance by the Contracting Authority in writing, regardless of when or where the Purchaser takes physical possession. Where the Contract Special Terms and Conditions provide for Provisional Acceptance and Final Acceptance, ownership and title will pass to the Purchaser upon written notification of Final Acceptance.
- (b) Title to tangible or intangible Supplies and Deliverables covered by the Contract shall remain with the Contractor until, and shall pass to the Purchaser upon, Acceptance by the Purchaser or receipt of the Supplies and Deliverables by the Purchaser at the destination specified in the Contract, whichever is the later.
- (c) Notwithstanding Clause GTC A.2.2(b), the risk of loss or damage to Supplies or Deliverables which fail to conform to the requirements of the Contract shall remain with the Contractor until cure and Acceptance, at which time Clause GTC A.2.2(b) shall apply.
- (d) Notwithstanding Clause GTC A.2.2(c), the Contractor shall not be liable for the loss of or damage to Supplies or Deliverables caused by the negligence of officers, agents or employees of the Purchaser acting within the scope of their employment.
- (e) Risk of loss. Unless the Contract specifically provides otherwise, risk of loss or damage to the Supplies or Deliverables provided under the Contract shall remain with the Contractor until, and shall pass to the Purchaser upon delivery at the destination specified in the Contract (DDP).

3. INSPECTION AND ACCEPTANCE [MAY 2026]

- (a) The Purchaser reserves the right to inspect or test any Supplies, Services or Deliverables that have been tendered for Acceptance.
- (b) The Purchaser may require repair or replacement of nonconforming Supplies or Deliverables or re-performance of nonconforming Services at no increase in contract price. If repair, replacement, or re-performance will not correct the Defects or is not possible, the Purchaser may seek an equitable price reduction or adequate consideration for acceptance of nonconforming Supplies, Services or Deliverables. The Purchaser must exercise its post-acceptance rights:
 - (1) within a reasonable time after the Defect was discovered or should have been discovered; and
 - (2) before any substantial change occurs in the condition of the item unless the change is due to the Defect in the item.
- (c) The Purchaser is not obliged to accept or reject the entire delivery of Supplies, Services or Deliverables. Each item must as such conform to the Specifications. The Purchaser may, at its sole discretion, accept a delivery in part without prejudice to any of its rights under the Contract.
- (d) The Special Terms and Conditions and applicable General Terms and Conditions for Services, Equipment, COTS Software, Software Developed for NATO Purposes, Cloud Services and AI

Systems and AI-Enabled Services may set forth specific provisions in relation to inspection and Acceptance.

4. INVOICE AND PAYMENT [MAY 2026]

(a) Following Acceptance, all invoices shall be submitted electronically through the NCIA's eProcurement's platform (Clause GTC A.1.4). Invoices from vendors not registered on the NCIA's eProcurement's platform can be submitted to: accountspayable@ncia.nato.int

(b) A proper invoice shall include:

- (1) Name and address of the Contractor;
- (2) Invoice date and invoice number (the invoice date should be as close as possible to the date of submission);
- (3) Contract or Purchase Order number;
- (4) Currency of the Purchase Order;
- (5) Description, quantity, unit of measure, unit price, and extended price of supplies delivered or services performed;
- (6) Unit, extended, and total prices;
- (7) Contractor's bank name, address, and account number;
- (8) Name (where practicable), title, phone number, and mailing address of the person to notify in the event of a defective invoice;
- (9) VAT identification number;
- (10) The appropriate VAT information as required by Clause GTC A.3.4 ("Taxes and Duties");
- (11) The following statement: *"This invoice is certified as true and correct, and the delivery of the above described items has been duly carried out and the payment therefore has not been received"*;
- (12) Any other information or documentation required by the contract (e.g. evidence of shipment or of work confirmation, written Purchaser Acceptance); and
- (13) The Purchaser's address: NCIA Headquarters, Boulevard Leopold III, Brussels, Belgium

(c) **Payment Terms:** Except as otherwise stated in the Contract Special Terms and Conditions, the payment terms will be NET30 following receipt and acceptance by the Purchaser of a proper invoice (Clause GTC A.2.4(b)). Payment shall be made electronically.

(d) If the Purchaser fails to pay any amount when due, interest will accrue on such unpaid amount on a daily basis as from the due date, at a rate equal to the one (1) year EURIBOR interest rate during the month of December of the previous year, rounded up to the higher quarter percent; the interest rate thus obtained is increased by four (4) percent.

(e) Any fees charged by a bank in the receiving of an international payment for the Contractor, shall be borne solely by the Contractor and shall not be reflected on invoices nor charged to the Purchaser.

(f) The Purchaser shall be entitled to delay or withhold payment of any invoice or part of it where the Purchaser disputes or withholds such invoice or part of it provided that such dispute is bona fide. The withheld amount shall be limited to that which is in dispute. The disputed or withheld amount shall be settled in accordance with the Dispute procedure as set out in Clause GTC A.4.21 ("Disputes"). Any exercise of this right shall not entitle the Contractor to delay or withhold provision of the Supplies, Services or Deliverables or any other obligation.

(g) The Purchaser reserves the right to set off any invoiced amount with claims and unpaid sums it may have against the Contractor.

(h) The Contractor shall be solely responsible for making payment to its Subcontractors.

(i) Conditional Hold of Invoice

- (1) If the Purchaser receives an invoice that lacks a required element (e.g. evidence of work confirmation or written Purchaser Acceptance) as referenced in Clause GTC A.2.4(b), the

invoice shall be deemed improper, and the Contractor shall be notified accordingly. The invoice will be placed on hold for a period of seven (7) Days to allow the Contractor to provide the missing element(s).

- (2) During the hold period referenced in Clause GTC A.2.4(i)(1), the NET30 payment timeline (Clause GTC A.2.4(c).) shall be paused as of the date the hold is initiated. No interest penalties under Clause GTC A.2.4(d) shall accrue during the hold period.
- (3) If the Contractor resolves the deficiency within the hold period, the invoice shall be removed from hold status, and the NET30 timeline shall restart from the date the missing element(s) was received and accepted.
- (4) If the missing element(s) is not provided within fourteen (14) Days of the initial receipt of the improper invoice, the invoice will continue to remain on hold by the Purchaser until the Contractor has resolved the deficiency. In this period, Clauses GTC A.2.4(i)(2) and GTC A.2.4(i)(3) apply.

(j) Final Invoice

- (1) The Contractor shall submit a final invoice upon completion of all deliverables, services, or obligations under the contract. The final invoice must include all amounts due under the contract and clearly state ***"Final Invoice"*** in bold letters at the top of the invoice.
- (2) The submission of a final invoice constitutes the Contractor's acknowledgment that:
 - (i) All work under the contract has been completed.
 - (ii) There are no outstanding deliverables, obligations, or unresolved matters under the contract.
 - (iii) This invoice represents the final payment request under the contract.
- (3) Failure to properly label the final invoice may result in payment delays. The Purchaser reserves the right to reject improperly labeled invoices and to request a corrected submission.

END OF G.A.2: ACCEPTANCE AND PAYMENT TERMS AND CONDITIONS

GTC A.3. REGULATORY TERMS AND CONDITIONS

1. APPLICABLE LAW [MAY 2026]

- (a) Except as otherwise stated in writing by the Purchaser in the Special Terms and Conditions, the Contract shall be governed, interpreted and construed in accordance with the laws of the Kingdom of Belgium, with the exclusion of its conflict of law rules and with the exclusion of the United Nations Convention on Contracts for the International Sale of Goods (“Vienna Convention”).

2. GENERAL REPRESENTATIONS AND WARRANTIES - CONFORMANCE TO NATIONAL LAWS AND REGULATIONS [MAY 2026]

- (a) The Contractor warrants that it is duly organized and validly existing under the laws of its jurisdiction of incorporation, and that it has full power and authority to execute and perform its obligations under the Contract. The Contract constitutes a legal, valid and binding obligation, enforceable against the Contractor. The execution and performance of the Contract shall not conflict with any terms of its articles of association or any applicable laws or any contract or arrangement to which it is a party or by which it is bound or affected.
- (b) The information furnished by the Contractor on or before the date of the Contract is to the best of its knowledge true, accurate and complete in all material respects.
- (c) The Contractor warrants that it and its Subcontractors are duly authorized to operate and do business in the country or countries in which the Contract is to be performed and that it and its Subcontractors have obtained or will obtain all necessary licenses and permits required in connection with the Contract (including work permits for its personnel if required). No claim for additional monies with respect to any costs or delay to obtain the authorizations to perform shall be made by the Contractor.
- (d) The Contractor acknowledges that it and its Subcontractors are responsible during the performance of the Contract for ascertaining and complying with all applicable laws, regulations and binding standards, including without limitation: immigration, tax, social security and labor legislation, regulations regarding the security of information and communication technology, regulations regarding personal data protection, regulations regarding Environmental, Social and Governance (ESG), environmental laws, health and safety regulations and export control laws and regulations in effect at the time of Contract signature or scheduled to go into effect during Contract performance. Failure to fully ascertain and comply with such laws, regulations or standards shall not be the basis for claims for Change to the specifications, terms, conditions or monetary value of the Contract.
- (e) The Contractor will take a proactive attitude, such as without additional charge, (a) proactively requesting from the Purchaser all information needed to perform and comply with its tasks and obligations under the Contract, and (b) proactively monitoring the timely and proper performance and the financials of the Contract. The Contractor will proactively advise the Purchaser about the most optimal use of the Supplies, Services and Deliverables, possible alternatives and optimizations regarding costs and technical and operational aspects.
- (f) Unless explicitly otherwise stated in the Contract, the Purchaser does not enter into an exclusive commitment towards the Contractor.

3. NCIA SUPPLIER CODE OF BUSINESS ETHICS AND CONDUCT [MAY 2026]

- (a) The NCIA Supplier Code of Business Ethics and Conduct, publicly accessible on NCIA's website under NCIA's website under Business>Procurement>Documents and Resources>[Terms and Conditions](#), forms an integral part of the Contract. The NCIA Supplier Code of Business Ethics and Conduct sets standards and practices for suppliers and their subcontractors to adhere to when doing business with the NCIA.
- (b) In the event of any inconsistency in language, terms or conditions between the NCIA Supplier Code

of Business Ethics and Conduct and the Contract General Terms and Conditions, the latter takes precedence.

(c) Failure to comply with a provision of the NCIA Supplier Code of Business Ethics and Conduct may constitute grounds for termination under the Contract.

(d) The following is the **NCIA Supplier Code of Business Ethics and Conduct**:

I SCOPE AND APPLICABILITY

This Supplier Code of Business Ethics and Conduct (“**Code**”) sets out the standards and principles expected of all entities doing business with, or seeking to do business with, the NATO Communications and Information Agency (“**NCIA**”), referred to hereafter as “**Suppliers**”.

Suppliers are responsible for ensuring that the principles of this Code are effectively communicated to and complied with by their employees and are flowed down and observed throughout their supply chain, including, without limitation, any parent undertakings, subsidiaries, affiliates and subcontractors.

Upon execution of a contract with NCIA, this Code shall form an integral and legally binding part thereof and any failure to comply may result in corrective actions, suspension or termination of the contract and business relationship, at NCIA's discretion.

NCIA reserves the right, at any time, to request information or documentation reasonably necessary to demonstrate compliance with this Code, whether such request is triggered by disclosures made pursuant to provision 10.1 of this Code or by a reasonable suspicion of non-compliance arising on any other basis.

II HUMAN RIGHTS COMMITMENT AND APPLICABLE LABOUR AND ENVIRONMENTAL STANDARDS

1. Human Rights Commitment

- 1.1 Suppliers shall conduct their business in a manner that respects fundamental human rights¹ and shall maintain fair, safe and dignified working conditions. Suppliers shall not engage in abusive, coercive or other practices that would reasonably be considered improper or unduly pressuring towards its workforce. Suppliers shall not conduct or benefit from operations or activities where they knew or reasonably should have known that such operations or activities cause or materially contribute to serious foreseeable harm to the rights, health, safety, or living conditions of local or Indigenous communities. Further guidance on how these expectations are to be met is provided in provisions 0 and 3 of this Code.
- 1.2 Suppliers shall take reasonable steps, appropriate to the nature, size, and risk profile of their operations and business relationships, to identify, prevent, mitigate and remediate actual or potential adverse human rights impacts arising from their activities.
- 1.3 Where local laws, regulations, or binding governmental orders restrict the exercise of human rights, Suppliers shall promptly and transparently disclose these restrictions to NCIA, including their nature and the legal basis. Such restrictions shall not be used to justify additional limitations on human rights or to introduce, extend or aggravate any restriction beyond what is strictly required by the applicable laws, regulations, or orders.

¹ For the purposes of interpretation and assessment under this Code, “fundamental human rights” may be understood by reference to internationally recognised principles, including those reflected in the Universal Declaration of Human Rights, the International Labour Organisation's (ILO) Declaration on Fundamental Principles and Rights at Work and, where applicable, the European Convention on Human Rights.

2. Labour Standards

- 2.1 Forced Labour:** Suppliers shall not use forced labour, in any form, including involuntary, bonded, indentured or trafficked labour. All work, including overtime, must be performed voluntarily. Suppliers shall not require their workforce to hand over or deposit government-issued identification, passports or work permits as a condition of employment, nor impose restrictions that prevent individuals from leaving their employment.
- 2.2 Child and Underage Labour:** Suppliers shall not employ individuals below the minimum age of employment established by applicable national law, and in no case under the age of 15. Suppliers shall verify age through reliable and verifiable documentation and maintain effective procedures to prevent the recruitment of under-age individuals. Suppliers shall further ensure that individuals under the age of 18 are not assigned to hazardous work, insofar as such work may reasonably present heightened risks to their health, safety or development.
- 2.3 Wage, Benefits and Working Hours:** Suppliers shall ensure that the wages and benefits they provide are fair, paid on time, and compliant with applicable laws, and shall not be diminished by punitive or arbitrary deductions. Suppliers are expected to avoid sourcing from regions or operating in environments where wages or benefits are so low as to constitute exploitation by reasonable international standards. They shall also ensure that working hours, rest periods, and leave comply with applicable law, and are managed in a way that does not create conditions that could be considered forced labour, as prohibited under provision 2.1 of this Code.
- 2.4 Health and Safety:** Suppliers shall provide and maintain a safe, healthy, and secure working environment at all locations where work is performed or services are provided, including any accommodation, catering, or similar facilities provided or arranged by the Supplier. At a minimum, the following shall be in place: appropriate water and sanitation, safe equipment and work processes, effective fire and emergency measures, adequate environmental conditions (e.g. lighting and ventilation), proper management of hazardous substances, suitable personal protective equipment and access to treatment for occupational injuries and illnesses.
- Suppliers shall also provide comprehensive health and safety training and maintain effective oversight mechanisms to monitor, enforce, and continuously improve workplace health and safety.
- 2.5 Non-Discrimination and Equal Treatment:** Suppliers shall provide equal employment opportunity without discrimination on grounds of race, ethnic origin, nationality, political, philosophical, religious opinions, health, disability, gender or sexual orientation. Where local laws, regulations or binding governmental orders lawfully impose restrictions on such principles, Suppliers are required to comply with the disclosure requirements set out in provision 1.3 of this Code.

3. Responsible Environmental Practices

To the extent relevant to Suppliers' performance under their contract with NCIA, and taking into account the nature and scale of their operations:

- 3.1** Suppliers shall comply, in all material respects, with applicable environmental laws and regulations and conduct their business in a manner designed to minimise environmental risks and impacts associated with their operations, products and supply chains.
- 3.2** Suppliers shall take commercially reasonable steps to address material environmental impacts associated with their operations and, where appropriate, support ongoing improvement in environmental performance, consistent with sound industry practices.

- 3.3** Suppliers shall ensure the safe and lawful handling and management of hazardous substances (including chemicals and other materials), waste (including wastewater and solid waste) and emissions. Suppliers shall employ measures to identify, monitor, control and treat these, thereby ensuring their safe transport, storage, reuse, recycling and disposal.
- 3.4** Suppliers shall notify the relevant authorities, as required by applicable law, of any material accidental or uncontrolled release of hazardous substances, waste and emissions and shall inform NCIA where such an incident could reasonably be expected to affect contractual performance or pose significant reputational risk to NCIA.
- 3.5** In addition to provisions 3.1 - 3.4 of this Code, NCIA may, where reasonable and appropriate, establish measurable environmental and sustainability performance objectives, taking guidance from recognised industry or international frameworks².

III BUSINESS ETHICS

For the purposes of the following provisions and to ensure clarity, the term “NCIA personnel” means all civilian and military personnel working for or on behalf of NCIA, as well as any seconded staff and contractors of any kind, regardless of location, grade, or seniority.

- 4. Corruption and Bribery:** Suppliers shall adhere to the highest standards of ethical conduct, and shall comply with all applicable anti-corruption and anti-bribery laws in the jurisdictions in which they operate, regardless of any local customs or practices that may suggest conduct to the contrary is acceptable. By way of example, Suppliers shall not, directly or indirectly, offer, promise, give, request or accept bribes, facilitation payments, kickbacks or other improper benefit, nor engage in extortion, fraud or any other corrupt practice, whether involving public officials or private entities.
- 5. Fair Competition:** Suppliers shall compete fairly for business opportunities and not conclude any formal or informal anti-competitive arrangements that aim to fix prices, allocate territory, collude, rig bids, or otherwise distort fair competition for market share.
- 6. Conflicts of Interest:** Suppliers shall disclose to NCIA any situation in which NCIA personnel has a direct or indirect financial or personal interest in the Supplier, or any relationship that could reasonably be perceived as giving the Supplier an undue advantage in the award or execution of a contract.

7. Gifts and Hospitality

- 7.1** Suppliers shall not offer, promise, or give - directly or indirectly - any gifts or hospitality³ to NCIA personnel or their dependents.
- 7.2** By way of a narrow and strictly construed exception to provision 7.1 of this Code, gifts or hospitality of modest value may be permissible where they fall within normal and generally accepted standards of courtesy and propriety, are lawful, infrequent, and are neither intended to influence, nor have the actual, potential or perceived effect of influencing any NCIA decision-making process. NCIA reserves the right to determine, in its sole discretion, whether any benefit falls within this exception.

² Examples of frameworks NCIA may draw on include the UN Sustainable Development Goals, the Paris Agreement, ISO 14001, and GRI Standards. These are illustrative only and do not create binding obligations; any performance objectives will be agreed with Suppliers as appropriate.

³ Meaning any tangible or intangible benefit, including but not limited to gifts, payments, favours, loans, tickets, passes, transportation, food, drink, accommodation, entertainment, training courses, or other similar advantages.

- 7.3** Suppliers acknowledge that, in accordance with NCIA's applicable internal policies, NCIA personnel are required to report the offer, acceptance, or refusal of any gifts or hospitality, and Suppliers shall not seek to prevent, discourage, or otherwise influence such reporting.

8. Competitive and Pre-Competitive Engagement

- 8.1** Suppliers shall not seek engagement or exchange with NCIA personnel relating to ongoing or upcoming procurement projects, contracts, or capability development, unless in the presence of, or facilitated by the NCIA Acquisition Office, specifically a Contracting Officer or an Industry Relations representative.
- 8.2** Suppliers shall not attempt to influence procurement decisions through gifts, hospitality (as prohibited under provision 7 of this Code), or any other means that could improperly influence NCIA personnel responsible for decision-making.
- 8.3** Suppliers shall not solicit, imply, or communicate any endorsement by NCIA or NATO of their products, services, or themselves, unless they have obtained prior written approval from the NCIA Acquisition Office. Any unauthorised statements or claims of endorsement are strictly prohibited.
- 8.4** Suppliers shall disclose to NCIA's Acquisition Office any invitations extended to NCIA personnel to attend events, whether as participants or speakers. For any such events attended, Suppliers shall provide the names of attending NCIA personnel, the purpose and location of the event, any associated costs, and details of any gifts or hospitality offered. All information shall be submitted to IndustryRelations@ncia.nato.int within 30 business days of the event.

9. Post-Employment Restrictions

- 9.1** Suppliers shall be aware that NCIA internal policies prohibit NCIA personnel with decision-making authority over contract awards or primary project oversight from accepting employment, consultancy, or other professional engagements with any Supplier with whom they were directly involved during the two (2) years preceding their departure from NCIA.
- 9.2** NCIA reserves the right not to engage former NCIA personnel as consultants, contractors, or commercial counterparts nominated by a Supplier. Exceptions may be granted at the discretion of NCIA's General Manager, provided that applicable rules on double remuneration are observed. These restrictions are designed to protect NATO-sensitive information and to prevent the transfer of undue competitive advantage to Suppliers.

IV DISCLOSURE AND REPORTING OBLIGATIONS

NCIA upholds the highest standards of integrity, and its mission must not be compromised by actual or perceived impropriety. Suppliers play a key role in maintaining these standards and are required to report any behaviour that may breach this Code. NCIA provides reporting channels and welcomes full cooperation to foster transparency, accountability, and ethical conduct.

10. Supplier Disclosure and Reporting

- 10.1** Suppliers holding an active contract with NCIA shall promptly report any known or suspected non-compliance with this Code to the NCIA Contracting Officer responsible for the contract. Any such disclosure, together with steps taken to remediate the issue, will be considered positively when assessing ongoing or future contracts with the Supplier.
- 10.2** In addition to self-disclosure referred to in provision 10.1 of this Code, Suppliers (current and prospective) shall promptly report any known or suspected instances of fraud, waste, abuse, or other misconduct affecting NCIA resources, or breaches of this Code, regardless of who is

involved (e.g., NCIA personnel, other Suppliers, subcontractors, or third parties). Examples of reportable concerns include, but are not limited to:

- a. Irregularities in bidding or procurement processes;
- b. Collusive practices (e.g., price fixing);
- c. Corruption and bribery;
- d. Manipulation of technical or contractual specifications to favour particular parties;
- e. Falsification or misrepresentation of records, credentials, or data;
- f. Misrepresentation of qualifications, experience, or capabilities;
- g. Undisclosed or improperly managed conflicts of interest.

10.3 Reports referred to under provision 10.2 of this Code shall be submitted in good faith to integrityline@ncia.nato.int. All reports, whether submitted anonymously or not, will be treated confidentially. To enable effective investigation and follow-up, Suppliers are encouraged to provide as much factual detail as possible, including points of contact where available.

4. TAXES AND DUTIES [MAY 2026]

(a) The Purchaser, by virtue of its status under the terms of Article IX and X of the Ottawa Agreement (publicly accessible on NATO's website under Home>About us>Official texts and resources>Official texts>[Agreement](#)) is exempt from all direct taxes (including VAT) and all customs duties on merchandise imported or exported.

(b) The Contractor agrees to verify prior to issuance of any invoice and in consultation with the Purchaser, whether in the nation where the VAT would be due, the Purchaser is exempt from VAT at source or is entitled to claim reimbursement of VAT.

(c) Where the transaction is exempt from VAT at source, the Contractor shall exclude VAT from the invoice. The Purchaser will provide a VAT exemption certificate, as appropriate, at the point of the issuance of the Contract. In addition, the Contractor shall include on the invoice the statement at Clause GTC A.3.4(c)(1) and the appropriate country reference at GTC A.3.4(c)(2) below:

(1) *'It is certified that the Hardware, Services, or Software listed are being purchased for official use by the North Atlantic Treaty Organization and shall be supplied free of VAT in accordance with'; and*

(2) The appropriate country reference:

(i) For Contractors from Belgium:

(In French) *'Exemption de la TVA Article 42, § 3, alinéa 1er, 4°, du Code de la TVA. Décision ministérielle ET 121.600/A12/LCZ du 02 décembre 2021'.*

(In Dutch) *'Vrijstelling van BTW. Artikel 42, § 3, eerste lid, 4°, van Btw-Wetboek. Ministeriële beslissing ET 121.600/A 12/LCZ van 02 December 2021.'*

(ii) For Contractors from other European Union (EU) countries: *'Article 151 from the EU Council Directive 2006/112/EC and Article 13 from the EU Council Directive 2008/118/EC'.*

(iii) For Contractors from non-EU countries: *'Article IX and X of the Ottawa Agreement, dated 20 September 1951'.*

(iv) For Contractors from the United Kingdom:

(A) The invoice must also include the following statement, according to which entity the purchase is for:

(1) *'I hereby certify that the goods and services listed are being purchased for official*

use by the North Atlantic Treaty Organization and should be supplied free of VAT in accordance with the agreement with HMRC (reference PRIV 59/16)'; or

(2) 'I hereby certify that the goods and services listed are being purchased on behalf of the HQ Allied Maritime Command for official use by the North Atlantic Treaty Organization and should be supplied free of VAT in accordance with the agreement with HMRC (reference PRIV 59/16)'.

- (d) Outside of Clause GTC A.3.4(c) above, the Contractor will cooperate with the Purchaser to provide all necessary documentation to ensure Purchaser obtains the VAT exemption.

5. PARTICIPATING NATION [MAY 2026]

- (a) Unless prior written authorization of the Purchaser has been obtained, all goods, works, and services shall be procured from vendors from Participating Nations, and vendors from non-Participating Nations shall be excluded from serving as a Contractor or Subcontractor.
- (b) The Contractor requires the prior written authorization of the Purchaser prior to involving personnel, at any tier, holding a nationality of a non-NATO Member nation in the execution of the Contract. This requirement applies irrespective of the other nationalities held by the individual in question.
- (c) The Contractor requires the prior written authorization of the Purchaser prior to providing access to any information related to the Contract, and its execution (including all Deliverables, Equipment, Services, Software) to personnel, at any tier, holding a nationality of a non-NATO Member nation. This requirement applies irrespective of the other nationalities held by the individual in question.
- (d) The Contractor shall not place any Subcontract outside Participating Nations without the prior written authorization of the Purchaser.
- (e) The Contractor shall promptly notify the Purchaser in writing when any Software, Goods or Documentation from suppliers not originating from Participating Nations will be incorporated into the Contract. Such notification shall include the identification of the Deliverables or components concerned, the country of origin and identity of the non-NATO supplier, and any known or reasonably foreseeable restrictions, export controls or security considerations associated with such origin. Failure to notify the Purchaser in due time shall constitute a material breach of the Contract.
- (f) Any modification in the nationality or change of control of the Contractor or its Subcontractor(s) shall be immediately notified in writing to the Purchaser with all necessary details to allow the Purchaser to determine whether the Contractor or its Subcontractors continue to comply with the Clauses above. Non-compliance with this Clause GTC A.3.5, by the Contractor or its Subcontractor, may constitute ground for termination of the Contract under Clause GTC A.4.14 ("Termination for Cause - For Default").

6. SECURITY OF UNCLASSIFIED AND NATO UNCLASSIFIED MATERIALS AND INFORMATION [MAY 2026]

- (a) The Contractor shall comply with the security measures prescribed in NATO Security Policy, by the Purchaser and as applicable, by the National Security Authority (NSA) or Designated Security Authority or Agency (DSA), of each of the NATO Member nations, in which the Contract is being performed or in which the Company is based. The Contractor shall be responsible for the safeguarding of information that is indicated as "NATO Classified" ("NATO Classified information") such as NATO Unclassified (NU), NATO Restricted (NR), NATO Confidential (NC), NATO Secret (NS) and NATO Cosmic Top Secret (CTS), under the "need-to-know" principle, as well as NATO classified and "In Confidence" documentation, material and equipment entrusted to them or generated by them in connection with the performance of the Contract. Further Information can be provided, in detail within the Statement of Work, Contract Security Clause (CSC), Security Aspect Letter (SAL), Project Security Instructions (PSI), as applicable within the contract and according to the contract or project classification given.

- (b) Where necessary the Contractor shall apply relevant classification requirements as designated in Clause GTC A.3.6(a), in the Statement of Work and the Contract Special Terms and Conditions pertaining to NATO Unclassified with exceptions, NATO Restricted and above security requirements.
- (c) The Contractor shall ensure that the substance of this clause is incorporated into all subcontracts arising under this contract, and shall ensure compliance by its subcontractors.

7. CONFIDENTIALITY AND NON-DISCLOSURE [MAY 2026]

- (a) For purposes of this Clause, “Confidential Information” means all material, data and information, tangible or intangible, whether in written, graphic, verbal or electronic form, developed by or disclosed or made available by or on behalf of one Contracting Party (the “Disclosing Party”) to the other Contracting Party (the “Receiving Party”), its employees or representatives under the Contract, and that is commonly considered as being confidential. Confidential Information shall include, without limitation, the terms of the Contract, business information or financial information, processes, commercial and strategic information, technical data or Specifications, drawings. The notion of “Confidential Information” in this Clause does not refer to NATO classified information (which is as such governed by Clause GTC A.3.6), but to information that is otherwise considered valuable or sensitive.
- (b) Notwithstanding the above, Confidential Information shall not include any information that the Receiving Party can show based on written evidence:
 - (1) was already known to the Receiving Party without any obligations of confidentiality prior to receipt from the Disclosing Party;
 - (2) was generally available to the public or otherwise part of the public domain at the time of its disclosure to the Receiving Party;
 - (3) became generally available to the public or otherwise part of the public domain after its disclosure, other than through any act or omission of the Receiving Party in breach of any obligation of confidentiality;
 - (4) was disclosed to the Receiving Party, other than under an obligation of confidentiality, by a third party who had no obligation not to disclose such information to others; or
 - (5) was independently discovered or developed by the Receiving Party without the use of Confidential Information.
- (c) Confidential Information shall not be deemed to be in the public domain merely because any part of said information is embodied in general disclosures or because individual features, components, or combinations thereof are now, or become, known to the public.
- (d) Without prejudice to other obligations imposed by NATO Security regulations mentioned in Clause GTC A.3.6, each Contracting Party will treat Confidential Information of the other Contracting Party as strictly confidential, will not disclose or make it in any way available to any third parties without the other Party's prior, written and explicit consent, and will use it only for the performance of the Contract or the use of Deliverables. This does not prevent either Party from submitting Confidential Information of the other Party in any legal proceedings against the other Party if that were necessary. Furthermore, this does not prevent the Purchaser from reporting on the Contract, including the Contract documents, implementation and pricing, to the NATO Committee and to the NATO Member Nations or the agents appointed for this purpose.
- (e) Each Party will only on a strict “need-to-know” basis, disclose and make available Confidential Information of the other Party only to those of its employees and contractors or consultants who are directly involved in the performance of the Contract and provided that they are subject in writing to a similar obligation of confidentiality as set forth in the Contract.

- (f) If one of the Contracting Parties is compelled, by reason of legal proceedings or administrative procedures, or any other obligation provided by applicable law, to disclose Confidential Information of the other Party, it shall use all reasonable means to obtain confidential treatment of such information, it shall limit the disclosure of Confidential Information to what is legally required and, insofar allowed by law, shall give prior notice to the other Party to enable it to seek means of protection.
- (g) Either Party shall promptly return to the other Party, upon its request, any and all records, notes, and other written, printed, tangible materials in its possession pertaining to Confidential Information. After termination of the Contract, each Party shall promptly return or destroy Confidential Information, including all copies thereof, any and all records, notes, and other written, printed, tangible materials in its possession pertaining thereto, and it shall confirm in writing that it and all persons to whom it disclosed Confidential Information have returned such information to the other Party or destroyed all such Confidential Information including copies. However, insofar as access to certain Confidential Information remains useful in view of the legitimate rights of a Contracting Party, such Party, acting in good faith, will be entitled to object return or destruction and the Parties will try to come to a reasonable agreement on that matter.
- (h) The obligations under this Clause GTC A.3.7 shall apply during the Term of the Contract and five (5) years after the termination thereof, for whatever reason, without prejudice to other obligations imposed by applicable NATO Security regulations and without prejudice to the obligations of the Contracting Parties to respect Intellectual Property Rights for the term of their existence.
- (i) The Contracting Parties acknowledge that compliance with the obligations imposed by the terms of this Clause is of the essence and that material failure to abide to these terms shall constitute sufficient grounds for the termination of the Contract for default.

(j) Release of Information

- (1) Except as otherwise specified elsewhere in the Contract or to the extent that it is legally mandatory for the Contractor to do so, the Contractor or their employee shall not, without prior authorization of the Purchaser, release to third parties any information pertaining to the Contract, its subject matter, performance there under or any other aspect thereof. Any such release shall comply with Clause GTC A.3.6 ("Security of Unclassified and NATO Unclassified Materials and Information").
- (2) The Contractor agrees that it cannot issue any press release, public announcement, advertisement, or any other form of public disclosure on any media or platform, containing details about the contractual relationship or Services provided under the Contract without the prior written consent of the Purchaser. The Contractor shall request for such consent at the least seven (7) Days prior to the planned issuance. The Purchaser reserves the right to approve, request modification or reject any proposed release. The consent of the Purchaser shall cover both the opportunity and the content of the proposed release.
- (3) The Contractor shall not use the NATO or the NCIA logo and emblems without prior written authorization from the Purchaser. The Contractor shall request for such authorization, at the least seven (7) Days prior to the planned publication and shall fully describe the proposed use of the logo including by providing the publication, mock-up detailing the intent, visual, text, or platform. The Purchaser may reject any such use without the need to provide any reason. If authorized, the Contractor shall ensure that the NATO or the NCIA logo is displayed in accordance with the Purchaser's branding guidelines (to be provided upon request), maintaining its integrity and not altering its design, colors or proportions. The Contractor shall request the Purchaser's approval prior to referencing the Purchaser in customer lists or referral statements. The Contractor understands that Purchaser may not endorse any product, services or software.
- (4) This provision shall remain in effect until the completion or termination of the Contract, and shall cease to apply to any particular piece of information once that information becomes public knowledge other than through an act, default or omission of the Contractor or its

Subcontractors.

- (5) Failure to comply with this Clause may constitute grounds for contract termination at the full discretion of the Purchaser.

8. AUDIT AND ACCESS TO RECORDS [MAY 2026]

(a) Notwithstanding any specific audit or inspection provisions set forth in the Contract, the Purchaser reserves the right to audit the Contractor's provision of the Supplies and Services and compliance with the applicable laws and with its obligations under the Contract for the following purposes:

- (1) To verify the accuracy of invoices and charges (and proposed or actual variations to them), any cost reduction and income generation initiatives carried out pursuant to Supplies or Services improvement, or the costs of all suppliers (including Subcontractors) of the Supplies or Services;
- (2) To review the integrity, confidentiality and security of the Purchaser's Data;
- (3) To review the Contractor's compliance with mandatory data protection regulations and any other legislation applicable to the Services;
- (4) To review the Contractor's compliance with its obligations under a Service Level Agreement (SLA);
- (5) To review any books of account kept by the Contractor in connection with the provision of the Supplies or Services;
- (6) To carry out an examination of the economy, efficiency and effectiveness with which the Purchaser has used its resources;
- (7) To verify the accuracy and completeness of any management information delivered or required by the Contract;
- (8) To inspect the Purchaser's assets, including the Purchaser's IPRs, equipment, facilities and maintenance, for the purposes of ensuring that the Purchaser's assets are secure and that any register of assets is up to date.

(b) The Purchaser shall use its reasonable endeavor to ensure that the conduct of each audit does not unreasonably disrupt the Contractor or delay the provision of the Services.

(c) At the written request of the Purchaser, the Contractor shall promptly provide to the Purchaser, its representatives, external advisers or any regulatory authority, and auditors (including internal audit staff) appointed by them, access to, or copies of, the records or any other documentation, correspondence or information relating to the Services. The Contractor agrees it shall also permit and contribute to audits, including inspections and interviews, conducted by the auditors for the purpose of demonstrating compliance by the Contractor with its obligations under applicable laws and with its obligations under the Contract, as well as general security and contingency practices and procedures, including security breaches or attempted breaches. The Purchaser shall be limited to no more than one request per year under this Clause, except in case irregularities have been found or may reasonably be suspected.

(d) The Purchaser shall endeavor to (but is not obliged to) provide a notice at least fifteen (15) Days before its intention to conduct an audit.

(e) On the provision of reasonable notice by the Purchaser (save where any fraud, breach of law or security breaches are suspected, in which case no notice shall be required), the Contractor shall provide the Purchaser or the auditors with complete access to the Contractor's facilities, Contractor's personnel, infrastructure, systems, processes, policies or applications, during work hours (save

where any fraud or security breaches are suspected, in which case at any time). The Contractor shall provide the auditors with any assistance that they may reasonably require. The auditors will be bound by confidentiality obligations similar as stated in the Contract. The Contractor shall ensure the same right of audit and right of access to the facilities, infrastructure, systems, processes, policies and applications of their Subcontractors or other providers of infrastructure or services on behalf of the Contractor, by the inclusion in any such contracts of a provision substantially similar as this Clause.

- (f) The Contractor shall allow and support ad hoc spot checks and audits by the Purchaser of any of its supply chain security measures at any of the Contractor's locations and facilities used in the Contractor's supply chain relevant to the Contract.
- (g) The Purchaser or their representative(s) shall continue to have such right of audit until three (3) years after the performance of the Contract has ended. The period of access and examination of records that are not related to cost aspects of a dispute or claim but which relate to issues of fact arising under either proceedings under Clause GTC A.4.21 ("Disputes") or Clause GTC A.4.22 ("Arbitration"), or the settlement of claims made by either Party pursuant to the performance of the Contract, shall continue until such appeals, litigation or claims have been disposed of.
- (h) If following any audit or inspection, the Purchaser considers that the Contractor is not in compliance with the Contract (or any applicable law) in any respect, the Contractor shall, at its own expense and within the period of time specified by the Purchaser (or if no time is specified, as soon as reasonably practicable), remedy the non-compliance. If the Contractor fails to bring the Supplies or Services into compliance, the Purchaser shall be entitled to terminate the Contract pursuant to Clause GTC A.4.14 ("Termination for Cause – For Default"), without prejudice to any other right or remedy that the Purchaser may have under the Contract or by Law.
- (i) If it is determined that the Contractor has overcharged the Purchaser, the Purchaser shall notify the Contractor of the amount of the overcharge and the Contractor shall promptly pay to the Purchaser the amount of the overcharge.
- (j) If required by the Purchaser, the Contractor and the Purchaser shall meet to review and discuss each audit and any changes necessary to the provision of Supplies or Services arising as a result.
- (k) The audits shall be conducted at the Purchaser's cost. However, any support of the Contractor shall be at their own cost. If the audit demonstrates material irregularities, such as a breach of laws or breach of security or data protection requirements, or overcharging beyond a margin of five percent (5%) of the relevant price component, the Purchaser may claim a refund of the reasonable audit costs.
- (l) As an alternative, the Purchaser may at its choice rely on any reports, attestations or certifications of competent third parties in lieu of an audit.
- (m) Any dispute in relation to the audit process or audit report shall be discussed in accordance with Clause GTC A.4.21 ("Disputes").
- (n) The provisions of this Clause GTC A.3.8 shall be without prejudice to any other rights or remedies to which the Purchaser may be entitled whether under the Contract or otherwise arising from the Contractor's default.
- (o) Notice of Authorized Disclosure of Information for Mandated NATO Third Party Audits by Resource Committees
 - (1) Definitions. As used in this Clause GTC A.3.8(o):
 - (i) "**Resource Committees**" means committees under the North Atlantic Council (NAC) that are responsible, within the broad policy guidance provided by the Resource Policy and Planning Board (RPPB) on matters of resource allocation, for the implementation of the NATO Security Investment Programme (NSIP) or Budget/Civil budgets.

(ii) **“Mandated Third Party Audits”** means audits mandated by a Resource Committee.

(iii) **“Third Party Auditor”** means an independent, external audit body for NATO such as the International Board of Auditors for NATO (IBAN) or an appointed private contractor (including its experts, technical consultants, Subcontractors, and suppliers) providing audit support under a Resource Committee Appointment based on an agreed mandate.

(iv) **“Sensitive Information”** means information of a commercial, financial, technical, proprietary, or privileged nature. The term does not include information that is lawfully, publicly available without restriction.

(2) As part of Mandated Third Party Audits, the Purchaser may disclose to Resource Committees or Third Party Auditor, for the sole purpose of audit support activities, any information, including Sensitive information, received:

(i) Within or in connection with a bid, quotation or offer; or

(ii) In the performance of or in connection with a contract.

(3) The Purchaser may provide the same information as per the request of Resource Committees.

(4) **Flow-down.** The Contractor shall include the substance of this Clause, in all Subcontracts, including Subcontracts for commercial items.

9. EXPORT CONTROL COMPLIANCE [MAY 2026]

(a) The Contractor shall comply with, and process authorization or licenses pursuant to, all applicable laws and regulations governing export control.

(b) The Contractor acknowledges that it has indicated in the Contract or its offer, the Equipment, Services or Software that is subject to export control regulations.

(c) The Contractor shall inform the Purchaser of any item delivered that is subject to export control and provide, as applicable, the following information: the supplier part number, the manufacturer part number, the customs tariff number (Harmonized System (HS) code), the country of origin, the classification code (e.g. Export Control Classification Number (ECCN)/United States Munitions List (USML)), a copy of the export control license, the list of countries covered by the export license.

(d) Export Control Compliance Documentation

(1) The Contractor has submitted all relevant draft export control compliance documentation prior to Contract award, the execution of which by the Purchaser is required by National Law or regulation. If any export control compliance documentation are introduced after Contract award, and it is determined that the Contractor failed to disclose the requirement for the execution of such agreement from the Purchaser prior to Contract signature, the Purchaser may terminate the Contract for Default, in accordance with Clause GTC A.4.14 (“Termination For Cause - For Default”).

(2) Export control compliance documentation, the execution of which by the Purchaser is required by National Law or regulation and that has been identified by the Contractor prior to the signature of the Contract, but have not yet been finalized and issued by the appropriate governmental authority, are subject to review by the Purchaser. If such export control compliance documentation are contrary to cardinal conditions of the signed Contract between the Parties, and the Purchaser and the appropriate governmental authority cannot reach a mutual satisfactory resolution of the contradictions, the Purchaser reserves the right to terminate the Contract and the Parties agree that in such case the Parties mutually release each other from a claim for damages and costs of any kind, and any payments received by the Contractor from the Purchaser will be refunded to the Purchaser by the Contractor.

10. PRIVILEGES AND IMMUNITIES [MAY 2026]

- (a) Nothing contained in or relating to the Contract shall be deemed to constitute a waiver of any of the privileges and immunities enjoyed by the Purchaser or as submitting the Purchaser to any national court jurisdiction.

END OF G.A.3: REGULATORY TERMS AND CONDITIONS

GTC A.4. CHANGE AND BREACH OF CONTRACT TERMS AND CONDITIONS

1. OPTIONS [MAY 2026]

- (a) The Purchaser's liabilities and obligations under the Contract at the time of its signature are limited in scope and amount to performance and deliverables associated with the basic Contract.
- (b) Nevertheless, the Purchaser may require additional delivery of Supplies or Services, through the exercise of an Option.
- (c) As such, the Purchaser reserves the unilateral right to exercise an Option at its own discretion.
- (d) The exercise of an Option will be unilaterally triggered by the Purchaser, through a written "Notification of Option Exercise" letter at least sixty (60) Days before the contract expires, unless a different number of days is inserted in the Contract Special Terms and Conditions.
- (e) Subsequently, a unilateral contract modification for monetary evidence or administration purposes will be issued within thirty (30) Days before the contract expires, unless a different number of Days is inserted in the Contract Special Terms and Conditions.
- (f) The Contractor acknowledges and agrees that there are no obligations under the Contract for the Purchaser to exercise any Option, and that the Purchaser bears no liability should it decide not to exercise it (either totally or partially).
- (g) In no event shall the Contractor engage in the performance of any Option or part thereof prior to receiving a formal notice to exercise the Option sent by the Purchaser to the Contractor.

2. PRICING OF CHANGES, MODIFICATIONS, AND CLAIMS [MAY 2026]

- (a) Contractor's price proposals for Contract Changes, Modifications, Claims, or Termination Settlement, shall be priced in accordance with the:
 - (1) Purchaser's Pricing Principles; or
 - (2) The national government pricing rules and regulations for the Contractor's own country, where in force.
- (b) The Contractor shall provide cost information accompanied by appropriate substantiation as required by the Purchaser in accordance with Purchaser's Pricing Principles, or such other formats as may be agreed between the Parties.
- (c) With respect to Clause GTC A.4.2(a), when the price or price adjustment is based on adequate price competition, established catalogue or market price of commercial items sold in substantial quantities to the general public, or prices set by law or regulation, the Contractor shall be responsible for the substantiation of such cases to the satisfaction of the Purchaser.
- (d) For the purposes of verifying that the pricing information submitted in conjunction with Clause GTC A.4.2(a). are accurate, complete and current, the Purchaser shall, until the expiration of three (3) years from the date of final payment of all sums due under the Contract have the right of access to examine the Contractor's books, records, documents and other supporting data in accordance with Clause GTC A.3.8 ("Audit and Access to Records"). This may permit adequate evaluation and verification of the pricing information submitted along with the computations and projections used therein which were available to the Contractor as of the date of the Contractor's price proposal. If so required, the Contractor shall require its Subcontractors to provide to the Purchaser their pricing information and a Pricing Information Declaration. The Contractor will ensure that access is granted to Subcontractor's facilities and records for the purposes of such verification.
- (e) If any price, including profit, negotiated in connection with the Contract was proposed, taking any of the following below into account, then the price or cost shall be adjusted accordingly and the

Contract shall be modified in writing as may be necessary to reflect such adjustment:

- (1) the Contractor furnished pricing information which was not complete, accurate and current as certified in the Contractor's Pricing Information Declaration provided in accordance with Clause GTC A.4.2(d);
 - (2) a Subcontractor furnished pricing information which was not complete, accurate and current as certified in the Subcontractor's Pricing Information Declaration;
 - (3) a Subcontractor or prospective Subcontractor furnished pricing information which was required to be complete, accurate and current and to be submitted to support a Subcontract cost estimate furnished by the Contractor but which was not complete, accurate and current as of the date certified in the Contractor's Pricing Information Declaration; or
 - (4) the Contractor or a Subcontractor or prospective Subcontractor furnished any data, not within GTC A.4.2(e)(1) through GTC A.4.2(e)(3), which, as submitted, was not complete, accurate and current;
- (f) At the time of negotiating any price, including profit, or any Claim, which is based upon the submission of pricing information by the Contractor, the Contractor shall be required to submit a Pricing Information Declaration ("Declaration").
- (g) Such a Declaration will certify that, to the best of the Contractor's knowledge and belief, pricing information submitted to the Purchaser in support of any proposal for a price, price adjustment or Claim, are accurate, complete and current, at the time of the completion of the negotiations or, in the case of a Claim, at the time of the submission of the Claim.
- (h) All such Declarations shall be in the format shown below (and also as a standalone template provided by the Purchaser upon request) and shall be dated and signed by a responsible officer of the company:

PRICING INFORMATION DECLARATION

To the best of my knowledge and belief, the pricing information or cost build-up information submitted, either directly or by specific written identification, in support of *[identify proposal / contract action / modification]* is accurate, complete, and current as of *[date]*, with respect to the factual information available to the Contractor at that time.

This declaration does not apply to the Contractor's judgment regarding estimates of future costs, nor does it represent a guarantee of future performance outcomes.

Name of Company

Name of Authorized Representative

Title

Title of Signatory

Date of Signature

- (i) The Contractor shall insert the substance of this Clause GTC A.4.2(h) in each Subcontract.
- (j) For all additional or follow-up agreements for Supplies or Services which are to be delivered to the

Purchaser without competition, the Contractor shall offer prices on a “Preferred Customer” basis, that is offered prices which are as favorable as those extended to any Government, Agency, Company, Organization or individual purchasing or handling similar quantities of Supplies, Parts or Services covered by the Contract under similar conditions. However, the Purchaser recognizes that the terms and conditions of commercial sales vary and there may be legitimate reasons why the “Preferred Customer” price is not achieved. In the event that, prior to any delivery under the Contract, the Contractor offers any of such items in substantially similar quantities to any customer at prices lower than those set forth in the Contract, the Contractor shall so notify the Purchaser and the prices of such items shall be correspondingly reduced by an adjustment to the Contract. Price in this sense means the “Base Price” prior to applying any bonus, export tax reduction, turnover tax exemptions and other reductions based on National Policies.

(k) Purchaser's Pricing Principles

(1) General

- (i)** With regard to all actions included in Clause GTC A.4.2 (“Pricing of Changes, Modifications, and Claims”), the Parties agree that the Purchaser's Pricing Principles contained herein shall govern.
- (ii)** As may be requested by the Purchaser, the Contractor shall provide documentation that the standards or principles employed in the submission of pricing information are in conformance with governing national policies and regulation. The Contractor, when submitting a price proposal based upon national standards and regulations, shall provide a point of contact within the national body governing such standards and regulations in order to allow Purchaser verification and audit.
- (iii)** Where such conformance cannot be demonstrated to the satisfaction of the Purchaser, the Purchaser's Pricing Principles will govern.
- (iv)** The Contractor shall clearly state whether national standards and rules or the Purchaser's Pricing Principles and formats are the basis for the price proposal.
- (v)** Whether national standards or Purchaser pricing principles are applied, all cost and pricing data shall be verifiable, factual and include information reasonably required to explain the estimating process.
- (vi)** The Contractor shall also incorporate provisions corresponding to those mentioned herein in all subcontracts, and shall require price and cost analysis provisions be included therein.

(2) Purchaser's Pricing Principles

(i) Allowable Cost

- (A)** A cost is allowable for consideration by the Purchaser if the following conditions are fulfilled:
- (B)** it is incurred specifically for the Contract or benefits both the Contract and other works or is necessary to the overall operation of the business although a direct relationship to any particular product or service cannot be established and is allocated to them in respective proportion according to the benefit received.

(ii) Direct Costs

- (A)** A direct cost is any cost which can be identified specifically with a particular cost objective as generally accepted. Direct costs are not limited to items which are incorporated in the end product as material or labor.

(iii) Indirect Costs

- (A) An indirect cost is one which is not readily subject to treatment as a direct cost. When presented these costs shall be accumulated in logical cost groupings in accordance with sound accounting principles and the Contractor's established practices. An indirect cost may be allocated to more than one final cost objective. An indirect cost shall not be allocated to a final cost objective if other costs incurred for the same purpose, in like circumstances, have been included as a direct cost of that or any other final cost objective. Such costs shall be presented as overhead rates and be applied to each related direct cost grouping.
- (iv) The Contractor shall specify the allocation of costs to either of the cost groupings. The method by which costs are accumulated and distributed as part of direct or indirect costs cannot be modified during the duration of the Contract.
- (v) It is reasonable and expedient in its nature and amount and does not exceed that which would be incurred by an ordinary prudent person in the conduct of competitive business.
- (vi) It is not liable to any limitations or exclusion as to types or amounts of cost items as set forth herein.
- (vii) The Purchaser will review other costs presented against the Contract and will determine if they would be allowable.

(viii) Unallowable Costs

- (A) In general all costs which cannot be shown by the Contractor to be directly or indirectly of benefit to the Contract are totally unallowable. Examples of such costs are, among others:
- (B) Advertising costs;
- (C) Costs of remuneration, having the nature of profit sharing;
- (D) Costs of maintaining, repairing and housing idle and excess facilities;
- (E) Fines and penalties as well as legal and administrative expenses resulting from a violation of laws and regulations;
- (F) Losses on other contracts or on expected follow-on contracts;
- (G) Costs incurred for the creation of reserves for general contingencies or other reserves (e.g. for bad debts, including losses);
- (H) Losses on bad debts, including legal expenses and collection costs in connection with bad debts;
- (I) Costs incurred to raise capital;
- (J) Gains and losses of any nature arising from the sale or exchange of capital assets other than depreciable property;
- (K) Taxes on profits;
- (L) Contractual penalties incurred;
- (M) Commissions and gratuities;
- (N) Interest on borrowings.

(ix) Rates and Factors

- (A) The Contractor shall inform the Purchaser of their rates and factors on the basis upon which they were computed.
- (B) If the Contractor's rates and factors for similar contracts placed with national or international public services have not been established or approved by a government agency or an agency accepted by their government, the Contractor shall provide the necessary data to support the proposed rates.
- (C) The term "provisional" used in the title of a rate or factor means a tentative rate established for interim billing purposes pending negotiation and agreement to the final rate or factor.

- (D) A rate or factor is predetermined if it is fixed before or during a certain period and based on (estimated) costs to be incurred during this period. A rate or factor is post-determined if it is fixed after a certain period and based on costs actually incurred during this period. Pre-determined rates or factors shall be agreed upon as final rates whenever possible; otherwise the provisions of Clause GTC A.4.2(k)(2)(ix)(C) above shall apply pending agreement to post-determined rates or factors.
- (E) Such rates or factors shall be determined on the basis of Contractor's properly supported actual cost experience.
- (F) If the rates or factors of the Contractor for similar contracts placed by national or international public services have been established or approved by a government agency or an agency accepted by their government and the Contractor proposes the application of these rates, they shall state the name and address of the agency which has accepted or approved the rates and the period for which they were established. If they propose rates which vary from the rates mentioned above, they shall, furthermore, provide a justification for the difference.

(x) Profit or Benefit

- (A) Over the entire lifecycle of a given acquisition, Profit or Benefit may be subject to negotiation.
- (B) Subcontracting profit or benefit amounts are dependent upon the size, nature and oversight needs of the Subcontract(s) the prime Contractor will use for work performance period.
- (C) Profit or benefit is considered by the Purchaser to be directly related to the anticipated risk of the Contractor during the performance of the Contract.

3. CHANGES [MAY 2026]

- (a) The Purchaser may at any time, by written order of the Contracting Authority designated or indicated to be a change order ("Change Order") make changes within the general scope of the Contract ("Change"), including without limitation Changes:
 - (1) In the Specifications (including drawings and designs, security requirements, compatibility and interoperability requirements);
 - (2) In the method and manner of performance of the work, including engineering standards, quality assurance, configuration management procedures, Service Levels;
 - (3) In the Purchaser-furnished property or services;
 - (4) In Marking and method of shipment and packing;
 - (5) In place of delivery;
 - (6) Directing acceleration in the performance of the Contract.
- (b) The Contracting Parties recognize that Change is an inevitable part of delivering Supplies and Services and that the value resulting from the Contract can be highly dependent on the ability to apply Changes in an evolving context. The Contractor will endeavor to accomplish any reasonable required Changes without or with minimal increase of the costs wherever this is reasonably practicable, and it will ensure that all Changes proposed by the Purchaser are discussed and managed in a constructive manner.
- (c) The Purchaser will issue a Change Order describing the Change to the Contract.
- (d) If any Change under this Clause causes an increase in the Contractor's cost of, or the time required for, the performance of any part of the Supplies or Services under the Contract, the Contractor shall make a request for an equitable adjustment through a written proposal to the Purchaser with the following information at a minimum:

- (1) A description of the proposed Change;
 - (2) A list of Deliverables required for executing the Change;
 - (3) A timetable for execution;
 - (4) A correct and reasonable estimate of the efforts and the cost of the proposed change, or any impact on the estimated efforts or price of the Contract if the proposed change would result in a decrease in the Contractor's cost or timetable;
 - (5) Any relevant Acceptance criteria;
 - (6) Any specific risks related to the proposed Change.
- (e) The Contractor shall submit this proposal within thirty (30) Days after receipt of a written Change Order unless this period is extended by the Purchaser. If the Purchaser can demonstrate that urgent circumstances require an earlier assessment of the proposed Change, this period may be reasonably reduced. If the nature of the Change Order does not require a detailed assessment as set forth here above, the Purchaser may require a simplified proposal.
- (f) If the Purchaser reasonably believes that any such Change Order causes a decrease in the Contractor's cost of, or the time required for, the performance of any part of the Work under the Contract, the Purchaser will submit a proposal for adjustment at the time of the issuance of the Change Order or thereafter.
- (g) Where the cost of property that is made obsolete or in excess as a result of a Change is included in the Contractor's claim for equitable adjustment, the Purchaser shall have the right to prescribe the manner of the disposition of such property.
- (h) Any Change agreed to between the Contracting Parties in accordance with this Clause GTC A.4.3 shall be considered a binding agreement and will constitute a modification to the Contract.
- (i) The Purchaser reserves the right to reject the introduction of the Change, after the evaluation of the Change proposal, even if the Purchaser initiated such Change.
- (j) Failure to agree to any requested equitable adjustment shall be a dispute within the meaning of Clause GTC A.4.21 ("Disputes"). However, nothing in this Clause shall excuse the Contractor from proceeding with the Contract as changed, unless the required Change would be manifestly unreasonable.
- (k) No proposal for adjustment by the Contractor for an equitable adjustment shall be allowed if asserted after final payment and Acceptance under the Contract.
- (l) Any other written or oral order (which, as used in this Clause GTC A.4.3(l) includes direction, instruction, interpretation, or determination) from the Purchaser that causes a Change shall be treated as a Change Order under this Clause, provided, that the Contractor gives the Purchaser a written notice within thirty (30) Days after receipt of such order stating:
- (1) The date, circumstances, and source of the order;
 - (2) That the Contractor regards the order as a Change Order; and
 - (3) A detailed analysis of the impact of the Change as stated above. Such order will only be accepted by the Purchaser as a Change Order if the Purchaser confirms in writing that it must be regarded as a Change Order. The timely written notice requirement, as detailed above, remains in force in all cases, even where, for example, the Purchaser has positive knowledge of the relevant facts.
- (m) Except as provided in this Clause, no order, statement, or conduct of the Contracting

Officer shall be treated as a change under this Clause or entitle the Contractor to an equitable adjustment.

4. CLAIMS [MAY 2026]

(a) A claim by the Contractor shall be made in writing to the Purchaser's Contracting Authority. Claims must be specifically identified as such and submitted within:

- (1) The time specified in the Clause under which the Contractor alleges to have a Claim. If no time is specified in the Clause under which the Contractor intends to base its Claim, the time limit will be sixty (60) Days from the date the Contractor has knowledge or should have had knowledge of the facts on which the Contractor bases its Claim; and
- (2) Before final payment or before the release of any Performance Guarantee, whichever occurs last. This will only apply to those Claims for which the Contractor could not have had earlier knowledge and which were not foreseeable.

(b) The Contractor will be foreclosed from its Claim unless they present:

- (1) Complete documentary evidence;
- (2) Justification, and;
- (3) Costs.

(c) Claims must be supported by specifically identified evidence (including applicable historical and planned cost and production data from the Contractor's books and records). Opinions, conclusions or judgmental assertions not supported by such evidence will be rejected by the Purchaser.

(d) An individual breakdown of cost is required for each element of Contractor's Claims at the time of claim submission or for any material revision of the Claim.

(e) The Contractor shall provide the certification specified below when submitting any Claim:

- (1) *'I certify that the claim is made in good faith; that the supporting data are accurate and complete to the best of my knowledge and belief; that the amount requested accurately reflects the adjustment for which the contractor believes the Purchaser is liable; and that I am duly authorized to certify the claim on behalf of the Contractor'.*

(f) The certification may be executed by any person authorized to bind the Contractor with respect to the claim.

(g) Failure to comply with any of the above requirements will result in automatic forfeiture of the Claim. This foreclosure takes effect in all cases and also where, for example, the Claim is based on additional orders, where the facts were known to the Purchaser, where the Claim is based on defective specifications provided by the Purchaser, or in case of alleged misrepresentation by the Purchaser.

(h) The Purchaser will render a decision on any Claim submitted by the Contractor. The decision will be based on an assessment and evaluation of the facts presented by the Parties. For claims under EUR forty thousand (€40,000) or equivalent value in other currencies, the Purchaser will endeavor to render a decision within thirty (30) Days from receipt of the Claim. For Claims over EUR forty thousand (€40,000), the Purchaser will notify the Contractor of the approximate date on which the decision is expected to be rendered. This date may be extended by the Purchaser in order to fully gather and evaluate the facts surrounding a Claim, but the Purchaser may not unreasonably extend such an evaluation period. The decision of the Purchaser will be conclusive.

(i) The Contractor shall proceed diligently with the performance of the Contract or any orders under it, pending final resolution of any request for relief, claim appeal, or action arising under the contract or any orders under it, and comply with any decision of the Purchaser.

5. RELEASE OF CLAIMS [MAY 2026]

(a) Prior to final payment under the Contract, the Contractor and each assignee under the Contract shall execute and deliver a release discharging the Purchaser, its officers, agents and employees from all liabilities, obligations and claims arising out of or under the Contract subject only to the following exceptions:

- (1) specified claims in stated amounts or in estimated amounts where the amounts are not susceptible to exact statement by the Contractor;
- (2) claims for reimbursement of costs (other than expenses of the Contractor by reason of their indemnification of the Purchaser against patent liability) including reasonable expenses incidental thereto, incurred by the Contractor under the provisions of the Contract relating to patents.

6. MODIFICATION OF THESE GENERAL TERMS AND CONDITIONS [MAY 2026]

(a) The Contract shall not be modified or extended except by a written agreement duly signed by all of the Parties hereto, or otherwise by any mechanism that is explicitly provided in the Contract.

7. PURCHASER DELAY OF CONTRACTOR PERFORMANCE [MAY 2026]

(a) If the performance of all or any part of the Supplies or Services is delayed or interrupted by an act of the Purchaser (including any third party duly authorized to act on behalf of Purchaser) in the administration of the Contract, which act is not expressly or implicitly authorized by the Contract, or by the Purchaser's failure to act within the time specified in the Contract (or within a reasonable time if no time is specified), an adjustment shall be made for any reasonable and duly proven increase in the cost of performance of the Contract caused by such delay or interruption and the Contract shall be modified in writing accordingly.

(b) A reasonable adjustment shall be made also in the Delivery Dates or Milestone Dates, and any other contractual provision affected by such delay or interruption. However, no adjustment shall be made under this Clause for any delay or interruption:

- (1) to the extent that performance would have been delayed or interrupted by any other cause, including the fault or negligence of the Contractor, a Subcontractor, agent or supplier chosen by the Contractor; or
- (2) for which an adjustment is provided or excluded under any other provision of the Contract (such as, without limitation, a Force Majeure Event).

(c) No claim under this Clause shall be allowed:

- (1) if the Contractor has failed to notify the Purchaser in writing of the act or failure to act, indicating that this act or failure to act will result in a delay or increased costs;
- (2) for any costs incurred more than twenty (20) Days before the Contractor shall have notified the Purchaser in writing of the act or failure to act involved; and
- (3) unless the monetary claim, in an amount stated, is asserted in writing as soon as practicable after the termination of such delay or interruption, but not later than the date of final payment under the Contract.

8. CONTRACTOR NOTICE OF DELAY [MAY 2026]

(a) In the event that the Contractor encounters difficulty in complying with the (Key) Delivery Date(s) or (Key) Milestone Date(s) for whatever reason, the Contractor shall immediately notify

the Contracting Authority in writing, giving pertinent details. This data shall be deemed to be merely informational and shall not be construed as a waiver by the Purchaser of any (Key) Delivery Date(s) or (Key) Milestone Date(s), or of any rights or remedies provided by law or under the Contract.

- (b) Notwithstanding the above the Contractor shall be deemed to be delayed without notice from the Purchaser and only by simple expiry of the due date.

9. DELAY AND LIQUIDATED DAMAGES [MAY 2026]

- (a) If the Contractor fails to successfully achieve a binding Delivery Date or Milestone Date specified in the Contract, and the delay is not excusable under Clause GTC A.4.12 ("Force Majeure"), the Purchaser reserves the right to consider it a default.
- (b) However, if the delay does not have a material negative impact on the activities of the Purchaser or a third party that is considered a beneficiary under the Contract and does not cause a financial loss to the Purchaser or a third party beneficiary, the Purchaser, acting in good faith, will provide an extension of the Delivery Date or Milestone Date that will be reasonable, taking into consideration the importance of the relevant Supplies, the Services or the Deliverable and taking into consideration the impact of the delay on the activities or any expected benefits of the Purchaser or any third party. In order to make an assessment of the circumstances, the Purchaser may issue a letter to the Contractor stating that a potential default exists, and requiring a response from the Contractor within ten (10) Days (or longer if so decided by the Purchaser) when the Contractor shall deliver the Supplies or Services and whether there are circumstances which may be considered excusable delays under Clause GTC A.4.12 ("Force Majeure"). The Purchaser may require the Contractor to fulfil certain reasonable conditions demonstrating progress during the extended period.
- (c) In case of a repeated failure to successfully achieve the extended Delivery Date or Milestone Date, the Purchaser reserves the right to claim a damage compensation calculated as set forth in Clause GTC A.4.9(e), without prejudice to any other rights and remedies that the Purchaser may claim for default under the Contract or by law. Considering the circumstances of the case, the Purchaser may decide at its discretion either to extend the Delivery or Milestone Date again, under certain conditions required by it, either to terminate the Contract if there are sufficient grounds to consider the continued delay as material default. If the Purchaser decides at its discretion to again extend the Delivery or Milestone Date, the Purchaser may decide that the extended Delivery or Milestone Date will be considered as a Key Delivery or Key Milestone Date.
- (d) If the Contractor fails to successfully achieve a Key Delivery or Key Milestone Date specified in the Contract, or a repeatedly extended Delivery or Milestone Date that will be considered a Key Delivery or Key Milestone Date as stated above, it is assumed that the delay causes harm to the Purchaser or any third-party beneficiary under the Contract. The Purchaser may issue a letter to the Contractor stating that a potential default exists, and requiring a response from the Contractor within ten (10) Days (or longer if so decided by the Purchaser) when the Contractor shall deliver the Supplies or Services and whether there are circumstances which may be considered excusable delays under Clause GTC A.4.7 ("Purchaser Delay of Contractor Performance"). After an assessment of the circumstances, the Purchaser may decide either to extend the Key Delivery Date or Key Milestone Date, under certain conditions required by it, either to terminate the Contract in whole or in part if there are sufficient grounds to consider the continued delay as material default. During any extension period granted by the Purchaser, the Purchaser reserves the right to terminate the Contract in whole or in part if the Contractor does not comply with the conditions set forth by the Purchaser or if there are sufficient grounds to believe that such conditions will not be fulfilled.
- (e) Under the circumstances described in Clauses GTC A.4.9(c) and GTC A.4.9(d), the Purchaser is entitled to damage compensation as from the first day after the expiry of the extended Delivery Date or extended Milestone Date or the Key Delivery or Key Milestone Date. Since the actual damage to the Purchaser will be difficult or impossible to determine, in lieu of actual damages, the Contractor shall pay to the Purchaser, for each day of delinquency in achieving the specific delayed deadline or milestone, fixed and agreed liquidated damages of one tenth of one percent (0.1%) per day of the associated payment of the delayed milestone set forth in the Schedule of Payments

provided in the Contract Special Terms and Conditions, until and including the date on which either the relevant part of the Supplies or Services is completed, either the Purchaser terminates the Contract in whole or in part, either the delivery of Supplies or Services is taken over by a third party as set forth in Clause GTC A.4.18 ("Step-In Right"). If no Schedule of Payments is specifically set forth in the Contract Special Terms and Conditions, the liquidated damages will be assessed against the price of the applicable contract line item (CLIN) of the Schedule of Supplies, Services and Prices.

- (f) Liquidated damages shall be payable to the Purchaser from the first day of delinquency and shall accrue at the rate specified in Clause GTC A.4.9(e) to twenty percent (20%) of the value of the specific delayed deadline or milestone. These liquidated damages shall accrue automatically and without any further notice being required. For the total duration of the contract, the cumulative Liquidated Damages shall not exceed fifteen percent (15%) of the total value of the Contract, without prejudice to the right to claim proven additional damage.
- (g) In addition to the liquidated damages referred to above, the Purchaser shall have the possibility of terminating the Contract in whole or in part, at any time when there is sufficient ground to consider the delay as material default as provided in Clause GTC A.4.14 ("Termination for Cause - For Default"). In the event of such termination, the Contractor shall be liable to pay the Damages caused by the delay.
- (h) If the Purchaser is entitled to terminate the Contract in whole or in part, but a third party would be able to execute the Supplies or Services, the Purchaser will have the right to have the Supplies or Services in whole or in part executed and completed by such third party ("Step-In Right", as set out in Clause GTC A.4.18). In such a case, all additional costs caused by the use of a third party shall be considered Damage which must be paid by the Contractor.
- (i) If a Delivery or Milestone Date or Key Delivery or Key Milestone Date is specified in the Contract as an act of Acceptance, Provisional Acceptance or Final Acceptance, but no time of such Acceptance is specified in the Contract, then the (Key) Delivery or (Key) Milestone Date will be deemed to be within a reasonable time after the delivery of the Supplies, the Services or the Deliverable.
- (j) The Contractor shall not be charged with liquidated damages when the delay arises out of causes beyond the control and without the fault or negligence of the Contractor or their Subcontractor as set forth in Clause GTC A.4.12 ("Force Majeure"). In such event, subject to the provisions of Clause GTC A.4.21 ("Disputes"), the Purchaser shall ascertain the facts and extent of the delay and shall extend the time for performance of the Contract when in their judgment the findings of the fact justify an extension.
- (k) If the Contractor fails to successfully achieve Delivery Dates for Supplies or Milestone Dates for Services that are specified as "indicative" or similar formulations, the Contracting Parties may in good faith agree to a reasonable extension of such dates. If the Purchaser believes that there is an unreasonable delay, it may issue a letter to the Contractor stating that an actual or potential default exists and require a response from the Contractor within ten (10) Days (or longer if so decided by the Purchaser) that identifies when the Contractor shall deliver the Supplies or the Services and what circumstances exist which may be considered excusable delays, with reference to GTC A.4.12 ("Force Majeure"). The Purchaser shall evaluate the response provided by the Contractor or, in the absence of a reply within the period set forth by the Purchaser, all relevant elements of the case, and make a reasonable determination within a reasonable period of time that either (a) the Delivery Date may be extended during a certain period of time (period of forbearance) in which the Contractor must show progress and comply with other reasonable conditions set by the Purchaser; either (b) that sufficient grounds exist to terminate the Contract in whole or in part. In case of an extension, the Purchaser may terminate the Contract in whole or in part if the Contractor had not made the required progress or delivery.
- (l) The rights and remedies of the Purchaser under this Clause GTC A.4.9 are in addition to any other rights and remedies provided by law or under the Contract.

10. INDEMNITY [MAY 2026]

- (a) The Contractor will indemnify and hold harmless the Purchaser and its servants or agents, against any liability, loss or damage arising out of or in connection of the Supplies, Services and Deliverables under the Contract.
- (b) The Contractor will indemnify the Purchaser and its servants or agents, against claims made against the Purchaser and its servants or agents, by their personnel, and their Subcontractors (including their personal representatives) in respect of personal injury or death of such personnel or loss or destruction of or damage to the property of such personnel.
- (c) The Contractor will consult with the Purchaser over the handling of any claim or action to which the provisions of this Clause may be relevant and will consult with the Purchaser over the handling of any such claim and conduct of any such action and will not without prior consultation and without the concurrence of the Purchaser settle or compromise any such claim or action.
- (d) In the event of an accident resulting in loss, damage, injury or death arising from negligence or wilful intent of an agent, officer or employee of the Purchaser for which the risk has been assumed by the Contractor, the Contractor shall involve the Purchaser in any investigation into the cause of the accident.

11. CUMULATIVE REMEDIES [MAY 2026]

- (a) Except as otherwise expressly provided in the Contract, all remedies provided for in the Contract shall be cumulative and in addition to and not in lieu of any other remedies available to either Party at law or under the Contract.

12. FORCE MAJEURE [MAY 2026]

- (a) Neither Party shall be liable for any default or delay in the performance of its obligations under the Contract including any performance of, receipt of, or payment for, the Supplies or Services:
 - (1) if and to the extent that the Party demonstrates that performance in accordance with the Specifications of the Contract is impossible and such default or delay is caused by an unforeseeable event, such as fire, flood, earthquake, natural disaster, war, boycott, embargo, riots, civil disorders, terrorism, general labor actions (other than solely by employees of the Contractor or a Subcontractor), acts of public authorities which the Contractor could not reasonably have anticipated, epidemic disease, failure of telecommunications or utilities infrastructure which is not under control of the Contractor or its Subcontractor, or any other unforeseeable cause beyond the reasonable control of such Party (each such event a "Force Majeure Event"); and
 - (2) provided the non-performing Party is without fault in causing such default or delay, and such default or delay could not have been prevented by reasonable precautions and could not reasonably be circumvented by the non-performing Party through the use of alternate sources, workaround plans or other means (including by the Contractor meeting its obligations for performing disaster recovery or business continuity services as provided in the Contract); and
 - (3) taking into consideration the nature and purpose of the Contract, in particular in the event of war, armed conflict, boycott, embargo and similar circumstances, which may imply that in principle, such circumstances should not be deemed unforeseeable, and that the Contractor is obliged to make the necessary arrangements to avoid default or delay caused by such circumstances.
- (b) In case of a Force Majeure Event, the non-performing Party shall be excused from further performance of the affected obligations for as long as such circumstances prevail and such Party continues to use reasonable efforts to recommence performance without delay (whereby the Parties

will adjust the delivery schedule as a Contract modification), provided that a Force Majeure Event will not relieve the Contractor of its obligations to implement successfully all of the Services relating to disaster recovery and business continuity that are included in the Contract. Any Party so delayed in its performance shall (a) immediately notify the other Party and describe at a reasonable level of detail the circumstances causing such delay and the impact thereof, (b) keep the other Party permanently informed on further developments and (c) undertake its best efforts to eliminate and at least minimize the effects of a Force Majeure Event as soon as possible.

- (c) The Purchaser will be entitled to withhold payment of any Price related to (parts of) Supplies, Services or Deliverables that have not (yet) been supplied due to a Force Majeure Event.
- (d) If a Force Majeure Event continues to hinder or prevent a Party from properly or timely performing its obligations under the Contract for a period of sixty (60) Days, the other Party may immediately terminate the Contract entirely or partially by registered letter without recourse to legal proceedings. In case of such termination, the Contractor will refund any amounts prepaid by the Purchaser related to (parts of) Deliverables and Services that have not been supplied.
- (e) If the Contractor claims that a failure to comply with a Service Level or other obligation is caused by a third party or a Force Majeure Event, it will have to submit a Root Cause Analysis (RCA) as evidence. Circumstances that have an impact on the performance of a Subcontractor shall only be considered as Force Majeure Events for the Contractor if such circumstances constitute Force Majeure Event(s) for such Subcontractor.
- (f) The Contractor is not allowed to request any price revision based on changed circumstances (hardship) that are not considered circumstances of Force Majeure.

13. STOP WORK ORDER [MAY 2026]

- (a) The Purchaser's Contracting Authority may, at any time, by written order to the Contractor, require the Contractor to stop all, or any part, of the work called for by the contract for a period of 90 days after the order is delivered to the Contractor, and for any further period to which the parties may agree. The order shall be specifically identified as a stop-work order issued under this clause. Upon receipt of the order, the Contractor shall immediately comply with its terms and take all reasonable steps to minimize the incurrence of costs allocable to the work covered by the order during the period of work stoppage. Within a period of 90 days after a stop-work order is delivered to the Contractor, or within any extension of that period to which the parties shall have agreed, the Purchaser's Contracting Authority shall either:
 - (1) Cancel the stop-work order; or
 - (2) Terminate the work covered by the order as provided in the Termination For Cause-Default (Clause GTC A.4.14), or the Termination for Convenience of the Purchaser (Clause GTC A.4.15), clause of the contract.
- (b) If a stop-work order issued under this clause is canceled or the period of the order or any extension thereof expires, the Contractor shall resume work. The Purchaser's Contracting Authority shall make an equitable adjustment in the delivery schedule or contract price, or both, and the contract shall be modified, in writing, accordingly, if:
 - (1) The stop-work order results in an increase in the time required for, or in the Contractor's cost properly allocable to, the performance of any part of this contract; and
 - (2) The Contractor asserts its right to the adjustment within 30 days after the end of the period of work stoppage; provided, that, if the Purchaser's Contracting Authority decides the facts justify the action, the Purchaser's Contracting Authority may receive and act upon a proposal submitted at any time before final payment under this contract.
- (c) If a stop-work order is not canceled and the work covered by the order is terminated for the convenience of the Purchaser, the Purchaser's Contracting Authority shall allow reasonable costs

resulting from the stop-work order in arriving at the termination settlement.

- (d) If a stop-work order is not canceled and the work covered by the order is terminated for default, the Purchaser's Contracting Authority shall allow, by equitable adjustment or otherwise, reasonable costs resulting from the stop-work order.
- (e) This Clause GTC A.4.13 is without prejudice to the rights of the Purchaser in case of a Force Majeure Event, as well as in case of default by the Contractor, and in case of security issues or Cyber incidents that justify a temporary suspension of Supplies or Services.

14. TERMINATION FOR CAUSE – FOR DEFAULT [MAY 2026]

- (a) In the event that the Contractor is in material breach of its obligations under the Contract, the Purchaser may terminate the Contract, in whole or in part, upon giving a one month's notice for curing the material breach to the Contractor. In case the material breach continues after the notice period, the Purchaser will have the right to terminate the Contract immediately in whole or in part, in writing.
- (b) The Purchaser is not required to give a notice period of one (1) month under the following facts and circumstances, which may be considered material default considering the circumstances of the case:
 - (1) if the material breach cannot be remedied, or it is likely that it will not be remedied within one month;
 - (2) in case of gross negligence, wilful misconduct, fraud or repeated defaults that justify the loss of confidence in the professional capability or good faith of the other Party;
 - (3) in case of breach of Intellectual Property Rights, confidentiality or secrecy obligations (including Clause GTC A.3.6 ("Security of Unclassified and NATO Unclassified Materials and Information") and GTC A.3.7 ("Confidentiality and Non-Disclosure")), unless it is clear beyond any doubt that such a breach was a single accidental event, that was not intentional nor caused by professional incompetence or negligence;
 - (4) where there is a serious risk concerning the security of Purchaser Data, NATO classified information and materials, NATO information systems or other information systems, equipment or infrastructure that may have an impact on NATO activity, that is likely not remedied within an acceptable period of time, or that justifies the loss of confidence in the professional capability of the other Party;
 - (5) in case of failure to make delivery of all or part of the Supplies or Services within due time as set forth under Clause GTC A.4.9 ("Delay and Liquidated Damages").
- (c) In addition to the facts and circumstances mentioned in Clauses GTC A.4.14(a) and GTC A.4.14(b), and without limiting the generality of this Clause GTC A.4.14, the following facts may be considered material breach by the Purchaser:
 - (1) the transfer of the Contract or the delegation of certain (part of) Supplies or Services to a Subcontractor without the Purchaser's prior written consent;
 - (2) repeated or continued failure to meet the technical requirements or the Specifications of the Contract without correction in due time.
- (d) The Purchaser, in writing, may terminate the Contract immediately, if the Contractor:
 - (1) files any petition in bankruptcy or has a petition in bankruptcy filed against it;
 - (2) becomes insolvent;
 - (3) makes a general assignment for the benefit of its creditors;
 - (4) commences any operations for its winding up.

- (e) The Contractor shall notify the Purchaser as soon as reasonably practicable upon completion of a Change of Control in respect of the Contractor or any material Subcontractor, including providing confirmation of the identity of the party who has taken control of the Contractor or Subcontractor.
- (f) The Purchaser is entitled to terminate the Contract in whole or in part, with immediate effect, in writing, in case of such an event of Change of Control, whereby, for the purposes of this Clause an event of "Change of Control" shall mean the change in (a) the direct or indirect ownership of the majority of the equity rights in the Contractor or Subcontractor, (b) the majority of the voting rights in the Contractor or Subcontractor, (c) the right to appoint or remove the majority of the Contractor's or Subcontractor's directors, or (d) otherwise the right to ultimately direct and conduct the Contractor's or Subcontractor's business.
- (g) If the Contract is terminated as provided in this Clause GTC A.4.14, the Purchaser, in addition to any other rights provided in this Clause and the Contract, may require the Contractor to immediately transfer title and deliver to the Purchaser, in the manner and to the extent directed by the Purchaser:
 - (1) any completed Supplies, Deliverables and Services with their associated rights;
 - (2) any partially completed Supplies, Deliverables and Services, materials, Parts, tools, dies, jigs, fixtures, plans, drawings, information, Software, data, and Contract rights (hereinafter called "Manufacturing materials") with the associated rights as the Contractor has specifically produced or specifically acquired for the performance of the terminated part of the Contract;
- (h) In addition to Clause GTC A.4.14(g), the Contractor shall, upon the direction of the Purchaser, protect and preserve property in the possession of the Contractor in which the Purchaser has an interest.
- (i) If any payment is due for completed Supplies, Services or Deliverables delivered to and accepted by the Purchaser, it shall be at the Contract price.
- (j) Payment for Manufacturing materials delivered to the Purchaser and for the protection and preservation of property, if due by the Purchaser, shall be in an amount agreed upon by the Contractor and Purchaser, failure to agree to such an amount shall be a dispute within the meaning of Clause GTC A.4.21 ("Disputes").
- (k) The Purchaser may withhold from amounts otherwise due to the Contractor for completed Supplies, Deliverables or Services or Manufacturing materials such sum as the Purchaser determines to be necessary to protect the Purchaser against loss because of outstanding liens or claims of former lien holders.
- (l) If, after notice of termination of the Contract under the provisions of this Clause, it is determined for any reason that the Contractor was not in default under the provisions of this Clause, or that the default was excusable, the rights and obligations of the Parties shall be the same as if the notice of termination had been issued pursuant to Clause GTC A.4.15 ("Termination for the Convenience of the Purchaser").
- (m) If after such notice of termination of the Contract under the provisions of this Clause, it is determined for any reason that the Contractor was not in default under the provisions of this Clause and that the Parties agree that the Contract should be continued, the Contract shall be equitably adjusted to compensate for such termination. Failure to agree to any such adjustment shall be a dispute within the meaning of Clause GTC A.4.21 ("Disputes").
- (n) The rights and remedies of the Parties provided in this Clause shall not be exclusive and are in addition to any other rights and remedies provided by law or under the Contract.

15. TERMINATION FOR THE CONVENIENCE OF THE PURCHASER [MAY 2026]

- (a) The Purchaser may terminate the Contract at any time, in whole or in part, whenever it determines in its sole discretion that termination is in the best interest of the Purchaser. Such termination shall

be effected in accordance with this Clause.

- (b) Any such termination shall be effected by delivery to the Contractor of a written notice of termination, signed by the Contracting Authority, specifying the extent to which the delivery of Supplies or performance of Services under the Contract is terminated, and the date upon which such termination becomes effective, which shall be not less than thirty (30) Days after such notice unless the Purchaser demonstrates that there is an urgent reason for earlier termination.
- (c) After receipt of a Notice of Termination and except as otherwise directed by the Contracting Authority, the Contractor shall immediately proceed with the following obligations, regardless of any delay in determining or adjusting any amounts due under this Clause:
 - (1) stop the Contract on the date and to the extent specified in the notice of termination and remove all Contractor's equipment from the site;
 - (2) place no further orders or Subcontracts for materials, Services or facilities, except as necessary to complete the continued portion of the Contract, if any;
 - (3) terminate all Subcontracts to the extent they relate to the work terminated. With approval or ratification to the extent required by the Contracting Officer, settle all outstanding liabilities and termination settlement proposals arising from the termination of Subcontracts; the approval or ratification will be final for purposes of this Clause;
 - (4) assign to the Purchaser, as directed by the Purchaser, all of the right, title and interest of the Contractor under the terminated orders and Subcontracts, in which case the Purchaser shall have the right to settle or pay any termination settlement proposal arising out of those terminations;
 - (5) As directed by the Purchaser, transfer all right and title and deliver to the Purchaser:
 - (i) the work in progress, completed work, Supplies, the parts of any system, Software including source code, application or solution and other materials produced or acquired for the Contract terminated; and
 - (ii) the completed or partially completed plans, drawings, information, documentation, Software including source code, and other property which, if the Contract had been completed, would have been required to be furnished to the Purchaser, including the related IPR if the Purchaser is entitled to obtain such rights under the Contract;
 - (6) use its best efforts to sell, in the manner, at the times, to the extent, and at the price or prices directed or authorized by the Contracting Authority, any property of the types referred to in Clause GTC A.4.15(c)(5). However, the Contractor:
 - (i) shall not be required to extend credit to any buyer; and
 - (ii) may acquire such property under the conditions prescribed by and at a price approved by the Purchaser; and provided further that the proceeds of any such transfer or disposition shall be applied in reduction of any payments to be made by the Purchaser to the Contractor or shall otherwise be credited to the price or cost of the Supplies or Services or paid in such manner as the Contracting Authority may direct.
 - (7) complete performance of the part of the Contract that is not terminated by the Notice of Termination;
 - (8) take such action as may be necessary, or as the Purchaser may direct, for the protection and preservation of the property in which the Purchaser has or may acquire an interest;
 - (9) perform Termination Assistance Services if required by the Purchaser.

- (d) The Contractor may submit to the Purchaser a list, certified as to quantity and quality, of any or all items of termination inventory that are not previously disposed of (exclusive of items of which the Purchaser has directed or authorized the disposition), and may request the Purchaser to remove such items or enter a storage agreement covering such items; provided that the submitted list shall be subject to verification by the Purchaser upon removal of the items, or if the items are stored, within forty-five (45) Days from the date of submission of the list, and any necessary adjustment to correct the list as submitted shall be made prior to the final settlement.
- (e) After receipt of a notice of termination, the Contractor shall submit to the Purchaser their termination settlement proposal for the Services covered by the notice of termination, in the form and with certification prescribed by the Purchaser. Such a proposal may include, if duly justified, and in accordance with the principles set forth in Clause GTC A.4.15(h):
 - (1) the price due for the completed and accepted Supplies and Services and the costs of not completed Services provided up to the effective date of termination. The amount may include a reasonable allowance for profit on the work done or where authorized by the Purchaser, the reasonable and justified costs and expenses for the termination activities set forth in Clause GTC A.4.15(c). However, the agreed amount may not exceed the total contract price as reduced by (a) the number of payments previously made and (b) the contract price of work not terminated. The Services that may be taken into consideration are the Services that were requested and at least partially performed or prepared, excluding possible options or extensions. The timeframe of such Services will be limited to a maximum of six (6) months;
 - (2) the reasonable and justified termination settlement proposal of Subcontractors or suppliers, provided that the Contractor included a comparable clause covering termination for convenience in its contracts with such Subcontractors and suppliers, or at least mitigated any such proposal insofar as reasonably possible, and provided that such proposals are not directly or indirectly included in other proposals submitted by the Contractor or other payments received by the Contractor;
 - (3) a compensation for the reasonable expected net profit that would have resulted from the part of the terminated Supplies or Services that would have been performed if the Supplies or Services had not been terminated, based on the profit margin that the Contractor may demonstrate, which will be deemed ten percent (10%) of the price unless duly proven otherwise by the Purchaser or the Contractor. The Supplies or Services that may be taken into consideration are the Supplies or Services that were requested and at least partially performed or prepared, excluding possible options or extensions. The timeframe of such Supplies or Services will be limited to a maximum of six (6) months.
 - (4) the price due for Termination Assistance Services.
- (f) Such a proposal shall be submitted as soon as reasonably practicable but in no event later than six (6) months from the effective date of termination, unless extensions are granted in writing by the Purchaser. However, if the Purchaser determines that the facts justify such action, the Purchaser may receive and act upon any such termination settlement proposal at any time after such a six-month period or any extension thereof. Upon the failure of the Contractor to submit its termination settlement proposal within the time allowed, the Purchaser may determine on the basis of information available to it, the amount due to the Contractor and shall thereupon pay to the Contractor the amount so determined.
- (g) Subject to Clause GTC A.4.15(e), the Contractor and the Purchaser may agree upon the whole or any part of the amount to be paid to the Contractor by reason of the total or partial termination of Supplies or Services, provided that such agreed amount exclusive of settlement costs shall not exceed the total Contract price as reduced by the amount of payments otherwise made and as further reduced by the Contract price of the Supplies or Services that are not terminated. The Contract shall be amended accordingly and the Contractor shall be paid the amount agreed.
- (h) If the Contractor and the Purchaser fail to agree on the whole amount to be paid, the Purchaser shall pay to the Contractor the amounts determined by the Purchaser as follows, but without

duplication of any amounts agreed upon in accordance with Clause GTC A.4.15(g):

- (1) The contract price for completed Supplies or Services accepted by the Purchaser (or sold or acquired as provided in Clause GTC A.4.15(c)) not previously paid for, adjusted for any saving of freight or other charges;
- (2) The total of:
 - (i) the costs incurred in the performance of the Services terminated including initial costs and preparatory expense allocable thereto, but exclusive of any costs attributable to Services paid or to be paid for under Clause GTC A.4.15(h)(1)
 - (ii) the cost of settling and paying reasonable termination settlement costs under terminated Subcontracts that are properly chargeable to the terminated portion of the Contract if not included under Clause GTC A.4.15(c)(2); and
 - (iii) a sum, as profit mentioned in Clause GTC A.4.15(e)(1), determined by the Purchaser to be fair and reasonable; provided, however, that if it appears that the Contractor would have sustained a loss on the entire Contract, had it been completed, the Purchaser shall allow no profit under this Clause GTC A.4.15(c)(4) and shall reduce the settlement to reflect the indicated rate of loss.
- (i) The reasonable costs of settlement, including:
 - (1) Accounting, legal, clerical, and other expenses reasonably necessary for the preparation of termination settlement proposals and supporting data;
 - (2) The termination and settlement of Subcontracts (excluding the amounts of such settlements); and
 - (3) Storage, transportation, and other costs incurred, reasonably necessary for the preservation, protection, or disposition of the termination inventory;
 - (4) The price for the performance of Termination Assistance Services computed in accordance with the price(s) specified in the Contract.
- (j) Except for normal spoilage, and except to the extent that the Purchaser shall have expressly assumed the risk of loss, there shall be excluded from the amounts payable to the Contractor, the fair value, as determined by the Purchaser, of property which is destroyed, lost, stolen, or damaged so as to become undeliverable to the Purchaser, or to a buyer pursuant to Clause GTC A.4.15(c)(6).
- (k) The total sum to be paid to the Contractor under Clause GTC A.4.15 shall not exceed the total Contract price as reduced by the amount of payments otherwise made and as further reduced by the Contract price of Supplies or Services which are not terminated.
- (l) The Contractor shall have the right to dispute, under Clause GTC A.4.21. ("Disputes"), any determination made by the Purchaser under Clause GTC A.4.15(h), except that if the Contractor has failed to submit its termination settlement costs or request for equitable adjustment within the time provided in Clause GTC A.4.15(f) and has failed to request a time extension, the Contractor shall be foreclosed from their right to dispute said determination. In any case where the Purchaser has made a determination of the amount due under Clause GTC A.4.15(h), the Purchaser shall pay the Contractor the following:
 - (1) if there is no right of appeal hereunder or if no timely appeal has been taken, the amount so determined by the Purchaser; or
 - (2) if an appeal has been taken, the amount finally determined on such appeal.
- (m) In arriving at the amount due to the Contractor under this Clause, there shall be deducted:

- (1) all unliquidated advance or other payments on account made to the Contractor, applicable to the terminated portion of the Contract;
 - (2) any claim which the Purchaser may have against the Contractor in connection with the Contract; and
 - (3) the agreed price for, or the proceeds of the sale of, any materials, Deliverables, or other things acquired by the Contractor or sold, pursuant to the provisions of this Clause GTC A.4.15, and not otherwise recovered by or credited to the Purchaser.
- (n) If the termination is partial, the Contractor may file a proposal with the Purchaser for an equitable adjustment of the price(s) of the continued portion of the Contract. Such request shall be submitted in accordance with Clause GTC A.4.3 "Changes", prior to the settlement of the terminated portion of the Contract.
- (o) The Purchaser may from time to time make partial payments and payments on account against costs incurred by the Contractor in connection with the terminated portion of the Contract. If the total of such payment is in excess of the amount finally agreed or determined to be due under this Clause, such excess shall be payable by the Contractor to the Purchaser upon demand, together with interest calculated using the average of the official base rate(s) per annum of the deposit facility rate as notified by the European Central Bank or such other reasonable official sources as may be determined by the Purchaser, for the period from the date the excess is received by the Contractor to the date such excess is repaid to the Purchaser, provided, however, that no interest shall be charged with respect to any such excess payment attributed to a reduction in the Contractor's termination settlement proposal by reason of retention or other disposition of termination inventory until ten (10) Days after the date of such retention or disposition or such a later date as determined by the Purchaser by reason of the circumstances.
- (p) Unless otherwise provided for in the Contract, the Contractor, from the effective date of termination and for a period of three (3) years after the final settlement under the Contract, shall preserve and make available to the Purchaser at all reasonable times at the office of the Contractor, but without direct charge to the Purchaser, all their books, records, documents, computer files and other evidence bearing on the costs and expenses of the Contractor under the Contract and relating to the work terminated hereunder, or, to the extent approved by the Purchaser, photographs, microphotographs, or other authentic reproductions thereof.

16. TERMINATION BY MUTUAL AGREEMENT OR CONSENT [MAY 2026]

- (a) The Purchaser and the Contractor may mutually agree to terminate the Contract, in whole or in part, at any time before the completion of the Contract's performance. Such termination shall be effective upon the execution of a written termination agreement, signed by both Parties, specifying the terms, conditions, and effective date of the termination.
- (b) Termination by mutual agreement or consent shall not be construed as a Termination for Default and Termination for Convenience, and shall not entitle either Party to any claim or cause of action arising from the termination, except as explicitly provided in the termination agreement.

17. CONSEQUENCES OF TERMINATION [MAY 2026]

- (a) On the expiry or termination ("Termination Date") of the Contract in whole or in part, for whatever reason, the Contractor shall cease to provide Supplies or Services and the Purchaser shall cease payment for the terminated part of the Contract, except that the following rights and obligations may commence or continue to exist, as the case may be:
 - (1) The rights and obligations set forth in Clause GTC A.4.14 ("Termination for Cause - For Default") and Clause GTC A.4.15 ("Termination for Convenience") applicable as from the Termination Date;

- (2) Return, migration or destruction of Purchaser Data as set forth in GTC A.6.3 of the Core General Terms and Conditions;
 - (3) The rights and obligations in relation to the escrow of source code or other rights and obligations that warrant continuity of Services as set forth in Clause GTC F.10 of the General Terms and Conditions for Cloud Services, or as otherwise agreed in the Contract;
 - (4) All rights and obligations provided in the Contract that are explicitly or implicitly intended to be executed or continued after the termination of the Contract;
 - (5) In the event that the Purchaser terminates the Contract pursuant to Clause GTC A.4.14 ("Termination for Cause – For Default") and depending on the event, any Performance Guarantee furnished by the Contractor may be forfeited;
 - (6) The Contractor shall, as soon as practicable after the Termination Date remove from the Purchaser's sites all property that is not acquired by the Purchaser, unless otherwise requested by the Purchaser if the Purchaser has the right to request otherwise;
 - (7) At Termination Date, the Contractor shall immediately and without any additional request return all Purchaser Furnished Property, including documents, aids, materials or objects received from the Purchaser for the purpose of Contract performance. This also applies for any copies. The Purchaser can demand the secure entire or partial destruction of said materials instead of their return. The Contractor has to certify its compliant conduct by corresponding declaration or any other reasonable manner.
- (b) Expiry or termination of the Contract, for any reason, shall not affect the accrued rights, remedies, obligations or liabilities of the Parties under the Contract existing at the date of expiry or termination.

18. STEP-IN RIGHT [MAY 2026]

- (a) If (a) there is a deadlock in the performance of the Contract, meaning that there is a fundamental difference of opinion between the Purchaser and the Contractor, both acting in good faith, that affects the progress or the delivery of any Supplies or Services, and could not be settled in good faith between the Parties in accordance with Clause GTC A.4.21 ("Disputes"), or (b) a Deliverable can repeatedly not be accepted by the Purchaser, or (c) a failure to successfully achieve a (Key) Delivery Date or (Key) Milestone Date may be considered material default as set forth in Clause GTC A.4.9 ("Delay and Liquidated Damages"), the Purchaser reserves the right to suspend or terminate the Contract in whole or in part and to have the Supplies or Services executed by a substituting supplier or contractor, depending on the necessities of a smooth execution of the affected Supplies or Services, the continuity of NATO operations and the general principle of damage control ("Step-In Right").
- (b) Before exercising the Step-In Right, the Purchaser will send a notification of its intention to the Contractor in writing, and the Contractor will submit a plan within fifteen (15) Days thereafter, setting out the cause of the deadlock or the non-conformity or the delay, as well as its arguments in its defence, if any, and setting out a realistic plan that will indicate how the issues can be resolved or how the Acceptance or the (Key) Delivery or (Key) Milestone Date can be successfully achieved within twenty (20) Days thereafter, or if not realistic, a different timeframe. Upon receipt of this plan, the Purchaser will decide whether or not it will exercise its Step-In Rights; eventually it may postpone its decision and make it subject to certain conditions. The Purchaser may decide in its own discretion to accept this plan, even if it would not warrant the completion within the agreed due dates, if the plan is acceptable to the Purchaser. Such acceptance shall not constitute a waiver of any rights by the Purchaser under the Contract or by law.
- (c) The Contractor shall provide all documentation, materials, rights and assistance reasonably required to enable the Purchaser (or its nominee) to exercise its Step-In Rights. Furthermore, insofar as the Contract is only partially suspended, the Contractor will continue to perform its remaining obligations under the Contract.

- (d) The additional cost of substituting contractor(s) will be settled amicably between the Parties, depending on the circumstances of the case and in conformity with the principles of applicable law. The Step-In Right does not affect any other right or remedy of the Parties under the Contract or by law.

19. ASSIGNMENT OF CONTRACT [MAY 2026]

- (a) The Purchaser reserves the right to assign the Contract, in whole or in part, to another NATO Body, agency or representative within NATO or NATO Member Nations. In such a case, the Purchaser shall notify the Contractor accordingly in writing.
- (b) NATO shall remain responsible for its obligations under the Contract and for the actions of the body, agency or representative to which the Contract may be assigned.

20. TRANSFER AND SUBLETTING [MAY 2026]

- (a) The Contractor shall not give, bargain, sell, assign, sublet or otherwise dispose of the Contract or any part thereof, or the benefit or advantage of the Contract or any part thereof, without the prior written consent of the Purchaser.

21. DISPUTE [MAY 2026]

- (a) If a dispute arises between the Parties in connection with the Contract, the authorized representatives of the Parties will use their reasonable endeavor to settle the dispute. If no agreement can be found within a reasonable period of time, either Party may open arbitration proceedings as set forth in Clause GTC A.4.22 ("Arbitration"). However, in order to avoid deadlock and to safeguard the continuity of the Purchaser's and NATO's operations, certain provisions of the Contract explicitly allow the Purchaser to make a decision, which will be final and conclusive unless the Contractor will make use of its right to open arbitration as set forth in this Disputes Clause.
- (b) The Contracting Authority shall not proceed with the evaluation and decision in respect of any claim until and unless the Contractor has submitted the attestation as foreseen in Clause GTC A.4.4 ("Claims"), as well as the complete proof and evidence of the claim (either by submission or by identification of the relevant documentation). The burden of proof for both receipt and delivery of such documentation shall be by confirmation of receipt electronically as acknowledged and signed by the Contracting Authority.
- (c) The Contracting Authority shall communicate its decision in writing to the Contractor. The Contracting Authority's decision shall be final and conclusive unless, within thirty (30) Days from the date of receipt of such copy, the Contractor electronically furnishes to the Contracting Authority its decision to open arbitration proceedings in accordance with Clause GTC A.4.22 ("Arbitration").
- (d) Pending the final decision of a dispute, the Contractor shall proceed diligently with the performance of the Contract unless otherwise instructed by the Contracting Authority.

22. ARBITRATION [MAY 2026]

- (a) Any dispute, controversy or claim arising out of or relating to this contract, or the validity, interpretation, breach, termination thereof, which are not settled amicably shall be settled by arbitration in accordance with the *Permanent Court of Arbitration* (PCA) Arbitration Rules 2012, subject to the following paragraphs.
- (b) The number of arbitrators shall be three. Each arbitrator shall be of the nationality of a NATO Member State. The third arbitrator will be of a nationality different from the nationality of the other two arbitrators.
- (c) Conduct of the arbitral proceedings and the provision of evidence is subject to the rules of security in force within NATO, where applicable. Although each Party has the liberty of choosing their legal

representatives and expert witnesses, the Parties acknowledge that the rules of security within NATO may prohibit the communication of NATO information, including classified information, in particular to individuals who do not hold the nationality of a NATO Member State.

- (d) The arbitration proceedings shall be conducted in English. Any document submitted by the Parties in a language other than the language of the arbitration proceedings shall be accompanied by a translation into the language of the arbitration proceedings.
- (e) The arbitration proceedings and award, but not the existence of the arbitration, shall be private and confidential, except with the consent of all parties, or to the extent that disclosure is required of a Party: by legal duty (including where that duty arises from NATO's internal legal order); to protect or pursue a legal right; or in relation to legal proceedings before a court or other competent authority.
- (f) The place of arbitration (seat) shall be Brussels, Belgium. For deliberations, the arbitrators may meet at any place of their choice, provided that it is within the territory of a NATO Member State. The hearings shall take place at Brussels, Belgium.
- (g) Nothing in this provision, or in any contract of which it forms a part, shall be interpreted as a waiver of any privileges or immunities accorded to any Party hereto with respect to any procedure before the court or tribunal of any State, including any court or tribunal of the place of arbitration, including but not limited to any procedure that relates to the validity, interpretation or application of the arbitration agreement, requests for interim relief, requests of measures concerning the arbitration procedure, or applications for the recognition or the enforcement of an award or to any measure of execution or detention of property.

23. MERGER, ACQUISITION, NOVATION, OR CHANGE OF NAME AGREEMENT [MAY 2026]

- (a) **Notification Requirement:** The Contractor shall notify the Purchaser in writing within thirty (30) Days of any proposed or actual merger, acquisition, novation, or change of name agreement involving the Contractor. This notification shall include a detailed description of the transaction, including the names of all entities involved and the expected timeline for completion.
- (b) **Documentation Requirement:** In the event of a merger, acquisition, novation, or change of name agreement, the Contractor shall provide to the Purchaser the necessary documentation for review, including but not limited to:
 - (1) A description of any potential impact on the performance of the Contract;
 - (2) Proposed or executed legal documents relating to the novation or change of name;
 - (3) Updated corporate registration information as applicable.
- (c) **Purchaser Review and Consent:** The Contractor acknowledges that the Purchaser reserves the right to approve or disapprove of the proposed novation or change of name agreement. No novation agreement shall be recognized by the Purchaser unless approved through a contract modification.
- (d) **Continuity of Contract Performance:** The Contractor shall ensure that any merger, acquisition, or change of name agreement will not negatively impact the timely and satisfactory performance of the contract. Any potential delays or disruptions shall be immediately reported to the Purchaser.
- (e) **Failure to Comply:** Failure to comply with the notification and documentation requirements of this Clause may result in adverse actions, including but not limited to termination of the Contract for default or other remedies available to the Purchaser.

END OF G.A.4: CHANGE AND BREACH OF TERMS AND CONDITIONS

GTC A.5. DATA RIGHTS AND SECURITY TERMS AND CONDITIONS

1. HARMFUL SOFTWARE AND TAMPERING RISK [MAY 2026]

- (a) Any delivered Software, including Software embedded in Equipment, and any Contractor-Owned Assets used in connection with the Supplies or Services under the Contract, shall not contain any computer code, programs or programming devices (a) intentionally designed to disrupt, modify, delete, damage, deactivate, disable, harm or otherwise impede in any manner, the operation of the Software, Documentation or any other associated software, firmware, hardware, computer system or network (such as, without limitation, computer viruses, Trojan horses), (b) that would disable the Software or Documentation or impair in any way their operation based on the elapsing of a period of time, exceeding an authorized number of copies or advancement to a particular date or other numeral (sometimes referred to as “time bombs,” “time locks”), or (c) that would permit the Contractor, its licensor or any third party to access the Software to cause such disablement or impairment, or (d) any other harmful, malicious or hidden procedures, routines or mechanisms that would cause such Software to cease functioning or to damage or corrupt data, storage media, programs, equipment or communications, create security risks or vulnerability to such risks, or otherwise interfere with normal operations (collectively “Harmful Software”).
- (b) The Contractor shall ensure that any Hardware, Software and Contractor-Owned Assets are delivered, installed and suitably secured to prevent any form of access for malicious tampering or any other such tampering or external intervention whilst on NATO premises or used in connection with NATO equipment. The Purchaser reserves the right to reject, at the Contractor’s expense, the delivery or use of Hardware, Software and Contractor-Owned Assets that show evidence of tampering or constitutes a risk of being intervened or tampered with during transportation due to theft or unauthorized access.
- (c) In general, the Contractor shall avoid that any Services compromise the integrity, confidentiality and availability of the Purchaser’s ICT – Infrastructure or parts thereof. Neither security nor confidentiality of the Purchaser should be infringed upon by way of undesirable dropping or discharge of data, undesirable change or manipulation of data or logic structure or undesirable input of data or extension of features. An activity is ‘undesirable’ if it was neither requested by the Purchaser in the Statement of Work, nor offered by the Contractor together with a specific description of the activity or its functionality, nor expressly authorized by the Purchaser in individual cases.
- (d) In the event of the Contractor’s breach of this Clause GTC A.5.1, the Contractor further agrees to use its best and continuous efforts to immediately eliminate all Harmful Software or other risk mentioned herein, without prejudice to the other rights of the Purchaser under the Contract or by law, including Clause GTC A.5.6 (“Cyber Incident Reporting”).

2. TECHNOLOGY REFRESH AND EVOLUTION [MAY 2026]

- (a) If any COTS Products specified in the Contract are upgraded or discontinued by their original providers for commercial or technological reasons, the Contractor shall notify this fact to the Purchaser and shall propose their substitution through new versions that are intended as market replacement of the original products. The proposed items shall provide an equivalent or enhanced performance without an increase in the price or lifecycle support cost and the Contractor shall be responsible for the installation, integration, migration and transition of data and information to the new version.
- (b) The Contractor shall provide price and performance data to support an improvement in performance or a reduction in price or lifecycle support costs. If necessary for evaluation by the Purchaser, the Contractor shall provide a demonstration of the proposed items.
- (c) Should the Purchaser decide that the proposed item(s) should be included in the Contract, an equitable price adjustment will be negotiated and the proposed item(s) shall be added to the Contract by a modification as described in Clause GTC A.4.3 (“Changes”).

- (d) Where the delivery schedule of the Contract provides for deliveries of COTS over a long period of time, the Contractor shall organize deliveries in such a way that it is always able to deliver the latest version of the COTS products, and it shall avoid requiring the Purchaser to take delivery of obsolete products.
- (e) The Contractor shall cause the Supplies and Services to evolve and to be modified, enhanced, supplemented and replaced as necessary for the Supplies and Services to keep pace with technological developments, including evolving best practices and process improvements. The Contractor will keep the Purchaser informed of such developments. The Parties shall consult and discuss in good faith any adjustments to the Contract as would be justified and necessary to reflect any change, in view of achieving the goals and cost efficiencies that the Parties contemplated through entering into the Contract.

3. INTELLECTUAL PROPERTY RIGHTS [MAY 2026]

(a) Purchaser Background IPR

- (1) The Contractor is licensed to use, non-exclusively and royalty-free any Purchaser Background Intellectual Property Rights (IPR) that is or will be made available for the sole purpose of carrying out the Services in accordance with the needs of the Contract.
- (2) The Contractor shall not use any Purchaser Background IPR other than for the purpose of carrying out the Services without the prior written agreement of the Purchaser. Any such agreement shall include the terms relating to such use.
- (3) The Purchaser gives no warranty as to the validity of any Purchaser Background IPR. The Contractor shall not do anything or act in any way which is inconsistent with or prejudicial to the ownership by the Purchaser of any Purchaser Background IPR.

(b) Contractor Background IPR

- (1) Unless provided otherwise in the Contract Special Terms and Conditions, the Purchaser does not acquire ownership of Contractor Background IPR under the Contract.
- (2) The Contractor licenses the Contractor Background IPR on a royalty-free, non-exclusive, worldwide and irrevocable basis to NATO, including the NATO Bodies and NATO Member Nations, who may use and may authorize others to use the Contractor Background IPR for all the modes of exploitation of Foreground IPR (excluding for commercialization purposes) and the normal, effective and evolutive use of all Supplies, Deliverables and Services set out in the Contract, including evolving compatibility, integration and security requirements, including all use for NATO Purposes, and including use after the termination of the Contract if useful for the procurement of similar, substituting, additional or related Supplies, Deliverables or Services. Furthermore, NATO and the Purchaser are entitled to sublicense the Contractor Background IPR to persons and entities acting on behalf of the Purchaser, including contractors and Subcontractors, but only for the purpose of their activities for NATO, and subject to their signing of adequate confidentiality undertakings where necessary.
- (3) All Contractor Background IPR is licensed to NATO from the moment the Supplies and Deliverables are delivered and accepted by the Purchaser. The licensing of Contractor Background IPR to NATO under the Contract covers all territories worldwide and is valid for the duration of IPR protection.
- (4) Any use of Contractor Background IPR is not limited to the number of users or the number of licenses required by the Contract for the use of the Deliverables. The Purchaser reserves the right to use the Contractor Background IPR for any number of users and number of licenses as required for the normal, effective and evolutive use of Supplies, Deliverables and Services, including the use for NATO Purposes, at no additional cost to the Purchaser.
- (5) The payment of the price as set out in the Contract is deemed to include any fees payable to

the Contractor in relation to the licensing of Contractor Background IPR to NATO, including for all forms of exploitation and of use of Foreground IPR and of the Supplies, Deliverables and Services.

- (6) The Contractor shall always inform the Purchaser of updates and modifications to Contractor Background IPR and shall make updates or modified Contractor Background IPR available as long as necessary or useful for the proper operation and intended use of Foreground IPR and of the Supplies, Deliverables and Services, including the intended duration of such exploitation and use.

(c) Foreground IPR

- (1) The Purchaser irrevocably acquires on behalf of NATO exclusive worldwide ownership of all newly created results and materials produced specifically for the Purchaser under the Contract and of all Foreground IPR, including any technical data specifications, computer software code (as object code and source code), databases and datasets, documentation including software documentation, design data specifications, instructions, processes, test procedures, training material produced or acquired in the course of the Services, reports, drawings, all moral rights. Consequently, no statement shall be made restricting the rights of the Purchaser or NATO in the Foreground IPR. The IPR so acquired include any rights, such as copyright and other IPRs, to any of the newly created Deliverables or newly created parts thereof, including derivative works of Contractor Background IPR and Third Party IPR, and in all technological solutions and information created or produced by the Contractor or by its Subcontractor in the performance of the Contract, excluding Contractor Background IPR or Third Party IPR unless agreed otherwise in the Contract Special Terms and Conditions. The Purchaser acquires all the rights as from the moment the Purchaser has accepted and paid for the Deliverables that incorporate the Foreground IPR.
- (2) The Purchaser will have the exclusive right to use, reproduce, publicly display, communicate to the public, publish, adapt, modify, prepare derivative works from, translate, license, sublicense, distribute, commercialize, broadcast, assign, and otherwise exploit the transferred IPR by itself or through third parties, without limitations, for any form of exploitation, in any format and medium.
- (3) Where the IPRs are or include know-how, the Purchaser will have the right to use such know-how as is necessary to make use of the creations covered by the IPRs to the fullest extent, and the right to make the know-how available to contractors or Subcontractors acting on behalf of the Purchaser, subject to their signing of adequate confidentiality undertakings where necessary.
- (4) Where the Foreground IPRs are or incorporate developed software, the Purchaser will own the rights in source code, object code, and where relevant, the related documentation, preparatory materials and manuals.
- (5) The price of the Contract shall include any fees payable to the Contractor for the acquisition of ownership of the Foreground IPRs by the Purchaser including for all modes of exploitation and of use of the Deliverables and of the Foreground IPRs.
- (6) All reports, presentations, or documentation produced for the Purchaser under the Contract are to include the following data legend on the title page:

“This material is the property of NATO and may not be reproduced without written permission.”

- (7) The Contractor warrants that it will be the exclusive owner of the transferred Foreground IPRs and that the Foreground IPRs are free and clear of any liens or encumbrances, and it shall ensure that suitable and irrevocable arrangements are in place between its employees, agents, Subcontractors, consultants and itself regarding Foreground IPR generated by said employees, agents, Subcontractors and consultants to allow the Contractor to fulfil its obligations under

Clause GTC A.5.3(c)(1).

- (8) The Contractor shall be entitled to use Foreground IPR on a non-exclusive, royalty-free basis solely for the purpose of carrying out the Supplies and Services under the Contract.
- (9) The Contractor shall not use any Foreground IPR other than for the purpose of carrying out the Supplies and Services without the Purchaser's prior written agreement. Any such agreement shall include terms relating to such use.
- (10) The Contractor shall provide the Purchaser, at the latest upon delivery of the work and thereafter for the duration of the warranty and any purchased Contractor Logistics Support (CLS) agreement period, with full documented records of information in relation to the Supplies, Services and Deliverables, including but not limited to, all drawings, Specifications, designs, preparatory works, and other data that is necessary or useful to further develop, maintain and operate the Supplies, Services and Deliverables.
- (11) The Contractor shall:
 - (i) do all things necessary and sign all necessary or useful documents to enable the Purchaser to obtain the registration of the Foreground IPR as the Purchaser may require and select; and
 - (ii) execute any formal assignment or other documents as may be necessary or useful to vest title to any Foreground IPR in the Purchaser; and
 - (iii) irrevocably designate and appoint the Purchaser and its duly authorized officer and agent, to act in its behalf and instead of the Contractor, to execute and file any application, and to do all other lawfully permitted acts to further the prosecution and issuance of IPRs provided for in the Contract with the same legal force and effect as if these acts were executed by the Contractor. This power of attorney shall be irrevocable.
- (12) The Contractor undertakes:
 - (i) to notify the Purchaser promptly of any invention or improvement to an invention or any design conceived or made by the Contractor; and
 - (ii) to provide the Purchaser with such information as the Purchaser may reasonably request in order to: (a) determine the patentability of such invention or improvement; (b) assess the need for registering such invention or improvement; and (c) evaluate the potential value to the Purchaser of such a patent or registration if issued.
- (13) Where relevant, the Purchaser will have the right to register a patentable subject matter as a patent and to further exploit such patent to the fullest extent. If the Purchaser determines that it wishes to apply for one or more patents for the disclosed invention or improvement or for a registration for the disclosed design, it will prosecute such application(s) at its own expense. The Contractor undertakes to provide the Purchaser, at the Purchaser's expense, with such information and assistance as the Purchaser shall reasonably require to prosecute such application(s).

(d) Third Party IPR

- (1) Any use of Third Party IPR for the purpose of carrying out the Supplies and Services pursuant to the Contract shall be provided to the Purchaser at no additional cost. The Contractor shall obtain from the relevant third parties, on behalf of NATO, a non-exclusive, royalty-free and irrevocable license to use and authorize others to use any Third Party IPR for the purpose of exploiting or otherwise using the Foreground IPR in all the modes of exploitation thereof, and the normal, effective and evolutive use of all Supplies, Deliverables and Services set out in the Contract, including evolving compatibility and security requirements, and including all use for NATO Purposes. Furthermore, NATO and the Purchaser are entitled to sublicense the Third Party IPR to persons and entities acting on behalf of the Purchaser, including contractors and Subcontractors, but only for the purpose of their activities for NATO, and subject to their signing

of adequate confidentiality undertakings where necessary.

- (2) With the exception of COTS items, any use of Third Party IPR is not limited to the number of users or the number of licenses required by the Contract for the use of the Deliverables. With the exception of COTS items, the Purchaser reserves the right to use the Third Party IPR for any number of users and number of licenses as required for the normal, effective and future use of Supplies, Deliverables and Services, including the use for NATO Purposes, and including use after termination of the Contract if this is useful for the procurement of similar, substituting, additional or related Supplies, Deliverables or Services, at no additional cost to the Purchaser.
- (3) For COTS items, the Contractor shall be responsible for obtaining licenses from the Third Party in line with the requirements and purposes of the Contract (including numbers and locations of licenses).
- (4) Where Third Party IPR is the subject of a license or other agreement between the third party and the Purchaser or the Contractor, the Contractor shall not use any Third Party IPR for the purposes of carrying out work pursuant to the Contract without the prior written approval of the Purchaser. Contractor shall inform Purchaser in advance of any restrictions on the Purchaser's use.
- (5) If, after the award of the Contract, the Contractor becomes aware of the existence of any Third Party IPR which the Contractor is using or believes is needed for the performance of the Contract, the Contractor shall immediately give the Purchaser a written report identifying such IPR and if they are compliant with the other provisions in the Contract. Any Third Party IPR under this Clause is subject to the prior written approval by the Purchaser.
- (6) The Purchaser may consider open source solutions or components alongside proprietary software in developments provided that such solutions and components are fully compliant with the requirements of the Contract. The Contractor shall disclose in advance the open source license associated with all contemplated open source solutions or components. The Purchaser reserves the right to refuse the incorporation of open source solutions or components that are deemed inadequate for incorporation in a NATO application (e.g. post-back obligations). If the Contractor has a possibility to choose between several open source solutions and components, the Contractor shall opt for the solution or component with the most flexible license, that creates less risk for the Purchaser regarding post-back or disclosure requirements through the linking of other Software solutions, and if possible the Contractor shall avoid so-called copyleft licenses such as, without limitation, the General Public License (GPL)-licenses or Affero GPL-licenses.

(e) Subcontractor IPR

- (1) When placing a Subcontract which is concerned with or involves the creation of IPR, the Contractor shall ensure that the Subcontractor enters the same agreement for the use of the IPR as stipulated in the Contract in such a way that the Purchaser will be entitled to obtain and use the IPR as agreed between the Purchaser and the Contractor. The Contractor shall include in the Subcontract the content of the provisions of this Clause.

4. PATENT AND COPYRIGHT INDEMNITY [MAY 2026]

- (a) The Contractor shall assume all liability against any and all third party claims that any part of the Supplies, Software, Deliverables or Services provided by the Contractor infringe(s) an IPR in force in any countries, arising out of the manufacture, import, export, performance of the Services or delivery of Supplies or out of the use or disposal by the Purchaser of such Supplies or Services. The Contractor shall reimburse or indemnify the Purchaser, its officers, agents, employees or consultants: (a) for all costs, fees, damages, awards, settlement amounts and any other expenses awarded to the third party right holder against the Purchaser or the final beneficiaries or end users of the Supplies, Deliverables or Services in relation to such claim; and (b) for the costs and expenses incurred by the Purchaser in relation to said third party claims, including attorney fees.

- (b) If there is a reasonable risk that the normal use of any supplied good or Deliverable by the Purchaser will not be continued or its use will be impaired as a consequence of such third party claim, the Contractor shall at no cost for the Purchaser (a) promptly replace or modify the parts of any supplied good or Deliverable that constitute an alleged infringement, or (b) obtain any licenses necessary for the correct performance of the Contract and elimination of such risk. Furthermore, the Contractor will make all other arrangements required to indemnify the Purchaser from any liability for IPR infringement in said countries.
- (c) Each Contracting Party shall immediately notify the other of any intellectual property infringement claims of which it has knowledge and which pertain to the Supplies, Deliverables or Services under the Contract.
- (d) This indemnity shall not apply under the following circumstances:
 - (1) Patents or copyright which may be withheld from the issue by order of the applicable government whether due to security regulations or otherwise;
 - (2) An infringement resulting from specific written instructions from the Purchaser under the Contract (unless the Contractor should have known that such instructions could cause IPR infringement);
 - (3) An infringement resulting from modifications made to the supplied goods, Services or Deliverable(s) by the Purchaser without the Contractor's prior written consent.
- (e) Upon request of the Contractor, the Purchaser shall not independently negotiate a settlement with the third party that claims IPR infringement, insofar as the Contractor acted reasonably and in good faith.
- (f) The Contractor shall be liable and shall compensate for any Damage caused by any discontinuation of the normal use of a supplied good, Service or Deliverable as a consequence of a third party IPR infringement claim. This Clause GTC A.5.4 is without prejudice to any other rights the Purchaser may have under the Contract or by law.

5. BASIC SAFEGUARDING OF CONTRACTOR COMMUNICATION AND INFORMATION SYSTEMS (CIS) [MAY 2026]

1. Definitions. As used in this clause:

- (a) **“Contractor Communication and Information System (CIS)”** means an information system that is owned or operated by a contractor that processes, stores, or transmits NATO Information.
- (b) **“NATO Information”** means all information, classified and unclassified, circulated within NATO, whether such information originates in NATO Civil or Military bodies or is received from member nations or from non-NATO sources to include but not limited to:
 - (1) NATO Information that is provided by or generated for the Purchaser under a Contract to develop or deliver a product or service to NATO, but not including information provided by the Purchaser to the public (such as on public websites) or simple transactional information, such as necessary to process payments. Examples of NATO Information are:
 - (2) NATO technical information that is subject to controls on its access, use, reproduction, modification, performance, display, release, disclosure, or dissemination that is technical data or computer software in nature; such as, research and engineering data, engineering drawings, and associated lists, specifications, standards, process sheets, manuals, technical reports, technical orders, catalog-item identifications, data sets, studies and analyses and related information, executable code and source code, design details, or formulae and related material that would enable the software to be reproduced, recreated, or recompiled;

- (3) NATO infrastructure information such as Emergency Management, Infrastructure Security Information, Information Systems Vulnerability Information, Physical Security;
 - (4) NATO security information such as Internal Data or Operations Security, Security Agreement Information, Security Enforcement Information, Transportation Arrangements, Personnel Security Information, Privacy Information, or Sensitive Personally Identifiable Information.
 - (c) **“Information”** means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual.
 - (d) **“Information system”** means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information.
 - (e) **“Safeguarding”** means measures or controls that are prescribed to protect information systems.
2. **Safeguarding requirements and procedures.** The Contractor shall provide adequate security on all contractor CIS. To provide adequate security, the Contractor shall implement, at a minimum:
- (a) For contractor CIS that are part of a cloud computing service or an Information Technology (IT) service or system developed or operated on behalf of NATO shall be subject to the security requirements specified elsewhere in this Contract.
 - (b) For contractor CIS storing, processing, or transmitting NATO RESTRICTED Information the security requirements specified in the Statement of Work (SOW) reference to: “Safeguarding of NATO Restricted Information” applies.
 - (c) For contractor CIS storing, processing, or transmitting NATO UNCLASSIFIED Information that are not part of a cloud computing service or IT service or system operated on behalf of NATO, the Contractor shall apply the minimum mandatory security measures as described in the SOW.
3. **Other requirements:** This clause does not relieve the Contractor of any other specific safeguarding requirements specified elsewhere in this Contract or of other applicable NATO or national regulatory requirements.
- (a) A breach of these obligations may subject the Contractor to contractual actions in law and equity for penalties, damages, and other appropriate remedies by the Purchaser.
4. **Subcontracts:** The Contractor shall include the substance of this clause, including this Clause, in subcontracts under this Contract (including subcontracts for the acquisition of commercial products or services in which the subcontractor may have NATO Information residing in or transiting through its CIS.

6. CYBER INCIDENT REPORTING [MAY 2026]

(a) **Definitions:** As used in this Clause:

- (1) **“Contractor Attributional or Proprietary Information”** means information that identifies the contractor(s), whether directly or indirectly, by the grouping of information that can be traced back to the contractor(s) (e.g. program description, facility locations), personally identifiable information, as well as trade secrets, commercial or financial information, or other commercially sensitive information that is not customarily shared outside of the company.
- (2) **“Compromise”** means disclosure of information to unauthorized persons, or a violation of the security policy of a system, in which unauthorized intentional or unintentional disclosure, modification, destruction, or loss of an object, or the copying of information to unauthorized media may have occurred.

- (3) **“NATO Information”** means as defined in GTC A.5.5.
- (4) **“Cyber Incident”** means any detected anomaly compromising, or that has the potential to compromise, communication, information or other electronic systems or the information that is stored, processed or transmitted in these systems.
- (5) **“Forensic Analysis”** means the practice of gathering, retaining, and analyzing computer-related data for investigative purposes in a manner that maintain the integrity of the data.
- (6) **“Information System”** means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information.
- (7) **“Malicious Software”** means computer software or firmware intended to perform an unauthorized process that will have an adverse impact on the confidentiality, integrity, or availability of an information system. This definition includes a virus, worm, Trojan horse, or other code-based entity that infects a host, as well as spyware and some forms of adware.
- (8) **“Media”** means physical devices or writing surfaces including, but is not limited to, magnetic tapes, optical disks, magnetic disks, large-scale integration memory chips, and printouts onto which NATO Information is recorded, stored, or printed within a contractor CIS.

(b) Cyber Incident Reporting Requirement

- (1) When the Contractor discovers a Cyber incident that affects a contractor Communication Information Systems (CIS) or NATO Information residing therein, or that affects the Contractor's ability to perform the Requirements of the Contract, the Contractor shall:
 - (i) Conduct a review for evidence of compromise of the NATO Information, including, but not limited to, identifying compromised computers, servers, specific data, and user accounts. This review shall also include analyzing contractor CIS that were part of the cyber incident, as well as other information systems on the Contractor's network(s), that may have been accessed as a result of the incident in order to identify compromised NATO Information, or that affect the Contractor's ability to perform the Requirements of the Contract; and,
 - (ii) Report the Cyber incident(s) to the Purchaser within seventy-two (72) hours of discovery of any Cyber incident.
- (2) **Cyber Incident Report.** The Cyber incident report shall be treated as information created by or for the Purchaser and shall include, at a minimum, the following content:
 - (i) Company name;
 - (ii) Facility Clearance Level;
 - (iii) Company point of contact information (name, position, telephone, email);
 - (iv) NCIA's Project Manager Point of Contact (name, position, telephone, email);
 - (v) NCIA's Contracting Officer Point of Contact (name, position, telephone, email);
 - (vi) Contract number(s) or other type of agreement affected or potentially affected;
 - (vii) Contract or other type of agreement classification level;
 - (viii) Impact to NATO Information or provided products or services;
 - (ix) Ability to provide operational support;
 - (x) Date incident discovered;
 - (xi) Location(s) of compromise;
 - (xii) NATO programs, platforms or systems involved;
 - (xiii) Classification of the systems involved;
 - (xiv) Type of compromise (unauthorized access, unauthorized release (includes inadvertent release), unknown, not applicable);
 - (xv) Description of technique or method used in the cyber incident;
 - (xvi) Incident outcome (successful compromise, failed attempt, unknown);
 - (xvii) Incident or Compromise narrative (Ex: Chronological explanation of event/incident, threat actor TTPs, indicators of compromise, targeting, mitigation strategies, and any other relevant

information to assist in understanding what occurred) Include in this section what actions have been taken to mitigate the risk/damage of both hardware and software assets;

(xviii) Confirm whether news media are already aware or informed of the incident;

(xix) Any additional information.

- (3) Subject to the Purchaser's consultation with the Contractor's national cyber defense authority or as prescribed in the Contractor's nation's Memorandum of Understanding (MoU) on Cyber Defense with NATO, the Purchaser reserves the right to request the following:

(i) **Malicious Software.** When the Contractor or Subcontractor(s) discover and isolate malicious software in connection with a reported cyber incident, inform the Purchaser who in turn can to request the malicious software or decline interest.

(ii) **Media Preservation and Protection.** When a Contractor discovers a Cyber incident has occurred, the Contractor shall preserve and protect images of all known affected information systems identified in clause GTC A.5.6(b)(2) of this Clause and all relevant monitoring or packet capture data for at least ninety (90) Days from the submission of the Cyber incident report to allow the Purchaser to request the media or decline interest.

(iii) **Access to Additional Information in Support of an Incident Investigation.** Upon request by the Purchaser, the Contractor shall provide the Purchaser with access to additional information that is necessary to conduct an incident investigation.

(iv) **Cyber Incident Damage Assessment Activities.** If the Purchaser elects to conduct a damage assessment, the Purchaser may request that the Contractor provide all of the damage assessment information gathered in accordance with clause GTC A.5.6(b)(4) of this Clause.

- (4) **Information Handling.** The Purchaser shall protect information reported or otherwise provided to the Purchaser under this Clause that includes contractor attributional or proprietary information in accordance with applicable NATO policies. To the maximum extent practicable, the Contractor shall identify and mark contractor attributional or proprietary information. The Purchaser may use contractor attributional information and disclose it only for purposes and activities consistent with this Clause. The Purchaser will implement appropriate procedures to minimize the contractor attributional or proprietary information that is included in such an authorized release, seeking to include only that information that is necessary for the authorized purpose(s) for which the information is being released.

- (5) The Contractor shall conduct activities under this Clause in accordance with applicable NATO regulations and Contractor national laws and regulations on the interception, monitoring, access, use, and disclosure of electronic communications and data.

- (6) **Other Reporting Requirements.** The Cyber incident reporting required by this Clause in no way abrogates the Contractor's responsibility for other Cyber incident reporting as required by other applicable Clauses of the Contract, or as a result of other applicable NATO regulations or Contractor national law or regulatory requirements.

- (7) **Subcontracts.** The Contractor shall:

(i) Include this Clause, including this Clause GTC A.5.6(b)(7)(i), in Subcontracts, or similar contractual instruments, for which subcontract performance will involve NATO Information, including subcontracts for commercial items, without alteration, except to identify the parties. The Contractor shall determine if the information required for Subcontractor performance retains its identity as NATO Information and will require protection under this Clause, and, if necessary, consult with the Purchaser; and,

(ii) Require Subcontractors to provide a copy of the incident report to the prime Contractor (or next higher-tier Subcontractor) as soon as practicable, when reporting a Cyber incident to the Purchaser as required in Clause GTC A.5.6(b) of this Clause.

END OF G.A.5: DATA RIGHTS AND SECURITY TERMS AND CONDITIONS

GTC A.6. NATO AND NCIA PERSONAL DATA PROTECTION TERMS AND CONDITIONS

1. PERSONAL DATA PROTECTION [MAY 2026]

- (a) Although NATO, as an international organization, is not subject to European Regulation 2016/679 (GDPR) and national data protection law, it is committed to protecting the personal data that it processes. All processing of Personal Data that is considered Purchaser Data will be done in accordance with the [NATO Personal Data Protection Policy](#) all applicable laws, regulations standards and certifications that are considered Good Industry Practice.
- (b) Where the provision of the Contract involves the processing of Personal Data by the Contractor on behalf of the Purchaser (beyond ordinary contact details for the purpose of administering the Contract), the Contract Special Terms and Conditions shall refer to a Data Processing and Transfer Agreement. In all other cases, the Data Processing and Transfer Agreement shall not apply. The Purchaser has the right to verify compliance with this Personal Data Protection Clause in accordance with Clause GTC A.3.8 ("Audit and Access to Records").

2. PURCHASER DATA [MAY 2026]

- (a) The Contractor acknowledges that the performance of the Contract may require the processing, exchange, transmission or storage of Purchaser Data by the Contractor or the Contractor's cloud service provider(s), Subcontractors or suppliers.
- (b) The Contractor shall not disclose or use the Purchaser Data for any purpose other than the strict provision of Cloud Services to the Purchaser under the Contract, or any other purpose as explicitly authorized by the Purchaser in writing. The Contractor shall process the Purchaser Data in full compliance with and within the limits of the explicit written instructions and authorization granted to it by the Purchaser, and in compliance with the security requirements set forth in Clause 4 ("Security of Information Technology") of the Core General Terms and Conditions.
- (c) The Contractor acknowledges that the Purchaser shall at all times retain full access and unrestricted control over all Purchaser Data. The Purchaser's right of access and control shall include the Purchaser being able to retrieve, delete, duplicate and transfer all Purchaser Data at any moment during the term of Contract. Data created by the use of any Equipment (such as vehicles or devices, whether or not provided by the Contractor), and collected and stored by the Contractor (such as, without limitation, telemetry data), shall be regarded as Purchaser Data.
- (d) The Purchaser shall retain exclusive ownership, title, interest and all applicable IPRs in and to the Purchaser Data provided directly or indirectly to the Contractor or any of its Subcontractors or suppliers throughout the Contract. The Purchaser shall have the right to transfer the Purchaser Data to, or share the Purchaser Data with third parties, and it shall have the right to request that Purchaser Data be transferred to or shared with a third party if the Purchaser is not able to perform such actions by itself. The Contractor shall make no statement or take no action to deny or restrict the rights of the Purchaser.
- (e) With regard to personal Purchaser Data, the Contractor will act as a processor of the Purchaser Data on behalf of the Purchaser and only for the purposes of the Contract, and the Purchaser as a controller (who determines the purpose, means and conditions of the Purchaser Data). The Contractor ensures that any Subcontractors, cloud service providers or other suppliers that process personal Purchaser Data, shall comply with the obligations set forth in Clause GTC A.6.1 of the Core General Terms and Conditions ("Personal Data Protection").
- (f) The Contractor shall make sure to process Purchaser Data exclusively within the agreed territory and in any case exclusively within NATO Member Nations. Under no circumstances shall the Contractor (nor any Subcontractor or entity acting on behalf of the Contractor) process any Purchaser Data within a non-NATO Member Nation, nor export any Purchaser Data to such nation.

- (g) In addition to the Contractor's obligations regarding the reporting and remediation of Cyber Incidents (Clause GTC A.5.6 ("Cyber Incident Reporting")) and Clause GTC A.6.5 ("Cyber Incidents") of the Core General Terms and Conditions, the Contractor shall immediately inform the Purchaser in the event the Contractor becomes aware of any identified or potential loss of Purchaser Data or breach of integrity or confidentiality of the Purchaser Data. In any such cases, the Contractor shall assist the Purchaser in mitigating the impact thereof and shall fully cooperate with the Purchaser to notify affected individuals or relevant authorities.
- (h) Any breach by the Contractor of the obligations relating to Purchaser Data is subject to Contractor liability under the Contract in addition to it constituting a Default that constitutes a right for the Purchaser to terminate the Contract entirely or partially in accordance with Clause GTC A.4.14 of the Core General Terms and Conditions ("Termination for Cause – For Default").

3. TERMINATION OF PURCHASER DATA EXCHANGE [MAY 2026]

- (a) The Contractor shall, upon the termination of the Contract, regardless of the reason of its termination, at no cost for the Purchaser and in addition to any rights or remedies the Purchaser may have:
- (1) Transfer or migrate the Purchaser Data, accurate, complete and up to date, in a manner and format that is easily processed by the Purchaser or its nominated agent or contractor; and, if so required, (a) provide effective tools for the export or migration of Purchaser Data, or (b) prepare or perform the export or migration activity to enable successful use in the new environment;
 - (2) After written request or consent of the Purchaser, securely erase all stored Purchaser Data;
 - (3) Provide the Purchaser at the latest ten (10) Days after the Purchaser's request or consent with a written confirmation of the complete, secure and final deletion of all Purchaser Data (meaning that such data cannot be recovered or reconstructed) on any of the Contractor's or its Subcontractor's systems;
 - (4) Inform the Purchaser immediately in case the Contractor is not capable of destroying or deleting certain Purchaser Data because of technical reasons. In such case the Contractor shall take all necessary steps to:
 - (i) Come to the closest possible to a complete and permanent deletion of the Purchaser Data and to fully and effectively anonymize the remaining data; and
 - (ii) Make the remaining Purchaser Data that is not deleted or effectively anonymized unavailable for further processing.
 - (5) Upon request of the Purchaser, the Contractor shall offer to the Purchaser within seven (7) Days, of such request, a data extraction solution at no additional cost, which shall be reasonably operable by the Purchaser.
 - (6) In accordance with Clause GTC F.9 ("Termination Assistance") of the General Terms and Conditions for Cloud Services, an Exit Plan may include additional or deviating obligations, which will prevail.

4. SECURITY OF INFORMATION TECHNOLOGY [MAY 2026]

- (a) The Contractor shall ensure the secure, confidential and safe operation of the Services (including Cloud), including the secure storage and transfer of Purchaser data. The Contractor shall at minimum implement the technical, physical and organizational security measures as set forth in the Specifications, and shall ensure compliance with any legislation and communicated NATO policies related to information security and the protection of personal data, business data, as well as Classified Information.

- (b) The Contractor complies and will remain compliant with the security certifications and standards required in the Specifications.
- (c) In general the Contractor shall take all technical and organizational measures, at least in accordance with Good Industry Practice and any Specifications and standards set forth in the Contract, to ensure that (a) unauthorized persons cannot access any Purchaser Data, information, documentation, systems, infrastructure, applications, networks and other components of, or related to, NATO, and that (b) all Purchaser Data is sufficiently protected against accidental or unauthorized access, loss, destruction, alteration, disclosure or any other unauthorized form of using or processing said data, by, among other means, application of appropriate authentication processes, high standards of encryption of data (both in transmission and at rest), and (c) the security of infrastructure, applications, resources, networks and Purchaser Data is continuously monitored and security risks are automatically remedied and prevented where possible.
- (d) For Cloud Services, the Contractor shall:
 - (1) Use a hybrid tenant cloud infrastructure, enabling the combined use of resources from a private cloud environment and the Contractor's cloud environment, and shall ensure that any Purchaser Data shall at all times be segregated from the data of any other customer of the Contractor;
 - (2) Implement agreed access control measures to the Cloud Solution and shall only grant access rights to those members of its personnel who need to access the Purchaser Data on a strict need-to-know-basis); and
 - (3) Ensure that its personnel (as well as its Subcontractor's personnel) which have access to the Purchaser Data will comply to the secrecy, confidentiality and privacy obligations under the Contract and that such personnel are appropriately trained in data security practices, data compliance and the privileges and immunities applicable to NATO data.
- (e) The Parties agree that a fast detection of any security risks and a fast correction or mitigation thereof is a crucial aspect of the Services (including Cloud). Furthermore, the Parties agree that the transparent and global monitoring of all involved resources and Services is a crucial aspect of the Services (including Cloud).
- (f) Any breach by the Contractor of the obligations relating to security requirements is subject to Contractor liability under the Contract in addition to it constituting a default that constitutes a right for the Purchaser to terminate the Contract entirely or partially.

5. CYBER INCIDENT [MAY 2026]

- (a) In addition to the Cyber Incident reporting obligations set forth in Clause GTC A.5.6 ("Cyber Incident Reporting") of the Core General Terms and Conditions, the Contractor shall deliver a Cyber Incident Management Plan (CIMP) that is aligned to cyber security controls in line with NATO Security Policy and its supporting directives, as further specified in the Contract.
- (b) The Contractor shall create, maintain and operate a formal incident response and forensic capability for protection of NATO Information residing on NATO or non-NATO Information Systems. The Contractor shall include the Subcontractors and suppliers that provide infrastructure or perform support work that involves NATO Information.

6. DISASTER RECOVERY AND BUSINESS CONTINUITY [MAY 2026]

- (a) The Contractor shall ensure that sound principles of business continuity, contingency and disaster recovery are implemented in the design and implementation of the Services (including Cloud), in accordance with Good Industry Practice and any Specifications and standards set forth in the Contract.

- (b) The Contractor shall at all times have and maintain an appropriate business continuity and disaster recovery plan (BCP) in the accompanying Statement of Work to ensure the continuity of the Services (including Cloud), including without limitation the implementation of efficient failover systems, redundancy and appropriate back-up retention of data. Contractor's BCP shall be:
- (1) Periodically updated, according to industry standards and the evolution of the Services (Cloud) and their environment;
 - (2) Aligned with NATO's business continuity policies;
 - (3) Explained in detail to the Purchaser upon the latter's request, including the provision of all appropriate documentation and information;
 - (4) Thoroughly subjected to testing as set forth in the Contract, the results whereof shall be communicated to NATO upon the latter's request.

7. DATA IMMUNITY AND DISCLOSURE REQUESTS [MAY 2026]

- (a) The Contractor acknowledges that any Purchaser Data is protected by international treaties and falls under the inviolability of archives as set out in the 1951 Ottawa Agreement on the Status of the North Atlantic Organization, National Representatives and International Staff and the 1952 Paris Protocol on the Status of International Military Headquarters set up pursuant to the North Atlantic Treaty.
- (b) The Contractor shall not give access to any third party (including competent authorities) to any Purchaser Data without the prior written authorization of the Purchaser, unless such request for prior authorization would place the Contractor in breach of national law.
- (c) The Contractor shall notify NCIA without delay of any legally binding request for disclosure of Purchaser Data by any competent national public authority, including an authority from a third country (hereafter "Data Disclosure Requests" or "DDR"). The notification shall include sending the Purchaser a copy of the DDR and a copy of the request by the Contractor to the competent requesting authority to include the Purchaser directly into the DDR process. The Contractor shall let the Purchaser interact with any authority, instance or legally competent requestor.
- (d) In case the Contractor is legally prohibited from exchanging the DDR with the Purchaser, the Contractor shall ensure to (i) invoke the aforementioned inviolability of NATO or Purchaser Data towards the competent requesting authority, (ii) pursue all available options of appeal, (iii) seek interim measures with suspending effect until the competent requesting authority has decided on the merits, and (iv) not disclose any Purchaser Data until a non-appealable decision is granted.
- (e) The Contractor shall at all times during a DDR process limit disclosure of Purchaser Data to the absolute minimum (e.g. by imposing confidentiality restrictions or other limitations of use), including in case of a non-appealable decision by the competent requesting authority.
- (f) The Contractor shall promptly notify the Purchaser upon becoming aware of any direct access by a competent requesting authority to Purchaser Data (e.g. without due process or prior request) and provide information available to the Contractor in this respect, to the extent permitted by law.
- (g) The Contractor shall instruct its Subcontractors involved in the processing of Purchaser Data to strictly abide by the relevant commitments and requirements in case of a DDR addressed directly to a Subcontractor by a competent requesting authority.

8. RESPONSIBILITY FOR THE HOSTING ACTIVITY [MAY 2026]

- (a) If the Contractor, including as a Cloud Service Provider, engages a third party to provide hosting services, the Contractor shall assume responsibility for the hosting activities in accordance with the terms of the Contract, unless the Purchaser enters a direct agreement with the third party performing

the hosting activities.

**END OF G.A.6: NATO AND NCIA DATA PROTECTION TERMS AND
CONDITIONS**



GTC B

GENERAL TERMS AND CONDITIONS FOR SERVICES (NON-SOFTWARE)

GTC B.1. GENERAL [MAY 2026]

1. The following Terms and Conditions apply for the provision of Services and Deliverables as agreed in the Contract. Capitalized terms used but not otherwise defined in these General Terms and Conditions shall have the meaning ascribed to them in the Core General Terms and Conditions.
2. The Contractor shall provide to the Purchaser the Services and Deliverables as specified in the Contract. The Purchaser reserves the right to reject, at the Contractor's expense, any Service and any Deliverable provided by the Contractor that does not conform to the description of the Services and Deliverables agreed in the Contract.
3. Except as otherwise expressly provided in the Contract, the Contractor shall be responsible for providing the facilities, personnel, materials, tools, and other resources as necessary to provide the Services and Deliverables under the conditions specified in the Contract. If the Contractor uses Purchaser Furnished Property, Clause GTC A.1.9 of the Core General Terms and Conditions ("Purchaser Furnished Property") shall apply.

GTC B.2. DOCUMENTATION AND REPORTS [MAY 2026]

1. The Contractor will provide documentation for the provided Services and any Deliverables at the latest within five (5) Days after completion. Unless otherwise agreed, documentation will be provided in English and in a digital format (i.e. .pdf). The Contractor is obliged to give the Purchaser access to the current state documentation upon request at any time.
2. The documentation shall meet reasonable standards of completeness, clarity, detail and accuracy so as to enable the Purchaser to understand the operation, use and maintenance of the corresponding Services and any Deliverables, as well as its compliance with the Specifications. Documentation will be submitted for Acceptance as set forth in Clause GTC B.7 of these General Terms and Conditions for Services.
3. The Contractor shall provide to the Purchaser complete and timely reports describing the status and performance of the projects, the Services and the Deliverables, as set forth in the Contract.

GTC B.3. CONTRACTOR'S PERSONNEL [MAY 2026]

1. The Contractor shall provide and pay an adequate number of personnel as required to perform the Services and provide the Deliverables properly and timely. The Contractor shall only involve personnel that have the qualifications, expertise, skills and experience required to perform the tasks that they are to perform.
2. The Contractor shall, with respect to the Contractor's personnel, strictly comply with all applicable laws, such as labor law, social security law, tax law, legislation regarding work permits and the employment and residence of personnel according to the laws of the place of performance.
3. The Personnel provided by the Contractor are at all times employees of the Contractor and not of the Purchaser. In no case shall the Contractor's personnel act on behalf of or as an agent for NATO or any of its bodies. In no way shall the Contractor's personnel claim directly or indirectly to represent NATO in an official capacity or claim themselves to be NATO employees.
4. The Purchaser shall not be responsible for securing work permits, lodging, leases nor tax declarations, driving permits, etc., with national or local authorities. The Contractor's employees, agents, or representatives are not eligible for any diplomatic privileges nor NATO employee benefits.
5. The Contractor shall inform its employees, agents, and representatives under the Contract of the relevant terms of the Contract and the conditions of the working environment. In particular, the Contractor's personnel shall be made aware of all risks associated with the performance under the Contract, the conditions of the site(s) in which the performance is to take place and living conditions

while performing within the boundaries of the Contract.

6. The Purchaser will have the right to reasonably require the Contractor to remove from the performance of the Services any member of Contractor's personnel who does not have the qualifications or expertise required to perform its tasks, who is not providing the required level of performance, or has caused disruption at the facilities of the Purchaser, and to replace such personnel upon reasonable notice and having provided Contractor the opportunity to address the Contractor's concerns with respect to that individual.
7. The Contractor and Purchaser may jointly designate certain positions as crucial to providing the Services under the Contract ("Key Personnel"), as is set forth in the Contract. The Contractor shall cause each member of Key Personnel to devote the time and effort necessary to provide the Services and Deliverables in line with the requirements of the Contract.
8. Except at the Purchaser's request, the Contractor may not transfer or replace any individual indicated as a member of Key Personnel unless (a) the Purchaser gives its prior consent in writing and Purchaser has approved a suitable replacement who is equal or better qualified, without extra cost to the Purchaser, or (b) unless if such employee retires or terminates their contract with the Contractor or (c) unless they become unavailable due to illness. No transfer or replacement may occur at a time or in a manner that would have an adverse impact on the delivery of the Services. The Contractor shall guarantee that suitable backup personnel will be available to promptly remedy situations of non-availability of Key Personnel that may endanger the timely performance and delivery of Services or Deliverables set forth in the Contract.
9. The Contractor shall ensure that any individual replacing a member of Key Personnel will have received all necessary knowledge and information. The replacement of a member of Key Personnel will be subject to the prior written approval of the Purchaser. In any case, the replacing person will be involved in the supply of the Services and Deliverables free of charge during a period that is reasonably necessary to become fully familiar with the supply of the Services and Deliverables, which will be estimated as a minimum of five (5) Days for Key Personnel. The Contractor bears the cost of replacing its personnel and is responsible for any delay in providing the Services or Deliverables resulting from the replacement of Key Personnel.

GTC B.4. CONTRACTOR'S PERSONNEL WORKING AT PURCHASER'S FACILITIES [MAY 2026]

1. The term "Purchaser Facilities" as used in this Clause shall be deemed to include sites, property, utilities, ships or vessels and the term "Facility Representative" shall be deemed to refer to the authority designated by the Purchaser responsible for the site, property, utility, ship or vessel.
2. The Facility Representative shall provide such available administrative and technical facilities for Contractor's personnel working at Purchaser Facilities for the purpose of the Contract as in the opinion of the Facility Representative may be necessary for the effective and economical discharge of Services. The Contractor shall have no claim against the Purchaser for any delay occasioned by the closure for holidays of said facilities, or for other reasons, where this is generally published or made known within five (5) Days of performance to the Contractor by the Purchaser or its authorized representatives.
3. The Contractor shall, except as otherwise provided for in the Contract, make good or, at the option of the Purchaser, pay compensation for all damage occurring to any Purchaser's Facilities occasioned by the Contractor, their personnel, agents or Subcontractors, arising from their presence and activities in, and use of, the Purchaser's Facilities, unless the Contractor is able to show that any such damage was not caused or contributed to, by their neglect or default or the neglect or default of their personnel, agents or Subcontractors, or by any circumstances within their control.
4. All property of the Contractor while at a Purchaser Facility shall be at the risk of the Contractor, and the Purchaser shall accept no liability for any loss or damage, except to the extent that any loss or

damage is the result of negligence on the part of the Purchaser's employees or agents.

5. While at Purchaser Facilities, Contractor's personnel shall: (a) comply with the Purchaser's policies as well as other reasonable requests, rules and regulations regarding personal and professional conduct (including the wearing of an identification badge and adhering to general safety, dress, behavior, security and confidentiality practices or procedures) generally applicable to such facilities, and (b) otherwise conduct themselves in a businesslike and professional manner.
6. If the Purchaser notifies the Contractor in writing of any non-compliance in the performance of the Contract with safety and health rules and requirements prescribed on the date of the Contract by applicable national or local laws, ordinances and codes, and the Contractor fails to take immediate corrective action, the Purchaser may order the Contractor to stop all or part of the work until satisfactory corrective action has been taken. Such an order shall not entitle the Contractor to an adjustment of the Contract price or other reimbursement for resulting increased costs, or to an adjustment of the delivery or performance schedule.
7. If the Purchaser reasonably determines that an emergency situation calls for the removal of a member of the Contractor's personnel from any Purchaser Facilities (including for any violation of Purchaser's policies or any laws, or any substantiated threat or damage to Purchaser's or its personnel's safety or property), then the Purchaser may immediately require such member of Contractor's personnel to vacate the facilities.
8. The Purchaser shall at no time be considered as having an employer relationship with the Contractor or the Contractor's employees, even if the Purchaser should give the Contractor's personnel certain instructions concerning the performance of the agreed Services in its facilities. The Parties shall respect any applicable legislation concerning temporary work, outsourcing or the making available of employees to certain customers, and any limitations concerning instructions and control set forth in such legislation. A distinction should be made to ensure that the Purchaser does not appear as the employer of the Contractor or any of the Contractor's personnel.
9. The Contractor shall ensure that its personnel, agents and Subcontractors shall not use the location of Purchaser Facilities for the transmission of any material which is illegal, defamatory, offensive, or obscene, or in a manner which constitutes a violation or infringement of the rights of any person or organization, including but not limited to rights of copyrights or confidentiality.

GTC B.5. CONTRACTOR-OWNED ASSETS [MAY 2026]

1. Contractor-Owned Assets must clearly display a Contractor Badge or Logo Marking and Label with the statement:

"This is the Property of [Insert Supplier Name]. Do Not Open or Tamper with this Equipment. In all cases of any malfunction or other such event please contact the Service Manager [Name] and Contact details [Number and email address]."

GTC B.6. INSPECTION, TESTING AND ACCEPTANCE OF SERVICES AND DELIVERABLES [MAY 2026]

1. This Clause is by default applicable to the inspection, testing and Acceptance of Services and Deliverables as the result of Services, excluding development, configuration or implementation of Software which is governed by the General Terms and Conditions for Software developed for NATO Purposes.
2. Unless otherwise stated in the Statement of Work, the Purchaser will provide the Contractor with a Quality Assurance Surveillance Plan (QASP) to verify required outcomes of contractor performance. Acceptance of service requirements will depend on the Contractor's ability to meet Acceptable Quality Level (AQL) criteria, described in the Statement of Work, and its ability to correct any Defects within Purchaser-identified remediation periods. Any unacceptable performance, not corrected by the Contractor, will be seen as a Defect that will need to be remedied.

3. The Contractor warrants and shall demonstrate to the Purchaser that the Services and Deliverables successfully achieve Acceptance at or before the agreed (Key) Milestone Date, using the process of any agreed inspection, acceptance and testing procedure ("AT procedure") in order to satisfy any specifically agreed acceptance criteria or the agreed Specifications, as well as the characteristics of the Services and Deliverables described in existing Documentation (jointly the "Acceptance Criteria"). Before submitting the Services and Deliverables to the Purchaser for inspection, testing and Acceptance, the Contractor will have performed the necessary inspections and tests in order to verify the conformity of the Services and Deliverables with the Acceptance Criteria.
4. The Contract shall indicate the roles and responsibilities of each Party in drafting the applicable Acceptance Criteria and the AT procedure and their roles in the performance of each inspection and testing phase that will be part of an AT procedure. The Contractor shall provide the necessary inspection environment, equipment and support required for each AT procedure. The Contractor and the Purchaser shall agree with the timing for the performance of each AT procedure, which will be sufficiently long in order to enable a thorough inspection of the Services and Deliverables. In the event that discovered Defects have an impact on the inspection and testing activities, the period foreseen for the inspections and tests shall be reasonably extended.
5. If timing, inspection procedure, and tests are not specified or agreed between the Parties, then (a) the Purchaser, or its authorized representative, will have ninety (90) Days from the date the Services or Deliverables are received by the Purchaser to conduct the AT procedure (or such a longer period as is reasonable considering the complexity of the Deliverables or the operation of the Services) and (b) the Purchaser may use its own evaluation procedure, test scenarios, methods and test data.
6. If the Purchaser determines that the Services and Deliverables conform to the Acceptance Criteria, the Purchaser shall deliver a written statement of Acceptance to the Contractor. The Services and Deliverables will only be deemed accepted after the explicit signing and delivery of such Acceptance statement. Payment for, or the use of any Services or Deliverables by the Purchaser will never as such be deemed an implicit Acceptance or a waiver of any rights by the Purchaser.
7. Acceptance will not cover Defects that were not apparent during the AT procedure. Acceptance of Services and Deliverables in an inspection or test environment will not cover Defects that appear in an operational or production environment. Acceptance of Services and Deliverables that are not integrated with other items will not cover Defects that appear in an integrated environment.
8. If the Purchaser determines that the Services or Deliverables fail to satisfy the Acceptance Criteria, the Purchaser will reject the Services or Deliverables providing a notice describing the discovered Defects ("Rejection Notice"). In the event of a Rejection Notice the Contractor shall respond to the notice within two (2) Days, and it shall correct at no cost to the Purchaser any failure(s) to satisfy the Acceptance Criteria that are documented in the Rejection Notice, and deliver within an agreed reasonable timeframe the corrected Services and Deliverables to the Purchaser for reinspection. The agreed AT procedure may set forth different categories of Defects that must be corrected within an agreed number of days, according to the severity of the Defect (such as by way of example, Blocking, Major and Minor Defects). The Purchaser will have the right to notify further Defects that are discovered after the Rejection Notice.
9. After the delivery of the corrected Services and Deliverables as provided in Clause GTC B.6.8, the Purchaser will have an agreed, or at least reasonable, period of time to inspect the conformity of the Services and Deliverables. If the Purchaser determines that the Service or Deliverable still does not conform to the Acceptance Criteria, then the Purchaser may choose at its discretion any if the following remedies:
 - (a) Reject the Service or Deliverable and provide the Contractor with an additional period of time to correct any Defect or remove and replace the Service and Deliverable or defective part of it at no additional cost for Purchaser;
 - (b) Conditionally accept the Service or Deliverable with formulation of caveats or reservations for certain Defects, subject to the Contractor's commitment to a binding remediation plan to promptly

correct such Defects at no additional cost for the Purchaser;

- (c) Conditionally accept and use the non-compliant Service or Deliverable, subject to an equitable reduction in fees until the Contractor corrects such non-conformity at no additional cost for the Purchaser;
 - (d) Immediately terminate, as of right and for material Default, the Contract in whole or in part, upon notice to the Contractor. In such case, the Contractor shall promptly refund all amounts paid by the Purchaser pursuant to the Contract for the terminated part, and the provisions of Clause GTC A.4.14 ("Termination for Cause - for Default") and Clause GTC A.4.17 ("Consequences of Termination") of the Core General Terms and Conditions shall apply accordingly.
10. Under Clauses GTC B.6.9(a)-GTC B.6.9(d) above, the Service or Deliverable should again be subject to an AT procedure. In case of repeated rejection by the Purchaser, the Purchaser shall be entitled to choose between the same remedies. The above options shall not replace or limit any rights and remedies available to the Purchaser under the law or the Contract.
 11. If the Contractor does not agree with the assessment or decision of the Purchaser, the resulting dispute will be dealt with in accordance with Clause GTC A.4.21 ("Disputes") of the Core General Terms and Conditions.
 12. If the rejection of the Service(s) or Deliverable(s) results in failure to successfully achieve a Milestone Date, the provisions of Clause GTC A.4.9 ("Delay and Liquidated Damages") of the Core General Terms and Conditions shall apply.
 13. Unless otherwise agreed, the Acceptance of a Service or Deliverable as described above in this Clause will be deemed Provisional Acceptance. As from Provisional Acceptance, the Purchaser will benefit of a warranty period of twelve (12) months to verify that the Deliverable(s) and Services meet the Specifications and contain no Defects. During the Warranty Period, Defects will be corrected free of charge. If all Defects that are discovered during the Warranty Period are corrected at the expiry of the Warranty Period, the Purchaser will confirm the Final Acceptance, or Final Acceptance may be granted by the Purchaser, leaving only residual warranty provisions to be executed until the end of the Warranty period. Final Acceptance will cover apparent Defects, but will not cover hidden Defects that only become apparent under specific circumstances. Furthermore, during the entire Term of the Contract, the Purchaser may request any correction of operational Services if an applicable Service Level is not successfully achieved.
 14. All Services and Deliverables may be subject to inspection and testing by the Purchaser or their authorized representative(s) at all times and places prior to the delivery for Acceptance activities.
 15. If any inspection or test is made by the Purchaser's representatives on the premises of the Contractor or Subcontractor, the Contractor, without additional charge, shall provide all reasonable facilities and assistance for the safety and convenience of the Purchaser's representatives in the performance of their duties. The Purchaser representatives shall have the right of access to any area of the Contractor's or their Subcontractor's premises where any part of the contractual work is being performed. All such inspections and tests by the Purchaser shall be performed in such a manner as not to unduly delay the work.
 16. The Purchaser reserves the right to charge to the Contractor any additional cost of Purchaser inspection and test when the Service or Deliverable is not ready at the time such inspection and test are requested by the Contractor or when reinspection or retest is necessitated by prior rejection.
 17. Failure to timely accept or reject a Service or Deliverable within the agreed timing shall neither relieve the Contractor from responsibility for such Service or Deliverable nor impose liability on the Purchaser. However, Purchaser-caused delays may allow for mutually agreed upon extension of Milestone dates.
 18. Except as otherwise provided in the Contract, Acceptance shall be conclusive except as regarding latent defects, fraud, or such gross mistakes as amount to fraud.

GTC B.7. INSPECTION AND ACCEPTANCE OF DOCUMENTATION **[MAY 2026]**

1. The Contractor shall provide to the Purchaser a draft version of the required documentation as provided by the Contract. Review of draft Documentation under the Contract will be made by the Purchaser upon the delivery of these items by the Contractor. The review will be conducted by the Purchaser through duly authorized representatives.
2. Upon delivery of the draft Documentation, the Purchaser will have a period of review as provided by the Statement of Work. At the end of the review period or before if deemed practical by the Purchaser, the Purchaser's comments will be presented to the Contractor in writing. The substance of such comments will pertain to items of error, non-conformity, omission, lack of clarity and guidance in relation to the requirements of the Statement of Work.
3. The Contractor shall, after receipt of the Purchaser's comments, incorporate changes, revisions and corrections required by the Purchaser and present the revised documentation in final form to the Purchaser for inspection in accordance with the Milestone Date specified in the Contract.
4. Upon receipt of the items in final form, the Purchaser will inspect the items for a period not exceeding fourteen (14) Days (or as otherwise stated in the Statement of Work). At the end of the inspection, the Purchaser will notify the Contractor that:
 - (a) The items have been Accepted;
 - (b) The Acceptance of the items is deferred pending further revision; or
 - (c) The items are rejected and significantly fail to meet the Contract Requirements. In such a case, Clause GTC B.6.9 applies.
5. Acceptance shall be made in writing by the Contracting Authority.

GTC B.8. WARRANTY [MAY 2026]

1. In addition to Clause GTC A.1.12 ("Warranty") of the Core General Terms and Conditions, this Clause GTC B.8 applies to the procurement of Services and Deliverables. Any more specific provisions on the warranty for Services and Deliverables may be specified in the Special Terms and Conditions or Statement of Work, and in such case such specific provisions will take precedence.
2. The Contractor warrants that the Services performed under the Contract and the delivered Deliverables will be performed in accordance with the most recently agreed Specifications of the Contract, including any required Service Levels, and will be of a professional, technical and general quality consistent with the best industry standards and practices that are generally in effect for contracts of this kind, and in compliance with all applicable international, national, local and sectoral laws and regulations where the Services are performed or as dictated by the Purchaser.
3. Unless otherwise specifically provided for in the Contract, all Deliverables and all Parts and equipment incorporated in the Services and Deliverables are to be new and of the most suitable grade of their respective kinds for the purpose, notwithstanding the Requirements for testing, inspection and performance as required under the Contract.
4. The Contractor warrants that as from Acceptance, the Services and Deliverables will be free from Defects and will conform to the Specifications of the Contract under normal use or any specific use as indicated to the Contractor. The Services and Deliverables will be stable and business-proven, reliable for normal use, and will be suitable for the specific use indicated by the Purchaser to the Contractor. Without prejudice to the generality of this section, the Services and Deliverables will be compatible with other services or items as indicated by the Purchaser, will be created or composed

of modern and robust technology and will be provided in accordance with the requirements of security and continuity of use that will be considered the state of the art for similar Services and Deliverables.

5. Unless agreed otherwise in the Contract, the Acceptance will take place in two (2) stages (Provisional and Final Acceptance) and the warranty period, which may be described in more detail in the Special Terms and Conditions or in the Statement of Work, shall commence at the time of Provisional Acceptance:
 - (a) Until the moment of Final Acceptance, unless otherwise set forth in the Contract; or
 - (b) Until the moment of Final Acceptance, leaving only residual warranty provisions to be executed until the end of the warranty period.
6. Unless another period of time is indicated in the Special Terms and Conditions, the duration of the warranty provided by the Contractor and its Subcontractors shall be twelve (12) months from the date of Provisional Acceptance of the Services or the resulting Deliverables, or from the date of Acceptance if the Contract provides only one Acceptance stage.
7. If any items and details are not explicitly stated in the Contract but are required for and can be reasonably deducted from the provision of the Services and Deliverables, the Contractor shall include such items or details in or with the Services and Deliverables and such items and details shall be deemed included in the total price of the Contract notwithstanding such omission.
8. Without prejudice to any other applicable provision in the Contract, in particular in connection with the agreed procedures for Acceptance or the agreed Service Levels, the Contractor shall correct any Defective Services or Deliverables, notified by the Purchaser or noticed by the Contractor, without delay and at no additional cost to the Purchaser.
9. The Contractor will be deemed not responsible for a Defect if the use of the relevant Service(s) or Deliverable(s) by the Purchaser was not in conformity with the Contract, and such use caused the Defect.

GTC B.9. OWNERSHIP AND TITLE [MAY 2026]

1. Except as may be otherwise stated in the Special Terms and Conditions and Clauses GTC A.4.14 - GTC A.4.17 of the Core General Terms and Conditions (concerning Termination), ownership and title to any Deliverable will pass to the Purchaser only upon Acceptance by the Contracting Authority in writing. Where the Contract provides for Provisional Acceptance and Final Acceptance, ownership and title will pass to the Purchaser upon written notification of Final Acceptance. Ownership of the Intellectual Property Rights in Deliverables is governed by Clause GTC A.5.3 ("Intellectual Property Rights") of the Core General Terms and Conditions.

GTC B.10. SERVICE LEVELS [MAY 2026]

1. The Statement of Work (and any annexes) may set forth specific target Service Levels or Key Performance Indicators (KPIs) applicable to certain Services, that must be achieved by the Contractor, as well as provisions regarding the measuring, reporting and monitoring of the Service Levels and the remediation of any failure to comply with the required Service Levels. In such case, it may also set forth the methodologies for adding, deleting, and modifying Service Levels and for calculating Service Level Credits or other forms of compensation or remediation.
2. The Contractor shall perform the Services in a manner that achieves such Service Levels. Unless explicitly stated otherwise, the obligation to comply with Service Levels is an obligation of result.
3. Failure to successfully achieve a Service Level will result in measures that are necessary or useful to prevent a repetition of such failure. If the Contractor is liable for such failure, such measures will be implemented at no additional cost for the Purchaser.

4. Service Credits set forth in the Contract are reductions of the fees based on a poor performance of the Services and are not a compensation for any damage as a result of the breach of a Service Level.
5. The remedies or compensation for failure to comply with a Service Level provided in the Statement of Work shall be without prejudice to the rights of the Purchaser under the Contract or by law and nothing therein contained shall constitute a limitation of the rights of the Purchaser, nor of the liability of the Contractor.
6. The reporting of performed Services against the Service Levels may require a root cause analysis in order to assess the responsibility for any failure to reach the required Service Level.

END OF G.B: GENERAL TERMS AND CONDITIONS FOR SERVICES (NON-SOFTWARE)



GTC C

GENERAL TERMS AND CONDITIONS FOR EQUIPMENT

GTC C.1. GENERAL [MAY 2026]

1. These General Terms and Conditions for Equipment apply for the procurement of Equipment.
2. When the purchase of Equipment is accompanied by substantial Services or substantial Software, the General Terms and Conditions for Services or the General Terms and Conditions for Software may apply. The applicability of these clauses will be clarified in the Special Terms and Conditions.
3. The Contractor shall deliver the purchased Equipment in conformity with the Specifications set forth in the Contract, including without limitation all agreed-upon features, quantities, performance and interoperability requirements, and the agreed additional accessories and Services, such as installation, and preventive, evolutive and corrective maintenance.
4. The Equipment shall comply with all applicable legal and regulatory product requirements, standards, and markings.
5. The installation and set-up of the purchased Equipment is the responsibility of the Purchaser unless otherwise agreed upon.
6. The documentation of the Equipment must be understandable, drafted in English and delivered in digital format, unless otherwise agreed.
7. The Contractor shall ensure robust supply chain management practices to avoid delays in delivery.
8. The Contractor agrees to maintain buffer stocks of critical components and provide regular updates on supply chain risks. In case of delays caused by supply chain disruptions, the Contractor shall bear any additional costs incurred by the Purchaser and shall promptly provide mitigation plans.
9. Capitalized terms used but not otherwise defined in these General Terms and Conditions shall have the meaning ascribed to them in the Core General Terms and Conditions.

GTC C.2. DELIVERY AND TRANSFER OF RISK [MAY 2026]

1. All deliveries of Equipment must be accompanied by the complete inventory within the Material Data Sheet (MDS) of all items and packing list to be delivered in electronic format at least 10 (ten) Days before the shipment.
2. Unless otherwise set forth in the Contract, deliveries shall be made "Delivery Duty Paid" to destination (DDP) as defined by the [International Chamber of Commerce INCOTERMS® 2020](#). It shall be noted, however, that the Purchaser is exempt from direct taxes and duties as set forth in Clause GTC A.3.4 ("Taxes and Duties") of the Core General Terms and Conditions and therefore there is no duty to be paid by the Contractor.
3. Unless otherwise agreed, the place of performance is the place of the Purchaser's place of shipment indicated in the Contract.
4. The risk of accidental loss or accidental damage of Equipment lies with the Contractor. The risk transfers to the Purchaser only at the point when the Purchaser signs a delivery notice upon receipt of the Equipment at the place of performance.

GTC C.3. INSPECTION AND ACCEPTANCE [MAY 2026]

1. The Purchaser reserves the right to inspect or test all delivered Equipment, all packages and containers by the Purchaser at the final destination. For this, the Contractor shall ensure that:
 - (a) All items requested have been accounted for;
 - (b) All packages and pallets specified in the packing lists have been accounted for;

- (c) MDS information is correct and complete as per the requirements of the Contract;
 - (d) No damage has occurred to the Equipment during transport;
 - (e) There are no dead on arrivals (DOAs).
2. The Contractor shall only tender for Acceptance those items that conform to the requirements of the Contract. The Purchaser is not obliged to accept or reject the entire delivery of Equipment. Each item must as such conform to the Specifications. The Purchaser may, at its sole discretion, accept a delivery in part without prejudice to any of its rights under the Contract.
 3. The Purchaser will notify the Contractor within fifteen (15) Days upon receipt on site regarding any discrepancies or rejection of the delivered Equipment is not in conformity with the Specifications of the Contract.
 4. The Purchaser may require repair or replacement of non-conforming Equipment at no increase in the Contract price. If repair or replacement will not correct the Defects or is not possible, the Purchaser may seek an equitable price reduction, or reject the Equipment and terminate the Contract for Default, at no cost to the Purchaser.
 5. Acceptance of Equipment can take place through a formal written and signed document, prepared by the authorized representative of the Purchaser.
 6. Manufacturing or assembly Services may be subject to inspection and testing by the Purchaser or their authorized representative(s) at all times and places prior to the delivery for Acceptance activities.
 7. The Purchaser, or its authorized representatives, shall have the right to inspect and test the Equipment at the Contractor's or Subcontractor's manufacturing facility prior to shipment to ensure compliance with the terms of the Contract, including but not limited to Specifications, quality standards, and regulatory requirements. The Contractor or Subcontractor shall provide the Purchaser with reasonable access to its premises, personnel, and relevant documentation necessary for the inspection, and shall provide all reasonable facilities and assistance for the safety and convenience of the Purchaser's representatives. The Purchaser representatives shall have the right of access to any area of the Contractor's or their Subcontractor's premises where any part of the contractual work is being performed. All such inspections and tests by the Purchaser shall be performed in such a manner as not to unduly delay the work. In-factory inspections shall not constitute Acceptance of the Equipment. Acceptance shall occur upon delivery and testing at the Purchaser's designated location, subject to any further inspection rights provided under the Contract.
 8. In such case as the Equipment has been delivered by the Contractor and offered for inspection and the Purchaser has either not made inspection or failed to provide written Acceptance or rejection of the Equipment within thirty (30) Days of delivery, the Equipment will be determined to have been accepted by the Purchaser.

GTC C.4. OWNERSHIP AND TITLE [MAY 2026]

1. Ownership and title to all Equipment delivered under the Contract will pass to the Purchaser upon Acceptance by the Purchaser.

GTC C.5. NOTICE OF SHIPMENT AND CUSTOMS DOCUMENTATION [MAY 2026]

1. The Contractor shall be responsible for customs clearance of all shipments into the destination countries. It is the Contractor's responsibility to take into account delays at customs.
2. Thirty (30) Days, or such other period as specified in the Contract, prior to the delivery of any shipment of Equipment, the Contractor shall give prepaid notice of shipment to the Purchaser.

The Notice of Shipment shall contain, as appropriate, the request for Customs Form 302, or equivalent document, which shall enable any carrier to conduct duty free import or export clearance through customs for the Purchaser on behalf of NATO. The Customs Form 302 is an official customs clearance declaration issued in advance of shipment by the Purchaser to provide certified information as to the duty free import, export, or transit of NATO consignments between NATO Member Nations.

3. The Contractor shall be responsible for the timely request of Customs Form 302, required for duty free import or export of NATO Supplies. However, this duty free status does not include any administrative charges that may incur during the customs clearance depending on the Host Nation regulations. Therefore, the Contractor shall be fully responsible for handling such administrative charges without additional cost to the Purchaser.
4. The Notice of Shipment and the written request for a Customs Form 302 shall be sent to the Purchaser Point of Contact (PoC) and shall contain the following information:
 - (a) Purchaser's Contract number;
 - (b) Contract item number, designation and quantities;
 - (c) Destination;
 - (d) Number and description of the packages (gross and net weight);
 - (e) Description of the goods and their value (for custom purpose only, not commercial value);
 - (f) Consignor's name and address;
 - (g) Consignee's name and address;
 - (h) Method of shipment (i.e. road, rail, sea, air, etc.);
 - (i) Name and address of freight forwarder.
5. The Contractor shall ensure that forwarding agents are informed of the availability of Customs Form 302 and how this form is utilized to avoid the payment of Customs Duties. Form 302 shall be added to the shipment documents to be provided to the carrier.
6. Following receipt of the request by the Purchaser, normally ten (10) Days is required for the issue of the Customs Form.
7. These forms shall be original and must be mailed or delivered by mail or express courier to the Contractor. If an express courier has to be used by the Purchaser to ensure that the Form is available on time before shipment, all associated costs shall be reimbursed by the Contractor.
8. If a country refuses to accept the Customs Form 302 and requires the payment of custom duties, the Contractor shall immediately inform the Purchaser by the fastest means available and obtain from the Customs Officer a written statement establishing that its country refuses to accept the Customs Form 302. Only after having received Purchaser's approval, shall the Contractor pay these customs duties.
9. The Contractor shall add the Customs Form 302 to the shipping documentation. It shall be noted that these documents have to be originals which need to be available for the goods to be cleared from Customs. Any unused Form 302 shall be returned to the Purchaser.
10. Upon receipt of the Notice of Shipment from the Contractor, the Purchaser may require the Contractor to send copies of the Notice of Shipment to the receiving parties and the Contractor shall comply with this requirement.

GTC C.6. PACKAGING [MAY 2026]

1. Packaging shall be adequate to protect Equipment from any damage during transport fulfilling as a minimum the requirements of STANAG 4280 "NATO Levels of Packaging", NATO packaging level 4, giving due consideration to shipping and other hazards associated with the transportation of consignments overseas even in case of:

- (a) Original Equipment Manufacturers (OEMs) use of commercial packaging;
 - (b) Electrostatic Discharge (ESD) sensitive devices;
 - (c) Hazardous or dangerous goods and goods requiring safety test reports and certificates or export licenses.
2. Packaging and any standard or special packaging materials and containers (boxes, pallets, shipping containers) required for the shipment of items shall be the responsibility of the Contractor at no extra cost to the Purchaser.
 3. The packing list shall include the following information as a minimum:
 - (a) The Shipping Address;
 - (b) Package Number;
 - (c) Contract Number and CLIN per the Schedule of Supplier and Services (SSS);
 - (d) Item Description;
 - (e) Part Number and Serial Number;
 - (f) Quantity;
 - (g) Method of shipment and destination;
 - (h) Weight and Volume details;
 - (i) Number of pallets/boxes;
 - (j) Name and address of the Contractor, Purchaser and Consignor;
 - (k) Name and address of the freight forwarder.

GTC C.7. SUPPORT AND WARRANTY [MAY 2026]

1. In addition to Clause GTC A.1.12 ("Warranty") of the Core General Terms and Conditions, this Clause GTC C.7 applies to the procurement of Equipment. Any more specific clauses on support and warranty may be specified in the Contract Special Terms and Conditions or Statement of Work, and in such case such specific clauses will take precedence.
2. The Contractor warrants that all Equipment delivered under the Contract will, from the date of either shipment by the Contractor or installation, be free from Defects and damage and will conform to the Specifications of the Contract under normal use or any specific use as indicated to the Contractor. The support shall continue for a minimum period of twelve (12) months from the date of shipment or installation (Support Period). The Support Period shall restart for any replaced or repaired components.
3. The Purchaser will report any occurring Defects and Damage to the Contractor without delay. The Contractor will inspect Defects reported to it immediately, at the latest within ten (10) Days.
4. Unless otherwise agreed, the Purchaser has the right of choice how to remedy a Defect. The Purchaser shall choose between correction of the Defect by repair or replacement, without prejudice to its right to claim compensation for any Damage caused by Defective Equipment.
5. If the original part is no longer available for repairs or replacements during the Support period, the Contractor shall provide the alternatives or superseding items, ensuring quality and form, fit and functional requirements. The Contractor shall propose the alternative part with the related part information (Part Number (P/N), Original Equipment Manufacturer (OEM)) for Purchaser approval.
6. If the Contractor fails to correct the Defect within a reasonable period set forth by the Purchaser or if repair or replacement is not possible, the Purchaser may seek an equitable price reduction or terminate the Contract partially or entirely under Clause GTC A.4.14 of the Core General Terms and Conditions ("Termination for Cause - For Default"), and the Contractor shall reimburse any amounts paid by the Purchaser.
7. All costs in connection with the removal and shipment of defective goods, parts (including Failed Components) or accessories and the shipment and installation of repaired or replacing goods, parts or accessories shall be borne by the Contractor. Any shipment done by the Contractor shall be

done Delivery Duty Paid (DDP).

8. In such rare cases where a Failed Component is either too large to be easily transported or the Failed Component cannot be readily identified and isolated within a larger entity, the Contractor shall be notified immediately by the Purchaser of the failure by telephone or e-mail. The Contractor shall provide technical support to the Purchaser personnel in identifying the Failed Component so as to afford the Purchaser the opportunity to return the Failed Component. In such a case where the Failed Component cannot be identified or is not cost effective or practical to ship to the Contractor's facility, the Contractor may elect to send field service personnel to the site of the failure and repair such Equipment on location. In this event, such field service personnel shall be dispatched to the site of the failure within forty-eight (48) hours of initial notification. The expense of the technical support and field service shall be borne by the Contractor.
9. The Contractor shall conduct analysis of all defective Equipment and Failed Components which are returned to them by the Purchaser or repaired in the field by Contractor field service personnel to determine the root cause of the failure. The Contractor shall issue a report to the Purchaser within thirty (30) Days of receipt of a returned item or field repair which contains the results of the analysis. The report shall contain the conclusion of the Contractor as to whether the cause of the failure was due to a Manufacturing Defect or a Design Defect and declare what course of remedial action the Contractor shall implement to prevent further failures of a similar nature. Repetitive failures of the same component may be grounds for a de facto determination by the Purchaser that a Design Defect exists.
10. If the Purchaser determines that a Design Defect exists in any of the Equipment received by the Purchaser under the Contract, the Purchaser shall promptly notify the Contractor of the Defect, in writing, within ninety (90) Days after the discovery of the Defect. Upon timely notification of the existence of a Defect, or if the Contractor independently discovers a Design Defect or Manufacturing Defect in delivered Equipment, the Contractor shall submit to the Purchaser, in writing within thirty (30) Days, a recommendation for corrective actions, together with supporting information in sufficient detail for the Purchaser to determine what corrective action, if any, shall be undertaken.
11. The Contractor shall also prepare and furnish to the Purchaser data and reports applicable to any Correction required under this Clause (including revision and updating of all other affected data and already accepted Documentation called for under the Contract) at no increase in the Contract price.
12. In the event of timely notice of a decision not to correct or only to partially correct, which is approved by the Purchaser, the Contractor shall submit a technical and cost proposal within forty-five (45) Days to amend the Contract to permit Acceptance of the affected Supplies or Services in accordance with the revised requirement, and an equitable reduction in the Contract price shall promptly be negotiated by the Parties and be reflected in a Contract modification.
13. Within thirty (30) Days after receipt of the Contractor's recommendations for corrective action and adequate supporting information in accordance with Clause GTC C.7. 9, the Purchaser in its sole discretion, shall give the Contractor written notice not to correct any Defect, or to correct or partially correct any Defect within a reasonable time.
14. The Contractor shall promptly comply with any timely written direction from the Purchaser to correct or partially correct a Manufacturing or Design Defect, at no increase in the Contract price.
15. The Purchaser shall give the Contractor a written notice specifying any failure or refusal of the Contractor to: (a) conduct analyses of Failed Components and implement a course of remedial action as required by this Clause; or (b) to provide replacement components, technical support or on-location field repair service in accordance with this Clause; or (c) to prepare and furnish data and reports as required by this Clause.
16. The notice referred to in Clause GTC C.7. 15 shall specify a period of time following receipt of the notice by the Contractor in which the Contractor must remedy the failure or refusal specified in the

notice.

17. If the Contractor does not comply with the Purchaser's written notice in Clause GTC C.7. 15, the Purchaser may by the Contract or otherwise obtain detailed recommendations for corrective action from its own resources or third parties and either:

- (a) Correct the Defective item;
- (b) Replace the Defective item, and if the Contractor fails to furnish timely disposition instructions, the Purchaser may dispose of the non-confirming items for the Purchaser's account in a reasonable manner, in which case the Purchaser is entitled to reimbursement from the Contractor, or from the proceeds, for the reasonable expenses of care and disposition, as well as for excess costs incurred or to be incurred;
- (c) Obtain applicable data and reports; or
- (d) Charge the Contractor for the costs incurred by the Purchaser.

18. The Contractor shall assign a PoC within its organization for the warranty claims and shall not delegate such responsibility to its suppliers (i.e. OEMs) unless agreed by the Purchaser on a case-by-case basis for practicality reasons. The support services shall be usable/evocable in all NATO locations and Member Nations, without any restriction to the country of the supplier or the delivery locations.

GTC C.8. PRODUCT RECALL AND PREVENTIVE ACTION [MAY 2026]

1. In the event that a product recall is required for reasons of safety or by regulatory order, the Contractor shall be fully responsible for conducting all necessary recall actions promptly and at its sole cost. This includes, but is not limited to, recall logistics costs, notifying affected parties, arranging for the return or replacement and safe storage of the recalled goods, and complying with all applicable regulatory requirements.
2. The Contractor agrees to bear all costs associated with implementing measures necessary to prevent or mitigate damage, harm, or risks resulting from the recall or from the defective or non-compliant goods. These measures include, but are not limited to, corrective actions, repairs, replacements and safe storage.
3. The Contractor shall indemnify and hold harmless the Purchaser from any and all claims, damages, fines, penalties, or expenses arising directly or indirectly from the product recall or the implementation of preventive measures.
4. The Contractor shall cooperate fully with the Purchaser and relevant regulatory authorities throughout the recall process and provide timely updates on the progress and outcomes of the recall and associated actions.

END OF G.C: GENERAL TERMS AND CONDITIONS FOR EQUIPMENT



GTC D

GENERAL TERMS AND CONDITIONS FOR COMMERCIAL-OFF-THE-SHELF (COTS) SOFTWARE OR LICENSES

GTC D.1. GENERAL [MAY 2026]

1. The following Terms and Conditions apply to the procurement of Commercial Off-the-Shelf (COTS) Software under a License.
2. Capitalized terms used but not otherwise defined in these General Terms and Conditions shall have the meaning ascribed to them in the Core General Terms and Conditions.

GTC D.2. SUPPLY OF SOFTWARE OR LICENSE AND ASSOCIATED SERVICES AND INSPECTION [MAY 2026]

1. The Contractor shall supply the Software or License and any accompanying documentation on the date or within the period stated in the Contract.
2. The Purchaser has the right to inspect or test any software or license that has been tendered for Acceptance, at no cost to the Purchaser.

GTC D.3. ACCEPTANCE [MAY 2026]

1. The Contractor shall provide notification of the delivery of the Software or License by email to the Purchaser within two (2) Days of provision.
2. The Purchaser shall provide the Contractor with notification of Acceptance, or of rejection due to the Software or License provided being in non-conformance with the requirements of the Contract.
3. The Purchaser may require correction at no increase in price if the software or license provided is not in conformance with the requirements of the Contract. If correction is not possible, the Purchaser may seek an equitable price reduction or reject the Software partially or as a whole and terminate the Contract under Clause GTC A.4.14 of the Core General Terms and Conditions ("Termination for Cause – For Default"), at no cost to the Purchaser.
4. In such case as the Software or License has been delivered by the Contractor and offered for inspection and the Purchaser has either not made inspection or failed to provide written Acceptance or rejection of the Software or License within thirty (30) Days of delivery, the Software or License will be determined to have been accepted by the Purchaser.

GTC D.4. INCONSISTENCY [MAY 2026]

1. Any delivered Software which is not specifically developed for the Purchaser under the Contract is delivered under a COTS license of the Contractor or its licensor if the Purchaser was clearly informed about such license.
2. If any of the terms and conditions of the Contract or these General Terms and Conditions for Commercial Off-the-Shelf Software conflicts or is inconsistent with the Contractor's COTS license agreement, the Contract or these General Terms and Conditions shall have precedence.

GTC D.5. CONTINUED PERFORMANCE [MAY 2026]

1. The Contractor or licensor shall not unilaterally revoke, terminate or suspend any rights granted to the Purchaser except as allowed by the Contract. If the Contractor or licensor believes the Purchaser to be in breach of the Contract, the Contractor shall pursue its rights and remedies under Clause GTC A.4.21 ("Disputes") and GTC A.4.22 ("Arbitration") of the Core General Terms and Conditions.
2. Even if the Contractor or licensor has the right to terminate the Software or License on the basis of the Contract, the Contractor or licensor shall under all circumstances provide a notice period that is sufficient to allow the Purchaser to properly switch to an alternative Software solution for a similar

functionality.

GTC D.6. MODIFICATIONS TO COTS LICENSE [MAY 2026]

1. During the terms of the Contract, the Contractor may unilaterally revise Contractor's COTS software or license agreement if the revision is not a "Material Change". A "Material Change" is defined as:
 - (a) Terms that change the Purchaser's rights or obligations;
 - (b) Terms that increase prices;
 - (c) Terms that decrease the overall liability of the Contractor or licensor;
 - (d) Terms that decrease the overall level of service; or
 - (e) Terms that limit any other Purchaser right addressed in the Contract.
2. For revisions that will constitute a Material Change, the revised Contractor's COTS license agreement must be incorporated into the Contract through a modification following the procedure set forth in Clause GTC A.4.3 of the Core General Terms and Conditions ("Changes").
3. Any revision that was not mutually agreed and that is inconsistent with this Clause GTC D.6.3, shall not be enforceable against the Purchaser, and the Purchaser shall not be deemed to have consented to the revision.

GTC D.7. UNILATERAL MODIFICATIONS TO SOFTWARE [MAY 2026]

1. During the Term of the Contract, the Contractor shall not unilaterally reduce in a new version of the Software the functionality of the Software, nor its performance or compatibility with the agreed configuration requested by the Purchaser. Any change of functionality must be notified to the Purchaser and agreed in writing in conformity with Clause GTC A.4.3 of the Core General Terms and Conditions ("Changes"). In case of reduction of functionality, the Purchaser may at its sole discretion, (a) request the continued use of the Software as it was currently provided; or (b) terminate the Contract or the relevant license and be refunded any excessive fees paid for unused licenses or Services, in addition to any other rights and remedies under the Contract or by Law; or (c) determine the value of the reduced functionality in which case the fees shall be adjusted accordingly on a pro rata basis. In case of termination, the Purchaser shall be allowed to continue the use of the Software as it was currently provided, and at no additional cost to the Purchaser, until the Purchaser shall be able to implement and effectively use an alternative Software solution providing the same functionality.

GTC D.8. NO AUTOMATIC RENEWALS [MAY 2026]

1. If any software or license tied to periodic payment is provided under the Contract (e.g. annual software maintenance), such software or license shall not renew automatically upon expiration of its current term without prior express consent by the Purchaser (Contracting Authority).

GTC D.9. AUDITS [MAY 2026]

1. Any provision of the Contract or license permitting the Contractor or licensor to audit the end user's compliance with the Contract or license is hereby amended as follows:
 - (a) Discrepancies found in an audit may result in a charge by the Contractor or licensor to the Purchaser. Any resulting invoice must comply with the proper invoicing requirements specified in Clause GTC A.2.4 of the Core General Terms and Conditions ("Invoices and Payments").
 - (b) This charge, if disputed by the Purchaser, will be resolved in accordance with Clause GTC A.4.21 ("Disputes") and GTC A.4.22 ("Arbitration") of the Core General Terms and Conditions. No payment obligation shall arise on the part of the Purchaser until the conclusion of the dispute process.

- (c) Any audit requested by the Contractor will be performed at the Contractor's expense, at no cost to the Purchaser.

GTC D.10. NON-ASSIGNMENT [MAY 2026]

1. The Contract may not be assigned, nor may any rights or obligations thereunder be delegated, without the Purchaser's prior approval.

GTC D.11. COMMERCIAL COMPUTER SOFTWARE OR LICENSE (COTS) [MAY 2026]

1. Notwithstanding any contrary provisions contained in the Contractor's COTS license, the Contractor agrees that the Purchaser will have the rights that are set forth below to use, duplicate or disclose any software or license delivered under the Contract.
2. Software delivered under the Contract may not be used, reproduced, or disclosed by the Purchaser except as provided in Clause GTC D.11.3.
3. The COTS software or license may, as a minimum, be:
 - (a) Used or copied for use with the computer(s) for which it was acquired, including use at any Purchaser installation to which the computer(s) may be transferred;
 - (b) Used or copied for use with a backup computer if any computer for which it was acquired is inoperative;
 - (c) Reproduced for safekeeping (archives) or backup purposes;
 - (d) Modified, adapted, or combined with other software or license, provided that the modified, adapted, or combined portions of the derivative software incorporating any of the delivered, commercial software or license shall be subject to the same restrictions set forth in the Contract;
 - (e) Disclosed to and reproduced for use by support service Contractors or their Subcontractors, subject to the same restrictions set forth in the Contract; and
 - (f) Used or copied for use with a replacement computer.
 - (1) If the COTS Software or License is otherwise available without disclosure restrictions, the Contractor licenses it to the Purchaser without disclosure restrictions.

GTC D.12. RIGHTS IN DATA [MAY 2026]

1. Except as otherwise stated, the data as described below is the property of the Purchaser on behalf of NATO and consequently no statement or action shall be made or taken to restrict the rights of the Purchaser in:
 - (a) Data first produced in the performance of the Contract;
 - (b) Form, fit, and function data delivered under the Contract;
 - (c) Data delivered under the Contract (except for restricted computer software) that constitute manuals or instructional and training material for installation, operation, or routine maintenance and repair of items, components, or processes delivered or furnished for use under the Contract; and
 - (d) All other data delivered under the Contract which was derived through the use of the software or license.

**END OF G.D: GENERAL TERMS AND CONDITIONS FOR COTS SOFTWARE OR
LICENSES**



GTC E

GENERAL TERMS AND CONDITIONS FOR SOFTWARE DEVELOPED FOR NATO PURPOSES

GTC E.1. GENERAL [MAY 2026]

1. The following Terms and Conditions apply to the procurement of Software that is specifically developed or implemented on behalf of the Purchaser.
2. Capitalized terms used but not otherwise defined in these General Terms and Conditions shall have the meaning ascribed to them in the Core General Terms and Conditions.

GTC E.2. DELIVERY [MAY 2026]

1. The Contractor shall deliver the Software and any accompanying documents and Documentation on the date or within the period stated in the Contract. Clause GTC A.4.9 of the Core General Terms and Conditions ("Delay and Liquidated Damages") shall apply.

GTC E.3. DURATION [MAY 2026]

1. The term of any development or implementation services shall be as set forth in the Special Terms and Conditions or the Statement of Work.
2. Even if the Contractor would be allowed to terminate the Contract, under all circumstances the Contractor shall refrain from sudden termination or termination with a notice period that is too short to allow the Purchaser to properly switch to an alternative Software solution for a similar functionality.

GTC E.4. TESTING, ACCEPTANCE AND GO-LIVE OF SOFTWARE [MAY 2026]

1. This Clause GTC E.4 is by default applicable to the Acceptance of Software that is specifically developed, customized, configured or implemented for the Purchaser under the responsibility of the Contractor.
2. The Contractor warrants and shall demonstrate to the Purchaser that the delivered Software, including the Documentation, successfully achieves Acceptance at or before the agreed (Key) Milestone Date, using the process of any agreed acceptance and testing procedure ("AT procedure") in order to satisfy any specifically agreed acceptance criteria or the agreed Specifications, as well as the characteristics of the Software described in existing Documentation (jointly the "Acceptance Criteria"). Before submitting the Software to the Purchaser for Acceptance testing, the Contractor will have performed the necessary tests in order to verify the conformity of the Software with the Acceptance Criteria.
3. The Contract shall indicate the roles and responsibilities of each Party in drafting the applicable Acceptance Criteria and the AT procedure and their roles in the performance of each testing phase that will be part of an AT procedure. The Contractor shall provide the necessary test environment, equipment and support required for each AT procedure. The Contractor and the Purchaser shall agree with the timing for the performance of each AT procedure, which will be sufficiently long in order to enable a thorough verification of the Software. In the event that discovered Defects have an impact on the testing activities, the period foreseen for the tests can be reasonably extended.
4. If timing, procedure and tests are not specified or agreed between the Parties, then (a) the Purchaser, or its authorized representative, will have at least ninety (90) Days from the date the Software is received by the Purchaser to conduct the AT procedure (or such a longer period as is reasonable considering the complexity of the Software) and (b) the Purchaser may use its own evaluation procedure, test scenarios, methods and test data.
5. If the Purchaser determines that the delivered Software does conform to the Acceptance Criteria, the Purchaser shall deliver a written statement of Acceptance to the Contractor. The Software will only be deemed accepted after the explicit signing and delivery of such Acceptance statement. Payment for, or the use of any Software by the Purchaser will never as such be deemed an implicit

Acceptance or a waiver of any rights by the Purchaser.

6. Acceptance will only cover Defects that were visible during the AT procedure. Acceptance of Software in a test environment will not cover Defects that appear in a production environment. Acceptance of Software before migration of an application or migration of relevant data will not cover Defects that occur after such migration.
7. If the Purchaser determines that the Software fails to satisfy the Acceptance Criteria, the Purchaser will reject the delivery of the Software providing a notice describing the discovered Defects ("Rejection Notice"). In the event of a Rejection Notice the Contractor shall acknowledge the notice within two (2) Days, and respond to the notice within five (5) Days, and it shall correct at no cost to the Purchaser any failure(s) to satisfy the Acceptance Criteria that are documented in the Rejection Notice, and deliver within an agreed reasonable timeframe the corrected Software to the Purchaser for retesting. The Purchaser will have the right to notify further Defects that are discovered after the Rejection Notice. Failure to respect the obligations set forth in this Section will be considered Default and may result in Termination for Default as set forth in Clause GTC A.4.14 ("Termination for Cause – For Default") of the Core General Terms and Conditions.
8. After the delivery of the corrected Software as provided in Clause GTC E.4.7, the Purchaser will have an agreed, or at least reasonable, period of time to test and verify the conformity of the Software. If the Purchaser determines that the Software still does not conform to the Acceptance Criteria, then the Purchaser may choose at its discretion any of the following remedies:
 - (a) Reject the Software and provide the Contractor with an additional period of time to correct any Defect at no additional cost for Purchaser;
 - (b) Conditionally accept the Software with formulation of caveats or reservations for certain Defects, subject to the Contractor's commitment to a binding remediation plan to promptly correct such Defects at no additional cost for the Purchaser; if the Purchaser uses the Software in such case, this use may be subject to an equitable reduction in fees until the correction of such Defects;
 - (c) Terminate, as of right and for material Default, the Contract in whole or in part, upon notice to the Contractor (such termination to be effective immediately or at such time as indicated by Purchaser in such notice). In such case, the Contractor shall promptly refund all amounts paid by the Purchaser pursuant to the Contract for the terminated part, and the provisions of Clause GTC A.4.14 ("Termination for Cause - For Default") and Clause GTC A.4.17 ("Consequences of Termination") of the Core General Terms and Conditions shall apply accordingly.
9. Under Clauses SECTION 1.1(a) and (b) above, the Software should again be subject to an AT procedure. In case of repeated rejection by the Purchaser, the Purchaser shall be entitled to choose between the same remedies set forth under Clauses (a) – (c) above. The above options shall not replace or limit any rights and remedies available to the Purchaser under the law or the Contract.
10. If the Contractor does not agree with the assessment or decision of the Purchaser in relation to the AT Procedure, the resulting dispute will be dealt with in accordance with Clause GTC A.4.21 ("Disputes") of the Core General Terms and Conditions.
11. If the rejection of the delivered Software results in failure to successfully achieve a (Key) Milestone Date, the provisions of Clause GTC A.4.9 ("Delay and Liquidated Damages") of the Core General Terms and Conditions apply.
12. Unless otherwise agreed, the Purchaser may grant Provisional Acceptance of delivered Software as described above. As from Provisional Acceptance, the Purchaser will benefit of a warranty period as set forth in Clause GTC E.5 of these General Terms and Conditions to verify that the Software meets the Specifications and contains no Defects. If all Defects that are discovered during the warranty period are corrected at the expiry of the warranty period, the Purchaser will confirm the Final Acceptance. Final Acceptance will cover apparent Defects, but will not cover latent Defects that only become apparent under specific circumstances.

13. The involvement of any of Purchaser's staff during the design or development of the Software, such as involvement during sprints or interim testing, including when development takes place in accordance with certain "agile" development methods, will not be deemed a waiver of any right by the Purchaser to perform the AT procedure and to claim the resolution of Defects in light of the most recently agreed Specifications.
14. Except as otherwise provided in the Contract, Final Acceptance shall be conclusive except as regards latent Defects, fraud, or such gross mistakes as amount to fraud.
15. A decision to deploy developed Software in a production environment ("go live") shall be taken jointly by the Contractor and the Purchaser. However, if the Purchaser requests the "go live" for urgent reasons, the Contractor shall proceed accordingly, provided that the Contractor may issue a written caveat if, in their professional judgment, there is a material and imminent risk of failure.
16. Any deployment of developed Software in a production environment in order to make productive use of the Software ("go live") will be accompanied by all measures that are deemed necessary to protect the operations of the Purchaser, including a possibility to return immediately to the operation of the legacy systems or software, or the former version or release of the Software, if the operation of the deployed Software must be interrupted or terminated ("rollback").

GTC E.5. SOFTWARE WARRANTY [MAY 2026]

1. In addition to the provisions of Clause GTC A.1.12 ("Warranty") of the Core General Terms and Conditions, the following provisions shall apply to the procurement of Software developed specifically on behalf of the Purchaser.
2. The Contractor warrants that each Software delivered under the Contract, including all design, updates, configurations and customization, will be fit for the purposes stated in the Contract and will conform to all functional and non-functional Specifications set forth in the Contract or communicated by the Contractor in technical and commercial communications. Regardless of the initiation or participation of the Purchaser in the development of the design or of the specifications of the Software, each Software delivered under the Contract will conform to the essential Performance Specifications set forth in the Contract, as those essential Performance Specifications are measured, tested, and verified by tests, acceptance procedures and other procedures set forth in the Contract.
3. The Contractor warrants that each Software:
 - (a) Does not contain Harmful Code as set forth in Clause GTC A.5.1 ("Harmful Software and Tampering Risk") of the Core General Terms and Conditions;
 - (b) Does not contain any authorization codes that may prohibit or disable access to a database or other Software functionality that the Purchaser is otherwise authorized to access or use under the Contract;
 - (c) Has been and will be developed and updated using secure coding practices in a manner that minimizes security flaws, in conformity with the principles of security by design and by default, taking into consideration the requirements of the Purchaser set forth in the Purchaser's documentation on security by design or otherwise set forth in the Contract;
 - (d) Is in full compliance with all applicable laws, and Contractor shall notify the Purchaser promptly of any revisions or modifications to the Software that might result in non-compliance with any applicable laws;
 - (e) Will be interoperable and capable of operating fully and correctly on the combinations of Equipment, software platforms, telecommunications equipment, operating system environments and other Equipment identified in the applicable Specifications.

4. Unless agreed otherwise, for each Software delivered, the warranties provided by the Contractor shall extend to, at least, all Defects discovered within twelve (12) months from the date of (Provisional) Acceptance of the Software by the Purchaser. If not all discovered Defects are remedied within this warranty period, the warranty period shall be extended until all Defects are remedied and Final Acceptance can be granted by the Purchaser.
5. The Contractor shall notify the Purchaser in writing immediately after it first discovers that a Defect(s) may exist in Software delivered under the Contract, unless the Purchaser has first notified the Contractor, in writing, of the same Defect(s).
6. The Purchaser shall notify the Contractor upon discovery that a Defect(s) may exist in any Software received by the Purchaser under the Contract, unless the Contractor has first notified the Purchaser, in writing of the same Defect(s).
7. Without prejudice to any other applicable provision in the Contract, in particular in connection with the agreed procedures for Acceptance or the agreed Service Levels, the Contractor shall correct any Defective Software, notified by the Purchaser or noticed by the Contractor, without delay and at no additional cost to the Purchaser.
8. The Purchaser may elect the remedy provided in Clause GTC E.5.7 notwithstanding any dispute concerning the existence or responsibility for any alleged Defect with respect to any Software delivered under the Contract. In the event that an alleged Defect is subsequently determined not to be a Defect subject to the warranty but the Contractor has incurred costs under Clause GTC E.5.7, the contract price shall be equitably adjusted.
9. Election by the Purchaser of the remedy provided under Clause GTC E.5.7 shall not preclude the subsequent election of a different remedy if the Defect is not successfully remedied under the prior election within one month of the notification under Clause GTC E.5.7.
10. The Contractor will be deemed not responsible for a Defect if (a) the use of the Software by the Purchaser was not in conformity with the Contract, and such use caused the Defect, or if (b) the Purchaser was explicitly not allowed to have certain development or maintenance services performed by its own personnel or by a third party, and if it will be sufficiently proven that any development or maintenance activity performed by such staff or third party has caused the Defect. However, this exception will not be applicable if the Contractor has failed to correct a Defect or to provide a reasonably requested modification to the Software within a reasonable period of time after receipt of the Purchaser's notice or request, and the Purchaser has therefore required its staff or a third party to perform the request.
11. Throughout the entire Term of the Contract, the Purchaser may request any correction to the Software if a failure to meet an applicable Service Level is attributable to a characteristic or deficiency of the Software. In such cases, the expiry of the warranty period shall not release the Contractor from the obligation to remedy any failure to comply with the agreed Service Levels.
12. The rights and remedies of the Purchaser under this Software warranty are in addition to any rights and remedies of the Purchaser under any other provision of the Contract or by law, including, but not limited to, the Purchaser's rights in relation to latent defects, fraud, or gross mistakes that amount to fraud.

GTC E.6. DOCUMENTATION [MAY 2026]

1. The Contractor shall provide the Documentation intended for use by the Purchaser, as set forth in the Contract and on the date or within the period stated in the Contract.
2. Software Documentation shall be written in English and shall be made available in the agreed format. The Documentation shall be updated when necessary in order to reflect any substantial evolution or modification of the Software.

3. The Documentation shall meet reasonable standards of completeness, clarity, detail and accuracy to enable permitted users (and where relevant, technical staff) to understand the operation, use and maintenance of the corresponding Software, as well as its compliance with the Specifications. If the Documentation fails to meet such standards, upon notice thereof by the Purchaser, the Contractor shall promptly replace or modify the Documentation at its own cost to provide the Purchaser with Documentation that meets such standards.
4. The Purchaser has the right to make copies of the Documentation to the extent necessary for the use within the organization of the Purchaser.

GTC E.7. MARKINGS [MAY 2026]

1. All Software delivered under the Contract will identify the owner of the Software (which is the Purchaser in case of Software developed specifically on behalf of the Purchaser) and if applicable will prominently include notice of the existence of its warranty, its duration, and instructions to notify the Contractor promptly if the Software is found to be defective. The markings should be included in all required documentation described in Clause GTC E.6, the operating or maintenance manuals or instructions accompanying such Software.
2. All Software regardless of the media it is delivered onto and which is subject to export control restrictions shall be clearly marked indicating the type and nature of restriction as well as the national law imposing such restrictions. Nothing in this provision is intended to invalidate, void, or otherwise limit the rights of the Purchaser under the Contract.

GTC E.8. TRAINING, INSTALLATION, AND SUPPORT SERVICES [MAY 2026]

1. The Contractor shall provide training, installation, configuration and other set-up Services to Purchaser pursuant to an order for such Services, as set forth in the Contract. Fees for such Services may be due if so explicitly stated in the Contract.
2. The Contractor shall provide corrective and evolutive maintenance Services, including the availability of a service desk, in accordance with the Contract. Unless explicitly stated otherwise, the Contractor shall make updates, patches and corrections to the Software that do not include major enhancements of functionality, available without any additional fee.
3. The Contractor will continue to support the Software for at least the Term of the Contract or any timeframe of use intended by the Purchaser (as it appears from the Contract). If for any reason, it is not possible for the Contractor to continue supporting certain modules, interfaces or add-ons, the Contractor will inform the Purchaser one (1) year before discontinuation. The Contractor will in such case provide an upgraded solution or replacement solution that is acceptable to the Purchaser and under conditions acceptable to the Purchaser, in accordance with Clause GTC A.5.2 ("Technology Refresh and Evolution") of the Core General Terms and Conditions.

GTC E.9. INTELLECTUAL PROPERTY [MAY 2026]

1. Software development and customization and configuration of standard Software on behalf of the Purchaser results in Foreground IPR that is transferred to the Purchaser as set forth in Clause GTC A.5.3(c) ("Foreground IPR") of the Core General Terms and Conditions. The Contractor shall deliver the Source Code of the relevant developed or customized code to the Purchaser as set forth in the Statement of Work, but under all circumstances at Provisional Acceptance at the latest. The Source Code shall correspond to the corresponding executable code, and shall be documented and sufficiently understandable for a technician who is normally trained to work with such Source Code. The Purchaser shall be entitled to verify the structure, quality and conformity of the Source Code.

GTC E.10. CONTINUED PERFORMANCE [MAY 2026]

1. The Contractor shall not unilaterally revoke, terminate or suspend any rights granted to the Purchaser except as explicitly allowed by the Contract. If the Contractor believes the Purchaser to be in breach of the Contract, the Contractor shall pursue its rights and remedies under Clauses GTC A.4.21 (“Disputes”) and GTC A.4.22 (“Arbitration”) of the Core General Terms and Conditions.

GTC E.11. TERMINATION ASSISTANCE [MAY 2026]

1. In case of termination of the Contract for whatever reason, in whole or in part, the Contractor will at the Purchaser's election and request provide Termination Assistance Services during the Termination Assistance period, in order to enable a smooth termination of the ongoing Services or of the use of the Software, with minimal disruption, and a smooth transition of the provision of Services or Software to the Purchaser itself or a replacement contractor. Since the continuity of the Purchaser's operations is essential, it is agreed that payment of Damages may not be an adequate remedy in the event the Contractor fails to provide Termination Assistance and that the Purchaser may obtain injunctive relief in respect of such failure.
2. If termination is the result of default by the Contractor, the Contractor will be held liable for Termination Assistance Services. The Purchaser reserves the right to hire a third party to perform Termination Assistance Services at the Contractor's expense.
3. The Purchaser may request Termination Assistance in accordance with the principles and modalities set forth in the Contract, and for the Termination Assistance period set forth therein, at its choice and according to its needs of continuity. In such case, the Parties will agree to an Exit Plan that will set out the Termination Assistance and its phases and modalities, including without limitation a specific project plan and risk management plan, all in accordance with the requirements and modalities set forth in the Contract. In the event that the Contract contains no principles with respect to Termination Assistance, the Purchaser has the right to request the Services that are necessary for the transition of all or part of the Software and Services or, as the case may be, the transition to an alternative Software, to minimize any disruption of the Purchaser's operations and activities. In such case, promptly following any notice of termination and in any event within fifteen (15) Days after such notice of termination, the Parties shall develop an Exit Plan.
4. If so required in order to avoid any disruption of the Purchaser's activities, the Purchaser will have an option, at its discretion, to extend the provision of certain Software or certain Services for a period of up to six (6) months, or a longer period if the Purchaser can reasonably demonstrate that such a longer period is necessary in order to avoid a substantial disruption of the Purchaser's activities.
5. The Contractor shall not delete any Purchaser Data without the express prior written approval of the Purchaser.
6. Termination Assistance will, at a minimum, include if it is necessary or useful according to the circumstances of the termination and the requirements of continuous activity and operations of the Purchaser:
 - (a) The appointment of a Termination Assistance Manager by the Contractor who will act as the main contact for the request and the performance of the Termination Assistance;
 - (b) Transfer or migration of Purchaser Data, accurate, complete and up to date, in a manner and format that is easily processed by the Purchaser or its nominated agent or contractor; and, if so required, provision of effective tools for the export or migration of Purchaser Data, or preparation or performance of the export or migration activity to enable successful use in the new environment;
 - (c) Knowledge transfer concerning the Software or Services, up to date and complete, including information about interfaces, databases, architecture, configuration, custom developments (including Source Code), hosting, processes and operating procedures, security processes and tools including passwords, third party service providers and all other issues that are needed for

a smooth takeover or migration of the Software and the Services, or, if such takeover or migration would not be possible, for the creation and operation of a similar solution and services; knowledge transfer includes a continuous and promptly provision of effective information upon requests for information by the Purchaser;

- (d) If necessary to avoid substantial disruption, or if the Purchaser is otherwise entitled to use the source code of the Software in accordance with the Contract or by law, the handover of the most recent version of the source code of the Software and the Documentation thereof, including custom developments and interfaces;
- (e) If possible, handover or at least sharing of access to the hosted environment that is hosting the Software and the Purchaser Data.

GTC E.12. PURCHASER DATA [MAY 2026]

1. The Contractor acknowledges that if the Software generates or processes Purchaser Data, as defined under Clause GTC A.1.3(a)(43) of the Core General Terms and Conditions, the Contractor shall not disclose or use the Purchaser Data for any purpose other than the strict provision of Services to the Purchaser under the Contract, or any other purpose as explicitly authorized by the Purchaser in writing.
2. Purchaser Data includes relevant metadata necessary for the interpretation or use of the Purchaser Data and data generated or processed by Equipment (including algorithms embedded in Equipment Software) used by Purchaser.
3. The Contractor acknowledges that the Purchaser shall at all times retain full access and unrestricted control over all Purchaser Data. The Purchaser's right of access and control shall include the Purchaser being able to retrieve, delete, duplicate, enhance and transfer all Purchaser Data at any moment during the term of Contract.
4. The Purchaser shall retain exclusive ownership, title, interest and all applicable Intellectual Property Rights (IPRs) in and to the Purchaser Data provided directly or indirectly to the Contractor or any of its Subcontractors, licensors or suppliers throughout the Contract. The Purchaser shall have the right to transfer the Purchaser Data to, or share the Purchaser Data with third parties, and it shall have the right to request that Purchaser Data be transferred to or shared with a third party in a commonly used format if the Purchaser is not able to perform such actions by itself. The Contractor shall make no statement or take no action to deny or restrict the rights of the Purchaser.
5. The Contractor shall, and ensures that any Subcontractors, cloud service providers or other suppliers that process Personal Purchaser Data on behalf of the Contractor, shall comply with the obligations set forth in Clause GTC A.6.1 ("Personal Data Protection") of the Core General Provisions.
6. Where the Purchaser demonstrates an exceptional need to use certain Purchaser Data, including the relevant metadata necessary to interpret and use such Purchaser Data, to carry out NATO Purposes in the public interest, the Contractor shall make the Purchaser Data available upon a duly reasoned request. An exceptional need shall occur, inter alia, when the Purchaser Data requested is necessary to respond to a public emergency and the Purchaser is reasonably unable to obtain such data by alternative means in a timely and effective manner under equivalent conditions.
7. Purchaser Data may be designated as NATO Classified or Unclassified Information, in accordance with Clause GTC A.3.6 of the Core General Terms and Conditions ("Security of Unclassified and NATO Unclassified Materials and Information"), the Special Terms and Conditions of the Contract, the Statement of Work or any other applicable security documentation related to the Contract. If the appropriate classification is unclear, the matter shall be referred to the Purchaser for clarification. Until such clarification is provided, the data shall be treated at the highest classification level reasonably anticipated.

**END OF G.E: GENERAL TERMS AND CONDITIONS FOR SOFTWARE
DEVELOPED FOR NATO PURPOSES**



GTC F

GENERAL TERMS AND CONDITIONS ON CLOUD SERVICES

GTC F.1. GENERAL [MAY 2026]

1. The following Terms and Conditions apply to the procurement of Cloud Services as agreed to in the Contract.
2. The procurement of Software as a Service (e.g. Software as a Service (SaaS), Platform as a Service (PaaS)) is also governed by the relevant General Terms and Conditions for COTS Software or for NATO developed Software, insofar as these can be applicable to SaaS, PaaS, e.g. in relation to the warranties concerning the conformity and acceptance of the Software that is provided as a Service.
3. Capitalized terms used but not otherwise defined in these General Terms and Conditions shall have the meaning ascribed to them in the Core General Terms and Conditions.

GTC F.2. RIGHT TO ACCESS AND USE THE CLOUD SERVICE [MAY 2026]

1. The Contractor grants to the Purchaser and its users (as specified in the Contract Special Terms and Conditions or Statement of Work (SOW)) a worldwide, non-exclusive and irrevocable license to access and use the Cloud Services as agreed in the Statement of Work (SOW). Unless indicated otherwise, the right to use is granted for the Term of the Contract.
2. Without prejudice to any applicable specific license provisions, the right to access and use, includes but is not limited to:
 - (a) All activities, including without limitation, use for testing and evaluation purposes, use for production purposes and use for the purpose of receiving, processing, generating, storing and transmitting data from and to third parties, from any location, using any interoperable device;
 - (b) The right for the Purchaser to authorize users to access and use the Cloud Services;
 - (c) The right for the Purchaser to grant a sublicense on all or part of the Cloud Services to any NATO Body;
 - (d) The right for a user to perform any action that is not specifically mentioned in the Contract but is reasonably required for the use of the Cloud Services;
 - (e) The Purchaser's right to increase or decrease the number of users and volumes on an as-requested basis.
3. The Purchaser shall ensure that its users shall access and use the Cloud Services in conformity with the Contract.
4. The Contractor shall provide a secure system for the identification and authentication of the users of the Cloud Services.

GTC F.3. CHANGES [MAY 2026]

1. During the Term of the Contract, the Contractor shall not unilaterally reduce the functionality or security of any Cloud Service, nor its performance or compatibility with the agreed configuration requested by the Purchaser (a Material Adverse Change). Any Material Adverse Change must be notified to the Purchaser and agreed in writing in conformity with Clause GTC A.4.3 of the Core General Terms and Conditions ("Changes").
2. If a unilateral change to a Cloud Service is reasonably inevitable due to the evolution of the general infrastructure or business processes of the Contractor, and such change is considered a Material Adverse Change, the Purchaser will be notified in due time and the Purchaser may at its sole discretion, (a) request the continued use of the Cloud Service as it was currently provided if this is

possible at no additional cost; or (b) terminate the Contract or the relevant Cloud Service and be refunded any excessive fees paid for an unused Cloud Service, in addition to any other rights and remedies under the Contract or by Law; or (c) determine the value of the reduced Cloud Service in which case the fees shall be adjusted accordingly on a pro rata basis. In case of termination, the Purchaser shall be allowed to continue the use of the Cloud Service as it was currently provided at no additional cost until the Purchaser shall have implemented and is able to effectively use an alternative Cloud Service providing the same functionality, security, performance and compatibility characteristics, as determined in Purchaser's sole discretion.

GTC F.4. IMPLEMENTATION, SUPPORT AND SERVICE LEVELS [MAY 2026]

1. The Acceptance of the implemented Software, configuration and infrastructure used for the Cloud Services shall occur as stipulated under Clause GTC E.4 ("Testing, Acceptance and Go-Live of Software") of the General Terms and Conditions for Software Developed for NATO Purposes. If COTS Software is provided via Cloud Services, Clause GTC D.3 ("Acceptance") of the General Terms and Conditions for COTS Software or Licenses shall apply.
2. The Acceptance of the implemented Software, configuration and infrastructure used for the Cloud Services shall not relieve the Contractor of its obligation to continuously provide the Cloud Services as agreed. This includes, but is not limited to, adherence to agreed warranties, availability requirements, and any other specified Service Levels. Acceptance shall not constitute a waiver of the required warranties or Service Levels.
3. The Contractor shall provide the support services as set forth in the Contract.
4. Clause GTC B.10 of the General Terms and Conditions for Services ("Service Levels") shall apply where Service Levels are agreed for any Cloud Service.

GTC F.5. LOCATION OF THE HOSTING FACILITY [MAY 2026]

1. The infrastructure used for the Cloud Services shall be in conformity with the Specifications and shall remain located at the site agreed between the Parties. Any change of the location shall be subject to consent in conformity with Clause GTC A.4.3 of the Core General Terms and Conditions ("Changes").
2. Under no circumstances shall the hosting facility be located in a non-NATO Member Nation. Data transmissions to or from NATO users and NATO sites under the Contract should not transit through non-NATO Member Nations. The Contractor shall at least ensure that:
 - (a) All data in transit is encrypted using cryptographic standards that comply with NATO approved encryption protocols;
 - (b) Encryption keys are managed and stored exclusively within NATO Member Nations;
 - (c) The Contractor promptly notifies the Purchaser of any instance where data transit occurs through a non-NATO Member Nation and provides evidence of encryption compliance.

GTC F.6. DURATION [MAY 2026]

1. The Term of the Cloud Services is set forth in the Contract.
2. If any Cloud Service provided under the Contract is tied to a subscription with periodic payment, such Cloud Service shall not renew automatically upon the expiration of its current term outside the Contract period of performance without prior express consent by the Purchaser. Any additional automatic renewal costs will be at the expense of the Contractor.

3. Under all circumstances the Contractor shall not terminate the Contract without a sufficient notice period to allow the Purchaser to properly switch to an alternative Cloud Service solution for a similar functionality.

GTC F.7. SUSPENSION OF THE CLOUD SERVICES [MAY 2026]

1. The Contractor shall under no circumstances suspend the provision of any Cloud Service, except in the event of a material security risk to the Purchaser or the Contractor's infrastructure. In such cases, the Contractor shall immediately notify the Purchaser in writing, providing a detailed explanation of the security risk (including the specific impact on Purchaser and its users) and the measures taken to address it (including the anticipated duration to remedy such risk). The Contractor shall in such a case provide frequent updates on the status.

GTC F.8. WARRANTY [MAY 2026]

1. Clause GTC A.1.12 ("Warranty") of the General Terms and Conditions for Services applies to the Cloud Services.
2. Clause GTC E.5 ("Software Warranty") of the General Terms and Conditions for Software Developed for NATO Purposes applies to any Software developed or implemented for the purpose of the Cloud Services (such as SaaS or PaaS), without prejudice to the generality of Clause GTC A.1.12 ("Warranty") of the Core General Terms and Conditions.

GTC F.9. TERMINATION ASSISTANCE [MAY 2026]

1. In case of termination of the Contract for whatever reason, in whole or in part, the Contractor will at the Purchaser's election and request provide Termination Assistance Services during the Termination Assistance Period, in order to enable a smooth termination of the ongoing Cloud Services, with minimal disruption, and a smooth transition of the provision of the Cloud Services to the Purchaser itself or a replacement contractor. Since the continuity of the Purchaser's operations is essential, it is agreed that payment of Damages may not be an adequate remedy in the event the Contractor fails to provide Termination Assistance and that the Purchaser may obtain injunctive relief in respect of such failure. Such remedy shall not be deemed to be the exclusive remedy for such failure but shall be in addition to all other remedies available at law or equity.
2. If termination is the result of default by the Contractor, the Contractor will be held liable for Termination Assistance Services. The Purchaser reserves the right to hire a third party to perform Termination Assistance Services at the Contractor's expense.
3. The Purchaser may request Termination Assistance in accordance with the principles and modalities set forth in the Contract, and for the Termination Assistance Period set forth therein, at its choice and according to its needs of continuity. In such case, the Parties will agree to an Exit Plan that will set out the Termination Assistance and its phases and modalities, including without limitation a specific project plan and risk management plan, all in accordance with the requirements and modalities set forth in the Contract. In the event that the Contract contains no principles with respect to Termination Assistance, the Purchaser has the right to request the Services that are necessary for the transition of all or part of the Cloud Services or, as the case may be, the transition to an alternative Cloud Service, to minimize any disruption of the Purchaser's operations and activities. In such case, promptly following any notice of termination and in any event within fifteen (15) Days after such notice of termination, the Parties shall develop an Exit Plan.
4. If so required in order to avoid any disruption of the Purchaser's activities, the Purchaser will have an option, at its discretion, to extend the provision of certain Cloud Services for a period of up to twelve (12) months, or a longer period if the Purchaser can reasonably demonstrate that such a longer period is necessary in order to avoid a substantial disruption of the Purchaser's activities.
5. The handling of Purchaser Data in case of termination of the Cloud Services is governed by Clause

GTC A.6.3 (“Termination of Purchaser Data Exchange”) of the Core General Terms and Conditions. However, the Contract or an agreed Exit Plan may set forth a different arrangement which will prevail.

6. Termination Assistance will as a minimum include if it is necessary or useful according to the circumstances of the termination and the requirements of continuous activity and operations of the Purchaser:
 - (a) The appointment of a Termination Assistance Manager by the Contractor who will act as the main contact for the request and the performance of the Termination Assistance;
 - (b) Knowledge transfer concerning the Cloud Services, up to date and complete, including information about interfaces, databases, architecture, configuration, custom developments (including source code), hosting, processes and operating procedures, security processes and tools including passwords, third party service providers and all other issues that are needed for a smooth takeover or migration of the Cloud Services, or, if such takeover or migration would not be possible, for the creation and operation of a similar solution and services; knowledge transfer includes a continuous and promptly provision of effective information upon requests for information by the Purchaser;
 - (c) Migration or assistance with the migration of Virtual Machines, Software, Purchaser Data and content, and any other assets in the framework of the Cloud Services, to a new environment indicated by the Purchaser to enable the successful deployment and running of the Cloud Services or similar cloud services in the new environment, insofar as such migration would not be prohibited by the Intellectual Property Rights of the Contractor or a third party;
 - (d) If necessary to avoid substantial disruption, or if the Purchaser is otherwise entitled to use the source code of any Software as part of the Cloud Services in accordance with the Contract or by law, the handover of the most recent version of the source code of the Software and the Documentation thereof, including custom developments and interfaces;
 - (e) If possible, handover or at least sharing of access to the hosted environment that is hosting the Cloud Services and the Purchaser Data.

GTC F.10. DISCONTINUATION OF CLOUD SERVICES [MAY 2026]

1. The Parties will sign a tripartite agreement with an escrow organization, containing the handover to this organization of all information and credentials necessary to take over the hosting account of the hosting environment, and which will set out the circumstances of discontinuity that will oblige this organization to provide this information to the Purchaser (such as, without limitation, bankruptcy or termination of business). The Purchaser will be enabled to take over the (account of the) hosting environment under such circumstances. The Termination Assistance obligations set forth in Clause GTC F.9 (“Termination Assistance”) of these General Terms and Conditions for Cloud Services will apply insofar as possible.

END OF G.F: GENERAL TERMS AND CONDITIONS CLOUD SERVICES



GTC G

GENERAL TERMS AND CONDITIONS ON PROCUREMENT OF ARTIFICIAL INTELLIGENCE (AI) SYSTEMS AND AI-ENABLED SERVICES

GTC G.1. GENERAL [MAY 2026]

1. The following Terms and Conditions apply for the procurement of AI Systems and AI-Enabled Services. Capitalized terms used but not otherwise defined in these General Terms and Conditions shall have the meaning ascribed to them in the Core General Terms and Conditions.
2. As used in these General Terms and Conditions:
 - (a) **“Artificial Intelligence”** (AI) means the ability of machines to perform tasks that traditionally require human intelligence – for example, recognizing patterns, learning from experience, drawing conclusions, making predictions, or taking action – whether digitally or as the smart software behind autonomous physical systems;
 - (b) **“AI System”** means a machine-based system that is designed to operate with varying levels of autonomy and that infers, from the input it receives, how to generate outputs (“Results”) such as (without limitation) identifications, insights, classifications, predictions, content, recommendations, decisions or actions. An AI System can be deterministic if it operates through fixed coded algorithmic instructions, or non-deterministic when it is designed to learn from data or user interactions and to adapt to new situations in order to perform a range of tasks;
 - (c) **“AI-Enabled Service”** means any service, software, platform, system, or application that integrates, utilizes, or is powered or enhanced by Artificial Intelligence (AI) technologies, including but not limited to machine learning models, natural language processing, computer vision, predictive analytics, autonomous decision-making, recommendation engines, or other AI-driven functionalities. Such services may operate independently or as part of a larger system to process data, generate insights, automate tasks, enhance decision-making, or provide adaptive user experiences;
 - (d) **“Result”** means any output produced by an AI System or AI-Enabled Service, such as, without limitation, an identification, insight, classification, prediction, content, recommendation, decision or action;
 - (e) **“Data Set”** means any collection of data, including but not limited to structured or unstructured data, text, images, audio, video, numerical values, logs, telemetry data, or any other form of information that is provided, collected, processed, or used in connection with the development, training, validation, testing, or deployment of the AI System or AI-Enabled Service. A Data Set may include proprietary, third party, publicly available, or anonymized data, and may be subject to applicable data protection, privacy, intellectual property, and confidentiality laws and regulations.
3. AI Systems and AI-Enabled Services shall comply with NATO’s Principles of Responsible Use, which are considered as key requirements of the Purchaser and of NATO:
 - (a) **Lawfulness:** AI Systems must be developed, provided and used in accordance with national and international law, including international humanitarian law and human rights law, as applicable.
 - (b) **Responsibility and Accountability:** AI Systems must be developed, provided and used with appropriate levels of judgment and care; clear human responsibility shall apply in order to ensure accountability.
 - (c) **Explainability and Traceability:** AI Systems must be appropriately understandable and transparent, including through the use of review methodologies, sources, and procedures to ensure that decision-making processes and operations can be traced. This includes verification, assessment and validation mechanisms at either a NATO or national level.
 - (d) **Reliability:** AI Systems must have explicit, well-defined use cases. The safety, security, and robustness of such capabilities will be subject to testing and assurance within those use cases across their entire lifecycle, including through established NATO or national certification

procedures.

(e) Governability: AI Systems must be developed, provided and used according to their intended functions while ensuring effective human oversight. AI Systems must allow for appropriate human-machine interaction; include mechanisms to detect and avoid unintended consequences and enable intervention such as disengagement or deactivation when such systems demonstrate unintended behavior.

(f) Bias Mitigation: Proactive steps must be taken to minimize any unintended bias in the development, provision and use of AI Systems and in Data Sets.

GTC G.2. RISK MANAGEMENT OF ARTIFICIAL INTELLIGENCE [MAY 2026]

1. The Statement of Work describes the intended purpose and any reasonable foreseeable misuse of the AI System or AI-Enabled Service.
2. The Contractor ensures that, prior to the delivery of an AI System or the provision of an AI-Enabled Service, a risk management system shall be established and implemented in relation to the AI System or AI-Enabled Service, in conformity with a risk management system, toolkit, or specific standards communicated by the Purchaser and any other Specifications required by the Purchaser. Such risk management system shall be maintained and operated throughout the lifecycle of the AI System or AI-Enabled Service provided under the Contract.
3. Such risk management system shall at least comprise the following steps:
 - (a)** Identification, estimation and evaluation of the known and reasonably foreseeable risks to health, safety and fundamental rights that are likely to arise in the light of the intended purpose of the AI System or AI-Enabled Service and reasonably foreseeable misuse;
 - (b)** Evaluation of other possibly arising risks;
 - (c)** Adoption of appropriate and targeted risk management measures designed to address, mitigate, monitor and report the identified risks.
4. The risk management system shall focus on the risks associated with the AI System or AI-Enabled Service, including but not limited to:
 - (a)** Reliability, accuracy, robustness, and performance risks;
 - (b)** Safety risks, including unintended harmful consequences;
 - (c)** Data security and privacy risks;
 - (d)** Cybersecurity vulnerabilities;
 - (e)** Compliance risks related to applicable laws, regulations, and industry standards;
 - (f)** Ethical risks, including bias, discrimination, and fairness issues.
5. The risk management measures shall be such that relevant residual risks associated with each hazard as well as the overall residual risk of the AI System or AI-Enabled Service is reasonably judged to be acceptable by the Contractor, provided that the AI System or AI-Enabled Service is used in accordance with the intended purpose or under conditions of reasonably foreseeable misuse.
6. The risk management measures shall ensure:
 - (a)** Human oversight controls and continuous monitoring processes;
 - (b)** The elimination or reduction of identified risks as far as technically feasible through adequate design and development of the AI System or AI-Enabled Service;
 - (c)** Where appropriate, implementation of adequate mitigation and control measures, safeguards

and fallback mechanisms in relation to risks that cannot be eliminated;

(d) The provision of adequate information to the Purchaser.

7. The Contractor ensures that, prior to the delivery of the AI System or the provision of an AI-Enabled Service, the AI System or AI-Enabled Service is tested in order to verify whether it complies with this Clause GTC G.2, without prejudice to the Purchaser's right to test the AI System or AI-Enabled Service in its test or production environment.
8. All identified risks, measures taken and tests performed to comply with this Clause GTC G.2, must be documented by the Contractor. The Contractor shall make this documentation available to the Purchaser at least before the test phase of the AI System or the AI-Enabled Service.
9. The risk management system shall consist of a continuous and iterative process run throughout the entire lifecycle of the AI System or AI-Enabled Service. The Contractor shall therefore (a) regularly assess, review and update the risk management process to ensure its continuous effectiveness; (b) keep the documentation up to date; and (c) make every new version of the documentation available to the Purchaser without delay.
10. The Contractor shall continuously update and improve its risk management system in response to technological advancements, evolving threats, regulatory changes, and feedback from the Purchaser to ensure ongoing compliance and risk mitigation.
11. The Contractor shall provide the Purchaser, upon request, with documentation demonstrating compliance with this Clause GTC G.2, including risk assessment reports, mitigation strategies, audit logs, and impact assessments. Any material risks identified during the operation of the AI System or AI-Enabled Service shall be reported to the Purchaser without undue delay, along with proposed corrective actions.
12. If the Purchaser's use of the AI System or AI-Enabled Services continues beyond the term of the Contract, the Contractor shall provide the Purchaser with the information necessary to maintain the risk management system.

GTC G.3. USE OF DATA SETS AND BIAS MITIGATION [MAY 2026]

1. The Contractor ensures that the Data Sets used in the development process of the AI System or AI-Enabled Service, including training, validation and testing, have been and shall be subject to data governance appropriate for the context of use as well as the intended purpose of the AI System or AI-Enabled Service. Those measures shall concern in particular:
 - (a)** Transparency as regards the original purpose of data collection;
 - (b)** The relevant design choices;
 - (c)** Data collection processes;
 - (d)** Data preparation for processing operations, such as annotating, labeling, cleaning, enrichment and aggregation;
 - (e)** The formulation of relevant assumptions, notably with respect to the information that the data are supposed to measure and represent;
 - (f)** Appropriate proactive measures to detect, prevent and mitigate possible unintended biases that are likely to affect the Results of the AI System or AI-Enabled Service, and thus likely to affect the accuracy or efficiency of the AI System or AI-Enabled Service;
 - (g)** The identification of relevant data gaps or shortcomings that prevent compliance with the Contract, and how those gaps and shortcomings can be addressed.

2. The Contractor ensures the legality of the data collection and warrants that it owns all required rights and licenses to use the Data Sets used in the development or training process of the AI System or AI-Enabled Service.
3. The Contractor ensures that the Data Sets used in the development, training and testing process of the AI System or AI-Enabled Service are relevant, representative, and, to the best extent possible, free of errors and be as complete as possible in view of the intended purpose. The Contractor ensures that Data Sets have the appropriate statistical properties, including, where applicable, as regards the persons or groups of persons on which the AI System or AI-Enabled Service is intended to be used.
4. Whenever deemed necessary to enable the assessment of the relevancy, representativeness and overall quality of the Data Sets, the Contractor and the Purchaser will set up adequate processes to enable access to the Data Sets used in development, training and testing and in production.
5. The Contractor ensures that the Data Sets used in the development, training, testing and operation of the AI System or AI-Enabled Service take into account, to the extent required by the intended purpose or reasonably foreseeable misuse, the characteristics or elements that are particular to the specific geographical, contextual, behavioral or functional setting within which the AI System or AI-Enabled Service is intended to be used.
6. The obligations under this Clause GTC G.3 apply not only to the development, training and testing of the AI System or AI-Enabled Service prior to delivery, but also to any use of Data Sets by the Contractor that may affect the functioning of the AI System or AI-Enabled Service at any other time during the term of the Contract.

GTC G.4. RECORD-KEEPING AND LOGGING [MAY 2026]

1. The Contractor ensures that the AI System or AI-Enabled Service has been and shall be designed and developed with capabilities enabling the automatic recording of events (“logs”) while the AI System or AI-Enabled Service is operating. Such logging capabilities shall conform to the Purchaser’s Specifications and the Purchaser’s standards or toolkits communicated to the Contractor or, in the absence thereof, recognized standards and at least Good Industry Practice.
2. The logging capabilities shall ensure a level of traceability of the AI System’s or AI-Enabled Service’s functioning throughout its lifecycle that is appropriate to the intended purpose of the AI System or AI-Enabled Service and reasonably foreseeable misuse. In particular, they shall enable the recording of events relevant for the identification of situations that may (a) result in the AI System or AI-Enabled Service presenting a risk to the health, safety, the protection of fundamental rights of persons, or the accuracy and effectiveness of AI-Enabled operations; or (b) lead to Substantial Modification. “Substantial Modification” means a change to the AI System or AI-Enabled Service following the delivery, which affects the compliance of the AI System or AI-Enabled Service with the Specifications or results in a modification of the intended purpose of its use by the Purchaser.
3. The Contractor will allow and enable the Purchaser to access the logs automatically generated by the AI System or AI-Enabled Service on a real time basis.
4. The Contractor shall keep the logs automatically generated by the AI System or AI-Enabled Services, to the extent such logs are under its control based on the Contract, for the duration of the Contract. At the date of Contract termination, the Contractor will provide these logs to the Purchaser without delay.

GTC G.5. TRANSPARENCY OF THE AI SYSTEM OR AI-ENABLED SERVICE [MAY 2026]

1. The Contractor ensures that the AI System or AI-Enabled Service has been and shall be designed and developed in such a way that the operation of the AI System or AI-Enabled Service is sufficiently understandable and transparent to enable the Purchaser to reasonably understand the AI System’s

or AI-Enabled Service's functioning, including through the use of review methodologies, sources and procedures. The Purchaser must be able to understand how the AI System or AI-Enabled Service works and what data it processes, allowing the Purchaser to explain the decisions taken by the AI System or AI-Enabled Service to the persons or categories of persons that operate the AI System or AI-Enabled Service or on which the AI System or AI-Enabled Service is (intended to be) used.

2. The Contractor shall assist the Purchaser at the Purchaser's first request to explain how the AI System or AI-Enabled Service arrived at a particular decision or other Result. This assistance includes at least a clear indication of the main factors that led the AI System or AI-Enabled Service to a given Result and the modifications to be made to the input Data Sets to achieve a different Result. The Contractor grants the Purchaser the right to use, share and disclose this information, if and to the extent necessary to inform any users about the operation of the AI System or AI-Enabled Service and in any legal proceedings.

GTC G.6. GOVERNABILITY AND HUMAN OVERSIGHT [MAY 2026]

1. The Contractor ensures that the AI System or AI-Enabled Service has been and shall be designed and developed in such a way, including with appropriate human-machine interaction tools, that it can be effectively overseen by natural persons as proportionate to the risks associated with the AI System or AI-Enabled Service. The AI System or AI-Enabled Service shall provide the ability to detect and avoid unintended Results and consequences and the ability to take measures, such as disengagement or deactivation of the AI System or AI-Enabled Service, when it demonstrates unintended behavior. The Contractor ensures that, prior to the delivery, appropriate measures shall be embedded in the AI System or AI-Enabled Service to ensure human oversight, human responsibility and accountability.

GTC G.7. INTEROPERABILITY [MAY 2026]

1. The Contractor shall ensure that the AI System or AI-Enabled Service is and will remain interoperable and capable of operating fully and correctly on the combinations of Equipment, software platforms, telecommunications equipment, operating system environments and other Equipment identified in the applicable Specifications.

GTC G.8. TRAINING OF USERS [MAY 2026]

1. The Contractor undertakes to assist the Purchaser in training users in the use of the AI System or AI-Enabled Service, taking into account the level of risk of the AI System or AI-Enabled Service, particularly to enable users (a) to know and sufficiently understand the capabilities of the AI System or AI-Enabled Service and to be able to properly monitor its operation, to detect and address signs of anomalies, malfunctions, and unexpected performance or Results as soon as possible, and (b) to be able to correctly interpret the Results of the AI System or AI-Enabled Service, taking into account the risks and characteristics of the AI System or AI-Enabled Service.

GTC G.9. WARRANTIES [MAY 2026]

1. The Contractor warrants that the AI System or AI-Enabled Service will operate in compliance with the Specifications set forth in the Contract and these General Terms and Conditions, and in compliance with all applicable laws, regulations, certifications and mandatory standards.
2. The Contractor warrants the reliability, completeness, and accuracy of the Results generated by the AI System or AI-Enabled Service, and that the AI System or AI-Enabled Service has undergone supervised learning and human control proportionate to the risks associated with the AI System or AI-Enabled Service in compliance with industry standards.
3. The Contractor ensures that the AI System or AI-Enabled Service has been and shall be designed and developed following the principle of security by design and by default.
4. If the Contractor determines, or has reason to believe, whether based on its own assessment, an

observation from the Purchaser, or any other source, that the AI System or AI-Enabled Service is not compliant with the Contract, the Contractor shall, without delay and at no additional cost to the Purchaser:

- (a) Take all necessary corrective actions to bring the AI System or AI-Enabled Service into full compliance; and
 - (b) Promptly notify the Purchaser in writing of the non-compliance, the corrective measures taken, and the expected timeline for resolution.
5. If the Contractor fails to comply with the obligations set forth in this Clause GTC G.9, the Purchaser shall have the right to terminate the Contract in accordance with Clause GTC A.4.14 of the Core General Terms and Conditions ("Termination for Cause – For Default"), without prejudice to any other rights or remedies available under the Contract or applicable law.

GTC G.10. INTELLECTUAL PROPERTY AND USE OF DATA SETS **[MAY 2026]**

1. Unless otherwise agreed in the Contract Special Terms and Conditions, all pre-existing Intellectual Property Rights related to the AI System, AI-Enabled Services and Data Sets of the Contractor or its licensor(s) used by the Contractor in the context of developing, training, testing and providing the AI System or the AI-Enabled Service, remain the exclusive property of the Contractor or its licensor(s) and are deemed Contractor Background IPR or Third Party IPR as set forth in Clauses GTC A.5.3(b) and GTC A.5.3(d) of the Core General Terms and Conditions ("Contractor Background IPR" and "Third Party IPR").
2. Unless otherwise specified in the Contract Special Terms and Conditions, all developments, configurations, customizations and other specific creations performed by the Contractor or any Subcontractor on behalf of the Purchaser under the Contract shall constitute Foreground IPR and shall be transferred to the Purchaser in accordance with Clause GTC A.5.3(c) of the Core General Terms and Conditions ("Foreground IPR"). This includes, without limitation:
 - (a) Any developed applications, executables, and customization thereof, including the associated source code;
 - (b) The AI model architecture and design specifically created for the Purchaser;
 - (c) Proprietary algorithms, parameters, and hyperparameters of any AI model fine-tuned on behalf of the Purchaser;
 - (d) Specifically annotated, enriched, or processed data, Data Sets and metadata;
 - (e) Integration components, including custom APIs and interfaces; and
 - (f) Knowledge graphs, ontologies, or any other structured data specifically created or curated to enhance the AI System or AI-Enabled Service for the Purchaser.
3. The Contractor shall ensure that all such Foreground IP is delivered to the Purchaser in a usable format and free from any third-party rights that could limit the Purchaser's unrestricted use, modification, and exploitation thereof.
4. All Intellectual Property Rights related to Data Sets provided by the Purchaser are and remain the exclusive property of the Purchaser as Purchaser Background IPR (Clause GTC A.5.3(a) of the Core General Terms and Conditions). All Data Sets provided by the Purchaser shall remain classified information if indicated in the metadata or otherwise, in accordance with Clause GTC A.3.6 of the Core General Terms and Conditions ("Security of Unclassified and NATO Unclassified Materials and Information"), and shall remain confidential under Clause GTC A.3.7 of the Core General Terms and Conditions ("Confidentiality and Non-Disclosure").

5. The Contractor shall use all Data Sets provided by the Purchaser solely and exclusively for the purpose of delivering the AI System or AI-Enabled Service to the Purchaser, in accordance with the terms of the Contract. The Contractor shall not, without the Purchaser's prior explicit written consent:
 - (a) Use such Data Sets for the development, training, testing, or operation of any AI System or AI-Enabled Service for the benefit of any third party; or
 - (b) Disclose, share, sell, or otherwise make such Data Sets available to any third party.
6. The Contractor shall implement appropriate safeguards to ensure compliance with these confidentiality obligations and prevent any unauthorized use or disclosure of the Data Sets.
7. The Contractor shall securely store and protect all Data Sets provided by the Purchaser in strict compliance with the security requirements set forth in the Contract and any security policies or guidelines communicated by the Purchaser. The Contractor shall implement appropriate technical, organizational, and procedural safeguards to prevent unauthorized access, loss, alteration, disclosure, or destruction of such Data Sets.
8. The Contractor undertakes to keep all Data Sets provided by the Purchaser safe and secure in accordance with the requirements of the Contract and any security policy communicated by the Purchaser.
9. The Contractor hereby irrevocably and exclusively assigns to the Purchaser all rights, title, and interest in and to the Results generated by the AI System or AI-Enabled Service in the course of its use by or on behalf of the Purchaser. This assignment includes, without limitation, all intellectual property rights and proprietary rights in the Results, regardless of form or medium.
10. The Purchaser shall have the exclusive, unrestricted, and perpetual right to use, reproduce, translate, adapt, modify, decompile, digitize, arrange, publish, edit, lease, lend, transfer, distribute, broadcast, market, and otherwise exploit the Results for any purpose, in any manner, and through any medium now known or developed in the future.
11. The Results shall be deemed Confidential Information in accordance with Clause GTC A.3.7 of the Core General Terms and Conditions ("Confidentiality and Non-Disclosure") and, if expressly designated as such in the metadata, the Contract or indicated otherwise, may also be considered Classified Information, subject to Clause GTC A.3.6 of the Core General Terms and Conditions ("Security of Unclassified and NATO Unclassified Materials and Information").
12. Upon the Purchaser's first request, or in accordance with any agreed-upon schedule, the Contractor shall, without undue delay:
 - (a) Transfer to the Purchaser all Data Sets provided by the Purchaser and all Results retained by the Contractor; and
 - (b) Securely delete such Data Sets and Results from its systems, ensuring that no copies, backups, or residual data remain, except as required by applicable law or expressly permitted under the Contract.

GTC G.11. AUDIT [MAY 2026]

1. Upon the Purchaser's request, the Contractor shall promptly provide all information, documentation, and evidence necessary or useful to demonstrate the AI System's or AI-Enabled Service's compliance with the Contract. Such information shall be provided in a format and level of detail reasonably required by the Purchaser.
2. The Purchaser reserves the right to audit the Contractor's use, hosting and operation of the AI System or AI-Enabled Service in accordance with Clause GTC A.3.8 of the Core General Terms and Conditions ("Audit and Access to Records"), to verify compliance with the Contract and all applicable

laws, regulations, and industry standards.

**END OF G.G: GENERAL TERMS AND CONDITIONS FOR PROCUREMENT FOR
AI SYSTEMS AND AI-ENABLED SERVICES**